Chapter 17
PLANNING AND LAND USE

ARTICLE 1. GENERAL PROVISIONS

17.02 Title; Intent; City Charter
17.04 Applicability and interpretation
17.06 General requirements
17.08 Establishment of zones; Zoning map; Interpretation

ARTICLE 2. ZONING DISTRICTS: USES AND REGULATIONS

17.20 Zone A: Single family residential
17.22 Zone B: Public facilities
17.24 Zone C: Multi-family residential
17.26 Zone D: Commercial and mixed-use
17.28 Zone E: Estate residential

ARTICLE 3. SPECIAL REGULATIONS

17.30 Parking
17.32 Fences; Walls; Retaining walls
17.34 Landscaping
17.36 Signs
17.38 Accessory dwelling units
17.40 Residential rentals
17.42 Additional bedrooms in existing dwelling units
17.44 Home occupations
17.46 Wireless communication facilities
17.48 Cannabis cultivation and facilities
17.50 Non-conforming uses and structures
17.52 Density Bonus
17.54 Urban Lot Splits and Two-Unit Housing Developments (SB 9)
17.56 Emergency Shelters

ARTICLE 4. ADMINISTRATION

17.60 General provisions
17.62 Notice requirements
17.64 Hearings; Review; Term of approval; Conditions
17.66 Design review
17.67 Ministerial Design Review Permits
17.68 Conditional use permits
17.70 Variances
17.72 Zoning amendments
17.74 Development agreements
17.76 Reasonable accommodation
17.78 Appeals; Calls for review
17.80 Enforcement

ARTICLE 5. DEFINITIONS; MEASUREMENTS

17.90 Definitions & Measurements

ARTICLE 1. GENERAL PROVISIONS

Divisions

17.02. Title; Intent; City Charter
17.04 Applicability and interpretation
17.06 General requirements
17.08 Establishment of zones; Zoning map

DIVISION 17.02 TITLE; INTENT; CITY CHARTER

Sections:

17.02.010 Title; City Charter

17.02.010 Title; Intent; City Charter.

A. Title. This chapter 17, Planning and Land Use, is also known as the zoning ordinance.

B. Intent. The City of Piedmont consists primarily of unique single-family residences set among mature trees and other vegetation. The residents wish to:

1. preserve the architectural heritage and beauty of the city's homes, the mature vegetation, the tranquility and privacy that now exist, and significant views;
2. reduce on-street parking and traffic in the neighborhood streets and facilitate pedestrian and bicycle activity;
3. mitigate overcrowding and build a thriving environment for all, where growth benefits schools, services, facilities, and amenities;
4. preserve the city's historical heritage;
5. preserve the existing stock of small homes and otherwise allow for a variety of housing types for all income levels, including single-family and multi-family dwellings;
6. ensure excellence of architectural design, and compliance with the Piedmont Design Standards and Guidelines, as approved by the City Council and amended from time to time;
7. allow retail, office, and service commercial uses that are primarily neighborhood serving;
8. promote property improvements without sacrificing the goals already mentioned; and
9. create incentives for the development of accessory dwelling units affordable to households with moderate, low and very low income.

These zoning regulations are designed to implement these purposes.
(Ord. 777 N.S., 01/2025)

C. City Charter.

1. The city's zoning ordinance is also subject to the City Charter, particularly Section 9.01, General Plan, Section 9.02, Zoning System, and Section 9.04, General Laws Applicable. Those sections read as follows:

Section 9.01 General Plan. The City Council shall adopt, and may from time to time, modify a general plan setting forth policies to govern the development of the City. Such plan may cover the entire City and all of its functions and services or may consist of a combination of plans governing specific functions and services or specific geographic areas which together cover the entire City and all of its functions and services. The plan shall also serve as a guide to Council action concerning such City planning matters as land use, development regulations and capital improvements.

Section 9.02 Zoning system. The City of Piedmont is primarily a residential city, and the City Council shall have the power to establish a zoning system within the City as may in its judgment be most beneficial. The Council may classify and reclassify the zones established, but no existing zones shall be reduced or enlarged with respect to size or area, and no zones shall be reclassified without submitting the question to a vote at a general or special election. No zone shall be reduced or enlarged and no zones reclassified unless a majority of the voters voting upon the same shall vote in favor thereof; provided that any property which is zoned for uses other than or in addition to a single-family dwelling maybe voluntarily rezoned by the owners thereof filing a written document executed by all of the owners thereof under penalty of perjury stating that the only use on such property shall be a single-family dwelling, and such rezoning shall not require a vote of the electors as set forth above.

Section 9.04 General laws applicable. All general laws of the State applicable to municipal corporations, now or hereafter enacted, and which are not in conflict with the provisions of this Charter or with ordinances hereafter enacted, shall be applicable to the City. The City Council may adopt and enforce ordinances that, in relation to municipal affairs, shall control as against the general laws of the State.

2. In Section 9.02 of the City Charter, the prohibition not to reduce, enlarge, or reclassify a zone without a vote is understood to mean the city may not change the zone boundaries, or change (reclassify) a property from one zone to another. However, the City may make amendments to the zoning ordinance within the established zoning districts.

D. Private Agreements. The City regulates land use in accordance with the City's zoning ordinance and does not enforce or regulate private agreements. (Ord. 774 N.S., 09/2024)

DIVISION 17.04 APPLICABILITY AND INTERPRETATION

Sections:

17.04.010 Applicability to property
17.04.020 Applicability to streets and rights-of-way
17.04.030 Compliance with regulations
17.04.040 Public nuisance
17.04.050 Conflict with other regulations
17.04.060 Relation to prior ordinance
17.04.070 Extension of time for holidays and weekends
17.04.080 Rules for construction of language
17.04.090 Application during local emergency
17.04.100 Severability

17.04.010 Applicability to property.
Zoning regulations apply to all land within the city, including land owned by the city and other local, state, or federal agencies to the extent allowed by law.

17.04.020 Applicability to streets and rights-of-way.
Public streets, utility and other rights-of-way are in the same zoning district as contiguous property. Where contiguous properties are classified in different zoning districts, the centerline of the street or right-of-way will be the zoning district boundary, unless otherwise depicted on the zoning map.

17.04.030 Compliance with regulations.
No land may be used, and no structure may be constructed, occupied, enlarged, altered, demolished or moved in any zoning district except in accordance with this chapter.

17.04.040 Public nuisance.
Neither the provisions of this chapter nor the approval of any permit authorized by this chapter authorize the maintenance of a public nuisance. A violation of a provision of this division is a public nuisance. (See section 17.80.010B.)

17.04.050 Conflict with other regulations.
Where conflict occurs between the provisions of this chapter and any other city code, chapter, resolution, guideline, or regulation, the more restrictive provision will control unless otherwise specified in this chapter.

17.04.060 Relation to prior ordinance.
The provisions of this chapter supersede all prior zoning ordinances of the city.

17.04.070 Extension of time for holidays and weekends.
If a deadline falls on a weekend or holiday, the time for performing an act is extended to the next working day. A *holiday* is a day on which city offices are closed.

17.04.080 Rules for construction of language.

A. A reference to a public official in the city is to that person who performs the function referred to and includes a designated deputy of the official.

B. References to days are to calendar days unless otherwise indicated.

C. Section headings do not govern, limit, modify or affect the scope, meaning or intent of a section.

D. The words *property*, *activities* and *facilities* include any part of them.

E. References to federal, state, or city codes include those codes as they may be amended.

17.04.090 Application during local emergency.

The city council, or its authorized designee, may authorize a deviation from this chapter during a local emergency declared and ratified under the municipal code in accordance with the California Emergency Services Act (Gov't. Code § 8550 et seq.).

17.04.100 Severability.

The chapters, articles, divisions, sections, subsections, paragraphs, sentences, clauses and phrases of this code are severable. If a court declares any to be unconstitutional, invalid or unenforceable, that determination will not affect the remaining provisions.

DIVISION 17.06 GENERAL REQUIREMENTS

Sections:

17.06.010 General
17.06.020 Dual city lots
17.06.030 Building permits to conform
17.06.040 Subdivision to conform
17.06.050 Private construction on city or public utility property

17.06.010 General.
On-site improvements not covered by this chapter are subject to the requirements of Piedmont City Code chapter 8 Building, Construction and Fire Prevention.

17.06.020 Dual city lots.
If an applicant seeks city approval for improvements on a lot that falls within both Piedmont and Oakland boundaries, the city will consider the entire lot area in evaluating floor area ratio, landscape, structure coverage and setbacks.

17.06.030 Building permits to conform.
The Chief Building Official will not issue a building permit for the construction, alteration, or establishment of an improvement or use within the city contrary to this chapter. Each application for a building permit shall state on it the purpose for which the proposed improvement is intended.

17.06.040 Subdivision to conform.
No lot may be created that does not conform to this chapter and chapter 19, Subdivisions.

17.06.050 Private construction on city or public utility property.
A. Zone A regulations apply. The Zone A regulations and standards apply to a private residential structure, or fence over four feet high, which is located on or over city property, a city easement, or a public utility easement.

B. Encroachment permit required. No building permit will be issued for construction by a person other than the city or a public utility on or over city property or a city easement unless an encroachment permit has first been obtained from the Director of Public Works. An encroachment permit will not be issued until required design review and variance approvals have been given, and the appeal period has lapsed.

C. Public utility improvements. No public utility may construct an improvement on or over city property or a city easement unless prior written permission has been obtained from the Director of Public Works.

D. Public utility easement. The city will not grant a permit or approval under this chapter if the improvement is to be constructed on or over a public utility easement of which the city has actual knowledge, unless the applicant provides written evidence of the prior consent of the public utility owning the easement.

DIVISION 17.08 ESTABLISHMENT OF ZONES; ZONING MAP; INTERPRETATION

Sections:

17.08.010 Establishment of zones.
17.08.020 Zoning map.
17.08.030 Rules for interpretation of text and zoning map

17.08.010 Establishment of zones.

The zoning system of the City consists of two parts: (1) the City Charter, which contains the zoning policy and requirements for voter approval of zone classification changes; and (2) this chapter 17 of the City Code.

The City is divided into five zones as follows:

Zone A Single-family residential zone
Zone B Public facilities zone
Zone C Multi-family residential zone
Zone D Commercial and mixed-use commercial/residential zone
Zone E Single family residential estate zone

Within each zone, certain uses of land and buildings are allowed as permitted or conditional uses, and certain other uses of land and buildings are restricted or prohibited. If a use is not permitted or conditionally permitted, it is not allowed. Other regulations may apply.

17.08.020 Zoning map.

The zones referred to in section 17.08.010 above are established and described on the City's Zoning Map. The City Clerk maintains the official copy of the zoning map.

17.08.030 Rules for interpretation of text and zoning map.

A. Zoning regulations. Where uncertainty exists regarding the interpretation of a provision of this chapter or its application to a specific site, the Director determines the intent of the provision. The Director's decision may be appealed to the Planning Commission under division 17.78.

B. Zoning map. Where uncertainty exists regarding the boundary of a zoning district, the following rules apply:

1. District boundaries shown as approximately following the property line of a lot shall be construed to follow the property line.

2. District boundaries shown as approximately following the right-of-way line of a street or other identifiable boundary line, are construed to follow the right-of-way or property boundary line.

3. If any uncertainty remains as to the location of a district boundary or other feature shown on the zoning map, the location is determined by the Director, subject to appeal to the Planning Commission under division 17.78.

C. Record of interpretation. The Director will keep a public record of interpretations made under this section.

ARTICLE 2. ZONING DISTRICTS: USES AND REGULATIONS

Divisions

17.20 Zone A: Single family residential
17.22 Zone B: Public facilities
17.24 Zone C: Multi-family residential
17.26 Zone D: Commercial and mixed-use
17.28 Zone E: Estate residential

DIVISION 17.20 ZONE A: SINGLE FAMILY RESIDENTIAL

Sections:

17.20.010 Intent
17.20.020 Permitted uses
17.20.030 Conditional uses
17.20.040 Regulations

17.20.010 Intent.

Zone A is established for single-family residential and other allowed uses. The intent is to:

- Preserve, maintain, and enhance Piedmont's residential character and the quiet community atmosphere of neighborhoods.
- Mitigate adverse environmental impacts and site constraints, such as excessive noise, light deprivation, incompatible land uses, unsafe overcrowding, obstructed pedestrian and vehicular access and circulation, and blockage of significant views.
- Create, maintain, and enhance a living environment that builds community for people of all income levels.
- Maintain openness and areas of vegetation to enhance a healthy environment.
- Achieve design compatibility and orderly arrangement of development by establishing regulations for the siting, massing, and building form on properties throughout the zone. (Ord. 772 N.S., 03/2024)

17.20.020 Permitted uses.

The following are permitted uses in Zone A:

A. Single-family residence.

B. Rented room, subject to section 17.40.020, or short-term rental, subject to a short-term rental permit under section 17.40.030.

C. Accessory dwelling unit, subject to division 17.38.

D. Small family day care home in accordance with California Health and Safety Code sections 1597.43 - 1597.47. (Ord. 742 N.S., 05/2017, Ord. 772 N.S., 03/2024)

E. Religious institution affiliated housing development projects, and religious institution affiliated emergency shelters.

F. Manufactured and mobile homes on a permanent foundation.

G. Low barrier navigation centers.

H. Residential care facilities or group homes that provide licensable services for up to six residents.

I. Residential care facilities or group homes that do not provide licensable services.

J. Supportive housing and transitional housing developments.

K. Accessory structures with accessory uses located on the same lot as the primary structure.

L. Employee housing for 6 or fewer persons. (Ord. 772 N.S., 03/2024)

17.20.030 Conditional uses.
The following are allowed in Zone A with a conditional use permit:

A. Religious assembly.

B. Private school, or day care facility associated with a religious assembly use. A pre-existing school not having a use permit may continue as a non-conforming use as long as the use is not expanded.

C. Reservoir.

D. Wireless communication facility, subject to a wireless communication facility permit (rather than a use permit) under division 17.46.

E. Residential care facilities or group homes that provide licensable services for seven or more residents.

F. Large family day care home in accordance with California Health and Safety Code sections 1597.43 - 1597.47. (Ord. 772 N.S., 03/2024)

17.20.040 Regulations.

A. The following development standards apply to the development of all uses in Zone A, except those listed in Section 17.20.040.B:

	Zone A requirements
Lot area	Minimum 8,000 square feet, subject to exception for accessory dwelling unit construction set forth in division 17.38 or for a lot split under SB 9 set forth in division 17.54.
Frontage, on public or private street	Minimum 60 feet, subject to an exception for a lot split under SB 9 as set forth in division 17.54.
Lot coverage; Landscaping	Maximum 40% lot coverage for primary and accessory structures, subject to exception for accessory dwelling unit construction set forth in division 17.38. (A site feature is not calculated in the lot coverage if (1) the feature is not more than 7 feet height and (2) the total of all site features is 400 square feet or less.) Minimum 30% landscaping, subject to exception for accessory dwelling unit construction set forth in division 17.38.
Structure height	Maximum 35 feet, except accessory dwelling units shall be subject to restrictions set forth in division 17.38.
Street yard setback	Minimum 20 feet for primary or accessory structure, subject to exception for accessory dwelling unit construction set forth in division 17.38. However, structure to support pedestrian and vehicular access, such as retaining walls and driveway bridges, not taller than 8 feet, shall be allowed in the street yard setback. No minimum setback for a site feature, but a site feature may require a design review permit under division 17.66.
Side yard and rear yard setback	Minimum 5 feet for a primary or accessory structure, unless the yard is street facing, in which case the minimum is 20 feet, except that a setback of only 4 feet is required for a new structure to be used as an accessory dwelling unit, and no setback is required for conversions of an existing structure to an accessory dwelling unit or portion thereof in the same location and same dimensions.** However, an accessory structure may be located anywhere within the side and rear setback areas except that it: (a) must be

	located within 35 feet of the rear lot line; (b) must be located at least 5 feet from a habitable structure on an abutting property, and, for a corner lot, at least 5 feet from a side lot line of an abutting property to the rear; (c) may not exceed 15 feet in height; and (d) may not be habitable. A dwelling unit developed under SB 9 is subject to a 4 foot side and rear setback. A site feature proposed within these distances may require a design review permit under division 17.66.
Floor area ratio*	Subject to exception for accessory dwelling unit construction set forth in division 17.38 or for a dwelling unit developed under SB 9 set forth in division 17.54: Maximum 55% of the lot area if the parcel is 5,000 square feet or less. Maximum 50% of the lot area if the parcel is 5,001 square feet to 10,000 square feet. Maximum 45% of the lot area if the parcel is more than 10,000 square feet.

* In order to encourage development within the existing building envelope instead of building outwards or upwards, the floor area ratio standard is not applied to finishing an area into habitable space if: (1) there is no expansion of the exterior building envelope; and (2) the owner has not obtained a final inspection within the prior three years on a building permit issued for an expansion of the building envelope. (Ordinance 772 N.S., 03/2024)

** Pursuant to Government Code section 65852.2(a)(1)(D)(vii). (Ord. 747 N.S., 02/2020, Ord. 768 N.S., 01/2023, Ord. 772 N.S., 03/2024)

Please refer to division 17.54 for standards for a lot split and two-unit housing developments performed under SB 9."

B. The development standards for the following uses are as indicated below:

a. Wireless communications facility, as provided in division 17.46.

b. Religious institution affiliated housing development projects, as provided in section 17.24.040.A. except that there is no minimum density and maximum allowable density is 21 dwelling units per acre.

c. Reservoir has no applicable development standards.

C. For lots that are larger than 5,000 square feet, an ADU shall be constructed:

a. when a new single-family residence is proposed on a vacant lot.

b. when an existing single-family residence is demolished for a remodel or reconstruction, except when a single-family residence is being reconstructed to the same or similar square footage due to damage or destruction by accident, fire, flood, earthquake, or other act of nature. (Ord. 772 N.S., 03/2024)

DIVISION 17.22 ZONE B: PUBLIC FACILITIES

Sections:

17.22.010 Intent
17.22.020 Permitted uses
17.22.030 Conditional uses
17.22.040 Regulations

17.22.010 Intent.

Zone B is established to regulate and control development of public facilities and other allowed uses that are compatible with the character of surrounding uses.

17.22.020 Permitted uses.

The following are permitted uses in Zone B:

A. A single-family residence.

B. Accessory dwelling unit, subject to division 17.38.

C. Building occupied by a public agency or other nonprofit entity.

D. Public school.

E. Parks and open space, including recreational uses and facilities.

F. Cemetery, public utility.

G. Emergency shelter, supportive housing or transitional housing.
(Ord. 747 N. S., 2/2020, Ord. 772 N. S., 3/2024)

H. Manufactured and mobile homes on a permanent foundation.

I. Low barrier navigation centers.

J. Residential care facilities or group homes that provide licensable services for up to six residents.

K. Residential care facilities or group homes that do not provide licensable services.

L. A multi-family residential development, including senior housing, and disabled housing.

M. Small family day care home in accordance with California Health and Safety Code sections 1597.43 - 1597.47.

N. Employee housing for 6 or fewer persons.

O. Accessory structures and accessory uses affiliated with the primary structure on the same lot under this section. (Ord. 772 N.S., 03/2024)

17.22.030 Conditional uses.
The following are allowed as conditional uses in Zone B:

A. Except for schools, a public building used by a for-profit commercial entity.

B. Wireless communication facility, subject to a wireless communication facility permit (rather than a use permit) under division 17.46.

C. Licensed residential care or group homes that provide licensable services to seven or more residents.

D. Large family day care home in accordance with California Health and Safety Code sections 1597.43 – 1597.47. (Ord. 772 N.S., 03/2024)

17.22.040 Regulations.
A. City projects are not subject to development standards, except those listed below:
1. the green building requirements of chapter 8, section 8.10 and following;
2. the bay-friendly landscaping requirements of chapter 3, section 3.30 and following

B. In Zone B, for uses other than those set forth in 17.22.040(A) and (C), the development standards are as follows:

Lot area; frontage; coverage; height; front, rear and side yards; floor area ratio.	All as set forth for Zone A. See section 17.20.040.

C. In Zone B, the development standards for the following uses are set forth below, except to the extent such standards are not consistent with an adopted specific plan, in which case the adopted specific plan shall prevail:
a. Wireless communications facility as provided in division 17.46.
b. Multi-family residential as provided in section 17.24.040.A**.**
c. Cemetery, public utility – no standards.
d. Building occupied by a public agency or other nonprofit entity – no standards, except as set forth in section 17.22.040.A.
e. Parks and open space, including recreational uses and facilities – no standards.

D. For lots that are larger than 5,000 square feet, an ADU shall be constructed:
a. when a new single-family residence is proposed on a vacant lot.
b. when an existing single-family residence is demolished for a remodel or reconstruction, except when a single-family residence is being reconstructed to the same or similar square

footage due to damage or destruction by accident, fire, flood, earthquake, or other act of nature. (Ord. 772 N.S., 03/2024)

DIVISION 17.24 ZONE C: MULTI-FAMILY RESIDENTIAL

Sections:

17.24.010 Intent
17.24.020 Permitted uses
17.24.030 Conditional uses
17.24.040 Regulations

17.24.010 Intent.

Zone C is established to regulate and control residential development, including multi-family dwellings, that enhances the character of the neighborhood and builds community for people of all income levels.

17.24.020 Permitted uses.

The following are permitted uses in Zone C:

A. A single-family residence.

B. A multi-family residential development. .

C. Accessory dwelling unit, subject to division 17.38. (Ord. 747 N.S., 02/2020)

D. Manufactured and mobile homes on a permanent foundation.

E. Low barrier navigation centers.

F. Residential care facilities or group homes that provide licensable services for up to six residents.

G. Residential care facilities or group homes that do not provide licensable services.

H. Supportive housing and transitional housing.

I. Accessory structures with accessory uses located on the same lot as the primary structure under this section.

J. Small family day care home in accordance with California Health and Safety Code sections 1597.43 - 1597.47.

K. Employee housing for 6 or fewer persons. (Ord. 772 N.S., 03/2024)

17.24.030 Conditional uses.

The following are allowed as conditional uses in Zone C:

A. Wireless communication facility, subject to a wireless communication facility permit (rather than a use permit) under division 17.46.

B. Residential care facilities or group homes that provide licensable services for 7 or more people.

C. Large family day care home in accordance with California Health and Safety Code sections 1597.43 – 1597.47.

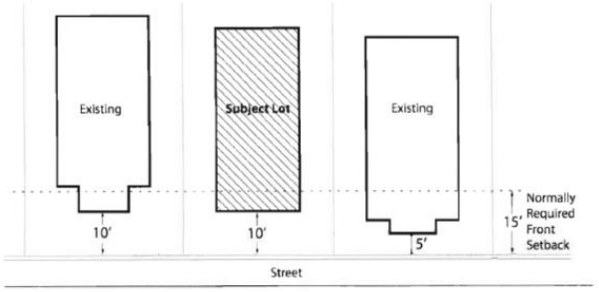
D. Single room occupancy dwellings.

E. Co-housing. (Ord. 772 N.S., 03/2024)

17.24.040 Regulations.

A. In Zone C, for multi-family residential use, licensed residential care facility for 7 or more residents, co-housing and single room occupancy dwellings, the standards are as follows:

	Zone C requirements
Lot area	Minimum 10,000 square feet, subject to exception for accessory dwelling unit construction set forth in division 17.38.
Frontage, on public or private street	Minimum 90 feet
Lot coverage; Landscaping	Maximum 70% lot coverage for primary and accessory structures, subject to exception for accessory dwelling unit construction set forth in division 17.38. Minimum 15% landscaping, or 10% by landscaping for a project in which at least 20% of the units are affordable, as defined by the California Department of Housing and Community Development, subject to exception for accessory dwelling unit construction set forth in division 17.38.
Structure height	Maximum 45 feet for buildings on lots with lot area 4,000 sq.ft.or or more, except accessory dwelling units shall be subject to restrictions set forth in division 17.38. Maximum 35 feet for buildings on lots with lot area less than 4,000 sq.ft., except accessory dwelling units shall be subject to restrictions set forth in division 17.38.
Street yard setback	Minimum 15 feet for primary or accessory structure, subject to exception for accessory dwelling unit construction set forth in division 17.38. If adjacent lots abutting the side lot lines of the subject lot both contain principal single family residential buildings that have front setbacks with a depth of less than ten (10) feet, the minimum front setback may be reduced for buildings and other structures on the subject lot up to a line parallel to the front lot line and extended from

	the most forward projection of the principal single family residential buildings on the adjacent lots having the deeper front setback depth, provided such projection is enclosed, has a wall height of at least eight (8) feet, and has a width of at least five (5) feet. In the case of a corner lot or lot that has a vacant parcel next to it, this same principal may apply if the two (2) lots adjacent to the corner lot or lot along its front lot line have less than a fifteen (15) foot front setback. See illustration below:  Site feature of any height may require a design review permit under division 17.66.
Side yard and rear yard setback	Minimum 4 feet for primary or accessory structure, except as provided below. If adjacent lots abutting the side and rear lot lines of the subject property are single family residential, the proposed building shall further step back depending on the lot area: • If lot area is less than 4,000 sq.ft., the building shall step back 8 ft. from the side and/or rear property line abutting the single family residential after 2 stories or 22 ft., whichever is less. • If lot area is 4,000 sq.ft. or more, the building shall step back 8 ft. from the side and/or rear property line abutting the single family residential after 3 stories or 35 ft, whichever is less. However, an accessory structure may be located anywhere within the side and rear setback areas except that it: (a) must be located within 35 feet of the rear lot line; (b) must be located at least 5 feet from a habitable structure on an abutting property, and, for a corner lot, at least 5 feet from a side lot line of an abutting property to the rear; (c) may not exceed 15 feet in height; and (d) may not be habitable. A site feature proposed within these distances may require a design review permit under division 17.66.
Density	Minimum density of 20 dwelling units/acre, and maximum density of 60 dwelling units/acre, unless otherwise required by State Law.
Unit type mix	50% of the units in a multi-family housing development, including co-housing (but excluding senior housing, licensed residential care facilities of 7 or more residents, and disabled housing), shall have a minimum of two bedrooms, unless 100% of the units are affordable to households earning 50% or less of the area median income (AMI) established by California Health and Safety Code 5105 that are deed-restricted for a period of 55 years or more.

B. In Zone C, for uses other than those listed above, the development standards are as follows:

1. Wireless communications facility as provided in division 17.46.
2. Single-family residence as provided in section 17.20.040.A.
3. Manufactured and mobile homes as provided in section 17.20.040.A.
4. Large day care home as provided in section 17.20.040.A.
5. Licensed residential care facility or group home for up to 6 residents and unlicensed residential care facility or group home as provided in section 17.20.040.A.
6. Low barrier navigation centers as provided in section 17.20.040.A.
7. Transitional and supportive housing as provided in section 17.20.040.A.
8. Employee Housing for up to six employees as provided in section 17.20.40.A
9. Small day care home as provided in section 17.20.40.A

C. For lots that are larger than 5,000 square feet, an ADU shall be constructed:

a. when a new single-family residence is proposed on a vacant lot.
b. when an existing single-family residence is demolished for a remodel or reconstruction, except when a single-family residence is being reconstructed to the same or similar square footage due to damage or destruction by accident, fire, flood, earthquake, or other act of nature. (Ord. 772 N.S., 03/2024)

DIVISION 17.26 ZONE D: COMMERCIAL AND MIXED USE

Sections:

17.26.010 Intent
17.26.020 Permitted uses
17.26.030 Conditional uses
17.26.040 Prohibited uses
17.26.050 Regulations

17.26.010 Intent.

Zone D is established to regulate and control commercial and mixed-use commercial/residential development, where pedestrian-oriented commercial development will serve the neighborhood, consistent and in harmony with the character of the neighborhood and adjacent residential areas.

17.26.020 Permitted uses.

The following are permitted uses in Zone D:

A. A single-family residence

B. An accessory dwelling unit, subject to division 17.38.
(Ord. 747 N.S., 02/2020, Ord. 772 N.S., 03/2024)

C. Low barrier navigation centers.

D. Residential care facilities or group homes that provide licensable services for up to six residents.

E. Residential care facilities or group homes that do not provide licensable services.

F. Supportive housing and transitional housing developments.

G. Accessory structures with accessory uses located on the same lot as the primary structures under this section.

H. Small family day care home in accordance with California Health and Safety Code sections 1597.43 - 1597.47.

I. Multi-family development including single-room occupancy, co-housing, senior housing, and disabled housing, that is part of a mixed-use development.

J. Employee housing for 6 or fewer persons.

K. Manufactured and mobile homes on a permanent foundation. (Ord. 772 N.S., 03/2024)

L. The following commercial uses, subject to the performance standards in section 17.26.060:

Wine shop, restaurants and café, bakery, florist shop, clothing store, art and craft store, book store, bike shop, hardware store, office, hair salon and barber services, yoga studio, dance studio, martial arts studio, photography studio, tutoring center, and fitness center. (Ord. 783 N.S. 10/2025)

17.26.030 Conditional uses.
The following are allowed as conditional uses in Zone D:

A. Religious assembly.

B. Private school, or day care facility associated with a religious assembly use. A pre-existing school not having a use permit may continue as a non-conforming use as long as the use is not expanded.

C. Large family day care home in accordance with California Health and Safety Code sections 1597.43 - 1597.47.

D. Minor auto servicing such as fueling station and auto repairs (e.g. tire repair, oil change).

E. Commercial uses not listed in 17.26.020.L. and 17.26.040.

F. Wireless communication facility, subject to a wireless communication facility permit (rather than a use permit) under division 17.46.

G. Residential care facilities or group home that provide licensable services for seven or more residents. (Ord. 783 N.S., 10/2025)

17.26.040 Prohibited uses.
The following uses are prohibited uses in Zone D: manufacturing, wholesaling, distributing, or industrial use; motor vehicle sales or service (except as provided in section 17.26.030.D); hotel or motel; fast food restaurants; and drive-through establishments. (Ord. 783 N.S. 10/2025)

17.26.050 Development Standards.
A. In Zone D, for commercial, mixed-use commercial/residential, and private school facilities uses, the standards are as follows:

	Zone D requirements	
	Civic Center Subarea [1]	**Grand Avenue Subarea [2]**
Lot area	*No minimum lot* area, but an existing lot may not be subdivided into smaller lots.	No minimum lot area, but an existing lot may not be subdivided into smaller lots.
Frontage, on public or private street	No minimum requirement.	No minimum requirement.
Lot coverage; Landscaping	No maximum. No minimum.	No Maximum.

		Minimum 10% landscaping, subject to exception for accessory dwelling unit construction set forth in division 17.38.
Structure height	45 feet	Maximum 45 feet. For a building site adjacent to a single-family residence: A. within 10 feet of the abutting lot line: maximum 35 feet measured from adjacent grade; and B. daylight plane starting at 35 feet above grade and a distance of 10 feet from the abutting property line.
	Zone D requirements (continued)	
	Civic Center Subarea [1]	**Grand Avenue Subarea [2]**
Street yard setback	No minimum setback.	Along Wildwood, Sunnyside and Linda Avenues: 5 feet minimum from lot line. Along Grand Avenue: 5 feet minimum from curb or 3 feet from lot line, whichever is greater.
Side yard and rear yard setback	No minimum setbacks, but if side or rear yard abuts a single-family residence, the minimum side and rear yard setback is 4 feet from that abutting lot line.	Side Yard: no minimum setbacks, except minimum 4 feet from lot line abutting a single-family residence. Rear Yard: 4 feet minimum.
Floor to ceiling height for ground floor commercial use	15 feet minimum	12 feet minimum
Ground floor	Zone D developments must have: 1. ground floor retail, office, or service commercial uses to primarily serve the neighborhood. Ground floor residential use is not permitted, except for an entry and lobby to the upper floor(s), except that: the requirement for ground floor retail, office, or service commercial uses shall be waived for development in which 100% of the units are affordable to households earning 80% or less of the area median income (AMI) established by California Health and Safety Code 5105 that are deed-restricted for a period of 55 years or more.	

[1] The Civic Center Subarea consists of the Zone D parcels bounded by: Highland Way on the north, Highland Avenue on the south; and Highland Avenue on the east, Vista Avenue on the south, and Piedmont Unified School District properties on the north and west.

[2] The Grand Avenue Subarea consists of the Zone D parcels bounded by: Wildwood Avenue to the southeast, Grand Avenue on the west, Zone A parcels on the north and east; and City boundary on the south, Grand Avenue on the east, Linda Avenue on the north, and Zone A properties to the west.

[3] Setback requirements applicable to accessory dwelling unit construction are set forth in division 17.38, rather than this table.

B. In Zone D, for single-family residential use, small family day care home, manufactured and mobile homes, low barrier navigation center, licensed residential care facility or group home for up to 6 residents and unlicensed residential care facility or group home, employee housing for 6 or fewer persons, and supportive and transitional housing, the development standards are as follows:

Lot area; frontage; coverage; height; front, rear and side yards; floor area ratio.	All as set forth for Zone A. See section 17.20.040.

(Ord. 747 N.S., 02/2020)

C. In Zone D, for uses other than those listed above, the development standards are as follows:

1. Wireless communications facility as provided in division 17.46
2. Religious assembly as provided in section 17.20.040.A.
3. Stand-alone multi-family development including senior housing, disabled housing, single-room occupancy and co-housing, and multi-family that is part of a mixed-use development as provided in section 17.24.040.A, except for density standards provided in 17.26.50.D.
4. Large day care home as provided in section 17.24.040.A.
5. Licensed residential care facility or group home for 7 or more residents as provided in section 17.24.040.A.

D. Density and Floor Area Ratio.

The following density and floor area ratio standards apply to all development in this division that includes residential uses, including multifamily developments, residential development within mixed-use development, SROs, and co-housing, except for single-family or similar residential uses.

1. The developer/property owner may choose to develop property in this zone at a minimum of 20 dwelling units/acre and maximum of 81 dwelling units/acre.
2. The maximum non-residential FAR in a mixed-use development is 75%.
3. The maximum non-residential floor area is 50% of residential floor area.

E. For lots that are larger than 5,000 square feet, an ADU shall be constructed:

a. when a new single-family residence is proposed on a vacant lot.

b. when an existing single-family residence is demolished for a remodel or reconstruction, except when a single-family residence is being reconstructed to the same or similar square footage due to damage or destruction by accident, fire, flood, earthquake, or other act of nature.
(Ord. 772 N.S., 03/2024)

17.26.060 Performance Standards

The following standards apply in Zone D, for permitted commercial uses:

A. Uses are subject to the following hours of operation and standards as noted. If a use requires a waiver from specified hours of operation and /or performance standards, then a conditional use permit subject to provisions of division 17.68 is required.

Use	Hours of Operation**	Performance Standards
Wine Shop*	9am- 8pm	
Restaurants and Cafes*	8am- 9pm	If serving alcohol, the establishment shall not be located within 100 feet of a school.
Bakery*	7am- 6pm	• Prohibit manufacturing of products to be sold elsewhere • Exempt from parking provisions in division 17.30 • Ground floor only
Florist Shop*	6am- 8pm	Exempt from parking provisions in division 17.30
Clothing Store*	8am- 8pm	
Art and Craft Store*	8am- 8pm	
Book Store	8am- 8pm	
Bike Shop	8am- 8pm	
Hardware Store	8am- 8pm	
Office	8am- 8pm	Not permitted on ground floor
Hair Salon and Barber Services	8am- 8pm	No massage services
Yoga Studio	8am- 8pm	
Dance Studio	8am- 8pm	
Martial Arts Studio	8am- 8pm	
Photography Studio	8am- 8pm	
Tutoring Center	8am- 8pm	Not permitted on ground floor
Fitness Center	6am- 8pm	On-site child care is not permitted.
* Use is defined in Division 17.90 ** Hours of operation are the duration the business can be open to the public		

B. Any physical modifications to structures or buildings or new structures or buildings shall be subject to the development standards of the underlying zone. No physical modifications or new construction can take place until all required planning and building permits have been obtained.

C. Uses may not include outdoor services. The uses must be conducted primarily within an enclosed structure. Outdoor storage is permitted when screened from street view.

D. Uses must be primarily neighborhood serving. Commercial uses that are primarily neighborhood serving are those that neighbors would be expected to use on a regular basis, and not uses that would be expected to draw the major portion of their clientele from outside the neighborhood.

E. Storage, repair, and production may not take place in required setbacks. Every part of each required minimum setback shall be open and unobstructed from finished grade to the sky except for landscaped areas.

F. There shall be no loading between 8-9 a.m. on school days

G. The site must be kept free of trash and debris. All receptacles for collection and recycling shall be completely screened from view at street level.

H. Unless specified, the uses shall comply with the parking provisions in Division 17.30.

I. No sooner than 30 days prior to the opening of a new business, an unlighted temporary sign announcing the name of the new business may be displayed in one storefront window per façade. The sign shall not exceed eight (8) square feet in the sign area and may identify the name of the business in a graphic or text format.

J. Signage shall be subject to the provisions of Division 17.36. (Ord. 783 N.S., 10/2025)

DIVISION 17.28 ZONE E: ESTATE RESIDENTIAL

Sections:

17.28.010 Intent
17.28.020 Permitted uses
17.28.030 Conditional uses
17.28.040 Regulations

17.28.010 Intent.
Zone E is established for estate residential homes, which tend to be larger lots. The purposes set forth for Zone A also apply to Zone E.

17.28.020 Permitted uses:
The following are permitted uses in Zone E:

A. Single-family residence.

B. Rented room, subject to section 17.40.020, or short-term rental, subject to a short-term rental permit under section 17.40.030.

C. Accessory dwelling unit, subject to division 17.38.

D. Small family day care home in accordance with California Health and Safety Code sections 1597.43 - 1597.47.

E. Manufactured and mobile homes on a permanent foundation.

F. Low barrier navigation centers.

G. Residential care facilities or group homes that provide licensable services for up to six residents.

H. Residential care facilities or group homes that do not provide licensable services.

I. Supportive housing and transitional housing developments.

J. Accessory structures with accessory uses located on the same lot as the primary structures under this section.

K. Employee housing for 6 or fewer persons. (Ord. 772 N.S., 03/2024)

17.28.030 Conditional uses.
The following are allowed as conditional uses in Zone E:

A. Wireless communication facility, subject to a wireless communication facility permit (rather than a use permit) under division 17.46.

B. Residential care facilities or group homes that provide licensable services for seven or more residents.

C. Large family day care home in accordance with California Health and Safety Code sections 1597.43 - 1597.47. (Ord. 772 N.S., 03/2024)

17.28.040 Regulations. A. The following development standards apply to the development of all uses in Zone A, except those listed in Section 17.20.040.B:

	Zone A requirements
Lot area	Minimum 8,000 square feet, subject to exception for accessory dwelling unit construction set forth in division 17.38 or for a lot split under SB 9 set forth in division 17.54.
Frontage, on public or private street	Minimum 60 feet, subject to an exception for a lot split under SB 9 as set forth in division 17.54.
Lot coverage; Landscaping	Maximum 40% lot coverage for primary and accessory structures, subject to exception for accessory dwelling unit construction set forth in division 17.38. (A site feature is not calculated in the lot coverage if (1) the feature is not more than 7 feet height and (2) the total of all site features is 400 square feet or less.) Minimum 30% landscaping, subject to exception for accessory dwelling unit construction set forth in division 17.38.
Structure height	Maximum 35 feet, except accessory dwelling units shall be subject to restrictions set forth in division 17.38.
Street yard setback	Minimum 20 feet for primary or accessory structure, subject to exception for accessory dwelling unit construction set forth in division 17.38. However, structure to support pedestrian and vehicular access, such as retaining walls and driveway bridges, not taller than 8 feet, shall be allowed in the street yard setback. No minimum setback for a site feature, but a site feature may require a design review permit under division 17.66.
Side yard and rear yard setback	Minimum 5 feet for a primary or accessory structure, unless the yard is street facing, in which case the minimum is 20 feet, except that a setback of only 4 feet is required for a new structure to be used as an accessory dwelling unit, and no setback is required for conversions of an existing structure to

	an accessory dwelling unit or portion thereof in the same location and same dimensions.** However, an accessory structure may be located anywhere within the side and rear setback areas except that it: (a) must be located within 35 feet of the rear lot line; (b) must be located at least 5 feet from a habitable structure on an abutting property, and, for a corner lot, at least 5 feet from a side lot line of an abutting property to the rear; (c) may not exceed 15 feet in height; and (d) may not be habitable. A dwelling unit developed under SB 9 is subject to a 4 foot side and rear setback. A site feature proposed within these distances may require a design review permit under division 17.66.
Floor area ratio*	Subject to exception for accessory dwelling unit construction set forth in division 17.38 or for a dwelling unit developed under SB 9 set forth in division 17.54: Maximum 55% of the lot area if the parcel is 5,000 square feet or less. Maximum 50% of the lot area if the parcel is 5,001 square feet to 10,000 square feet. Maximum 45% of the lot area if the parcel is more than 10,000 square feet.

* In order to encourage development within the existing building envelope instead of building outwards or upwards, the floor area ratio standard is not applied to finishing an area into habitable space if: (1) there is no expansion of the exterior building envelope; and (2) the owner has not obtained a final inspection within the prior three years on a building permit issued for an expansion of the building envelope. (Ordinance 772 N.S., 03/2024)

** Pursuant to Government Code section 65852.2(a)(1)(D)(vii). (Ord. 747 N.S., 02/2020, Ord. 768 N.S., 01/2023, Ord. 772 N.S., 03/2024)

Please refer to division 17.54 for standards for a lot split and two-unit housing developments performed under SB 9."

SECTION 4 – AMENDMENT OF SUBSECTION 17.28.040.A

Subsection 17.28.040.A of Section 17.28.040 [Regulations] of the City Code is amended in its entirety to read in its entirety as follows:

"A. The following development standards apply to the development of all uses in Zone E, except those listed in Section 17.28.040.B.:

	Zone E requirements

Lot area	Minimum 20,000 square feet, subject to exception for accessory dwelling unit construction set forth in division 17.38 or for a lot split under SB 9 set forth in division 17.54
Frontage, on public or private street	Minimum 120 feet, subject to an exception for a lot split under SB 9 as set forth in division 17.54
Lot coverage; landscaping	Subject to exception for accessory dwelling unit construction set forth in division 17.38: Maximum 40% lot coverage for primary and accessory structures. (A site feature is not calculated in the lot coverage if (1) the feature is not more than 7 feet height and (2) the total of all site features is 400 square feet or less.) Minimum 40% landscaping.
Structure height	Maximum 35 feet, except accessory dwelling units shall be subject to restrictions set forth in division 17.38.
Street yard setback	Minimum 20 feet for primary and accessory structure, subject to exception for accessory dwelling unit construction set forth in division 17.38. However, structure to support pedestrian and vehicular access, such as retaining walls and driveway bridges, no taller than 8 feet, shall be allowed in the street yard setback. No minimum setback for a site feature, but a site feature may require a design review permit, under division 17.66.
Side yard and rear yard setback	Minimum 20 feet for primary or accessory structure, unless the yard is street facing, in which case the minimum is 20 feet, except that a setback of only 4 feet is required for a new structure to be used as an accessory dwelling unit, and no setback is required for conversions of an existing structure to an accessory dwelling unit or portion thereof in the same location and same dimensions.** However, an accessory structure not to be used as an accessory dwelling unit may be located anywhere within the side and rear setback areas except that it: (a) must be located within 35 feet of the rear lot line; (b) must be located at least 5 feet from a habitable structure on an abutting property, and, for a corner lot, at least 5 feet from a side lot line of an abutting property to the rear; (c) may not exceed 15 feet in height; and (d) may not be habitable. These distance requirements for an accessory structure also apply to a garage or carport attached to a primary structure. No minimum setback for a site feature, but a site feature may require a design review permit under division 17.66. A dwelling unit developed under SB 9 is subject to a 4 foot side and rear setback.
Floor area ratio*	Subject to exception for accessory dwelling unit construction set forth in division 17.38, or for a dwelling unit developed under SB 9 set forth in division 17.54:

	Maximum 55% of the lot area if the parcel is 5,000 square feet or less. Maximum 50% of the lot area if the parcel is 5,001 square feet to 10,000 square feet. Maximum 45% of the lot area if the parcel is more than 10,000 square feet.

* In order to encourage development within the existing building envelope instead of building outwards or upwards, the floor area ratio standard is not applied to finishing an area into habitable space if: (1) there is no expansion of the exterior building envelope; and (2) the owner has not obtained a final inspection within the prior three years on a building permit issued for an expansion of the building envelope.

** Pursuant to Government Code section 65852.2(a)(1)(D)(vii). (Ord. 743 N.S., 05/2018, Ord. 747 N.S., 02/2020, Ord. 768 N.S., 01/2023, Ord. 772 N.S., 03/2024, Ord. 788 N.S., 2/2026)

Please refer to division 17.54 for standards for a lot split and two-unit housing developments performed under SB 9.

B. In Zone E, for uses other than those listed above, the development standards are as follows:
   1. Wireless communications facility as provided in division 17.46.

C. For lots that are larger than 5,000 square feet, an ADU shall be constructed:
   a. when a new single-family residence is proposed on a vacant lot.
   b. when an existing single-family residence is demolished for a remodel or reconstruction, except when a single-family residence is being reconstructed to the same or similar square footage due to damage or destruction by accident, fire, flood, earthquake, or other act of nature. (Ord. 772 N.S., 03/2024)

ARTICLE 3. SPECIAL REGULATIONS

Divisions:

17.30 Parking
17.32 Fences; Trash enclosures; Corner obstructions
17.34 Landscaping
17.36 Signs
17.38 Accessory dwelling units
17.40 Residential Rentals
17.42 (Not used)
17.44 Home occupations
17.46 Wireless communications
17.48 Cannabis cultivation and facilities
17.50 Non-conforming uses and structures

DIVISION 17.30 PARKING

Sections:

17.30.010 Single family residential and similar use (All zones)
17.30.020 Multi-family residential and similar group residential use (Zones A, B, C and D)
17.30.030 Commercial use and mixed-use residential/commercial (Zone D)
17.30.040 Location of parking spaces
17.30.050 Size and specifications
17.30.060 No reduction of existing parking
17.30.070 Compliance with Americans with Disabilities Act (ADA)

17.30.010 Single family residential and similar use. (All zones)

A. Applicability. This section 17.30.010 applies to the following uses: single-family residential, small and large family day care homes, manufactured and mobile homes, low barrier navigation centers, supportive and transitional housing, residential care facilities or group homes that provide licensable services for up to 6 residents, residential care facilities or group homes that do not provide licensable services, and employee housing for up to 6 employees, and development projects under division 17.54 in any zone:

1. new development; and

2. existing development (which may be nonconforming under division 17.50), when an applicant seeks a building permit or land use approval for an improvement or change that may affect the need for parking. Exceeding certain underlying zoning regulations as indicated in the table in section 17.30.010.B.1 or an increase in the intensity of use will

affect the need for parking. Existing street width and existing demand for on-street parking are factors in considering the intensity of use.

B. Regulations.

1. General.

Dwelling Unit	Minimum number of off-street, covered, non-tandem parking spaces
Accessory dwelling unit (division 17.38)	0*
New primary unit** 800 square feet or less	1
New primary unit** greater than 800 square feet	2
Primary unit that exceeds FAR, lot coverage or structure height of the underlying zone	1 additional parking space; for a maximum total of 3 parking spaces.
SB-9 development (division 17.54)	1 per primary unit. If the parcel is located within one-half mile walking distance of either a high-quality transit corridor as defined in subdivision (b) of Section 21155 of the Public Resources Code, or a major transit stop as defined in Section 21064.3 of the Public Resources Code, then parking is not required for the new primary unit. Additional parking spaces for a unit can be stacked or tandem.

* Under Government Code section 65852.2, the city may not require parking for an accessory dwelling unit located within 1/2 mile of public transit, and all Piedmont properties are within 1/2 mile.
** primary unit refers to single family residence, small and large family day care homes, manufactured and mobile homes, low barrier navigation centers, supportive and transitional housing, residential care facilities or group homes that provide licensable services for up to 6 residents, residential care facilities or group homes that do not provide licensable services, and employee housing for up to 6 employees. (Ord. 788 N.S. 2/2026)

2. Parking spaces may not be located within a 20-foot street setback.

3. When considering an application, the city may strictly apply the parking regulations under subsection B.1 above if the proposed construction will have an undue adverse impact on neighborhood vehicular congestion. A determination of undue adverse impact must be based on evidence considering one or more of the following factors: existing street width; existing on-street parking conditions; lack of sidewalks; and street slope and curvature. (Ord. 747 N.S., 02/2020, Ord. 772 N.S., 03/2024)

17.30.020 Multi-family residential and similar group residential use. (Zones A, B, C and D).

A. Applicability. This section applies to each multi-family and similar group residential use in Zones A, B, C and D, including but not limited to: large family day care home, residential care facilities or group homes the provide licensable services for more than 7 residents, single-room occupancy, co-housing, multi-family residential, senior housing, housing for persons with disabilities, and religious institution affiliated housing.

	Minimum number of off-street covered parking spaces	
Accessory dwelling unit (division 17.38)	0*	
Multi-family development, Independent living senior housing, independent living disabled persons housing	1 space per studio or 1 bedroom unit	Exception: Planning Commission shall reduce to 50% of required spaces when: a. Development is within ½ mile of regularly scheduled public transit stop; and b. At least 50% of units are deed-restricted for a period of 55 years to low-income households.
	1.5 space per 2 or more-bedroom unit	
Licensed residential facility or group home for 7 or more residents	1 space per bedroom	
Single room occupancies or co-housing	1 space per bedroom Exception: Planning Commission shall reduce to 50% of required spaces when: a. Development is within ½ mile of regularly scheduled public transit stop; and b. At least 50% of units are deed-restricted for a period of 55 years to low-income individuals.	
Religious institution affiliated housing	as provided in Section 65913.6 of the Government Code	
Senior housing, disabled persons housing (Assisted Living)	0.5 space per studio or 1 bedroom unit	Additionally, 1 parking space for each employee on-site at peak staffing.
	0.75 space per 2 or more-bedroom unit	

* Under Government Code section 65852.2, the city may not require parking for an accessory dwelling unit located within 1/2 mile of public transit, and all Piedmont properties are within 1/2 mile.

(Ord. 747 N.S., 02/2020, Ord. 772 N.S., 03/2024)

B. Additional Parking. Guest or management parking shall be provided for all development types under this section with the exception of accessory dwelling units and religious institution affiliated housing development.

Guest or management Parking	1 space plus an additional parking space for every 10 dwelling units. Exception: Planning Commission shall reduce to 50% of required spaces when: a. Development is within ½ mile of regularly scheduled public transit stop; and b. At least 50% of units are deed-restricted for a period of 55 years to low-income households.

(Ord. 772 N.S., 03/2024)

17.30.030 Commercial use and mixed-use residential/commercial. (Zone D).

A. Residential uses in mixed use commercial/residential: same as provided in section 17.30.020, except as otherwise provided for commercial uses in section 17.26.060.

B. Commercial uses:

Use Type	Minimum number of off-street, covered, non-tandem parking spaces per floor area	
	First 1,500 square feet	In excess of 1,500 square feet
Eating places and similar, high-intensity on premise customer uses	Each 500 square feet: 1[1]	Each 250 square feet: 1[1]
Retail stores, offices, and other low-intensity uses	Each 750 square feet: 1[1]	Each 350 square feet: 1[1]

[1]Or as required by conditional use permit. (Ord. 747 N.S., 02/2020)

C. Shared Parking: At least 80% of the total residential parking spaces within a mixed-use development parking arrangement (parking garage or surface parking) shall be dedicated to residential uses. The remaining residential parking spaces can be shared between commercial and residential uses (Ord. 788 N.S., 2/2026)

17.30.040 Location of parking spaces.

A. Parking for a permitted use in any zone must be located: (1) on the same lot as the permitted use; and (2) not within the street setback in Zones A, B and E. Parking for a conditional use in any zone will be provided as required by the conditional use permit authorizing the use.

B. In Zones A and E, the parking of vehicles between the street-facing façade of a building and a lot line is prohibited, except for the parking of vehicles on driveways, parking pads and within parking structures. (Ord. 788 N.S., 2/2026)

17.30.050 Size and specifications.

Except as otherwise provided, a parking space required by this section must have unrestricted access to a public street with a grade not more than 20%. In Zone A, one of every three required parking spaces may be for a compact car, and in Zones C and D, one of every four required parking spaces may be for a compact car.

The minimum parking space dimensions are:

8-1/2 feet x 18 feet, or

7-1/2 feet x 15 feet for compact car.

A minimum 1-foot clearance must be provided between the length side of a parking space and the nearest wall or similar obstruction. (Ord. 743 N.S., 05/2018)

17.30.060 No reduction of existing parking.

Except for (1) the demolition of a garage, carport, uncovered parking space, or covered parking structure in conjunction with the construction of an accessory dwelling unit, or (2) conversion of a garage, carport, uncovered parking space, or covered parking structure for use as an accessory dwelling unit, no person may alter, eliminate, or restrict access to an existing parking space unless the Planning Director first determines that the space is (1) unusable, (2) is to be restored or replaced with a parking space which meets the requirements of this division 17.30, or (3) is permitted with a variance approved by the Planning Commission or City Council. For purposes of making this determination, the term unusable means that the parking space is not large enough to contain a compact-sized automobile or that the driveway to the parking space is so steep, narrow or otherwise configured that it precludes safe passage of the vehicle, and that enlargement to permit safe passage would result in severe economic hardship.

No garage or other off-street parking may be altered for a use other than parking, unless otherwise allowed under this chapter. (Ord. 777 N.S., 01/2025)

17.30.070 Compliance with American with Disabilities Act (ADA).

The Chief Building Official may adjust the parking requirements in zones B, C or D without a conditional use permit or design review permit, to meet the requirements of the Americans with Disabilities Act.

DIVISION 17.32 FENCES; TRASH ENCLOSURES; CORNER OBSTRUCTIONS

Sections:

17.32.010 Fence, wall, retaining wall, hedge, terracing
17.32.020 Trash enclosure
17.32.030 Corner obstructions

17.32.010 Fence, wall, retaining wall, terracing.

A fence, wall, retaining wall, or terracing is subject to these height limit and design review permit requirements:

	Height, measured from exiting or proposed grade; Design review permit requirement
Retaining wall, with or without guardrail	Maximum 30 inches. (No design review permit required.) If more than 30 inches, requires a design review permit under division 17.66.
Fence, wall, or a combination of either with a retaining wall within 24 inches	
Within street setback	Requires a design review permit under division 17.66 for any height.
Other areas	If 6 feet or less: exempt from design review permit. If more than 6 feet high, requires a design review permit, under division 17.66. If more than 8 feet high, requires a design review permit, under division 17.66, with notification requirements of division 17.62. Up to 8 feet tall allowed in Zones C and D when property line is shared with single-family uses or lots in in all zones.
Retaining wall under SB 9 for Zones A and E	
Within street setback	Up to 8 feet tall to support pedestrian and vehicular egress and ingress needs such as driveways and entry pathways.
Other Areas	Maximum of 5 feet.
Trash enclosure	(See general requirements in subsection B.1, below.)
Within street setback	No building permit or design review permit required if the enclosure complies with section 17.32.020, subsections A and B below. Otherwise requires design review permit under division 17.66.
Other areas	No building permit or design review permit required if the enclosure complies with section 17.32.020 B below.
Terracing	Design review is not required if a series of one or more retaining walls and fences, at least 24 inches apart, on a single slope is designed so that no single wall or fence exceeds the height limits in this subsection.

(Ord. 788 N.S., 02/2026)

17.32.020 Trash enclosure.

A. General requirement. A trash enclosure must be:

1. a solid fence, wall, or combination of fence and retaining wall at least four feet in height and up to six feet in height; or

2. an open fence up to six feet in height in combination with dense, evergreen landscaping at least four feet in height at maturity and up to any height; or

3. dense, evergreen landscaping at least four feet in height at maturity and up to any height.

B. Standards. A design review permit is not required, but a trash enclosure within a street setback will be reviewed at the planning counter for compliance with this chapter and the Piedmont Design Standards and Guidelines (Trash Enclosures). The enclosure must be:

1. located as far away from the street as possible;
2. as small as is necessary to enclose the carts;
3. as low in height as necessary to adequately screen the carts; and
4. designed in compliance with the Piedmont Design Standards and Guidelines.

(Ord. 769 N.S., 10/2023)

17.32.030 Corner obstructions.

No fence, wall, retaining wall, hedge, or vegetation may be erected or grown in the front or street side yard of a corner lot to a height of more than three feet within the sight distance zone, a triangular area formed by measuring 30 feet along the front and side lot lines along the right-of-way from their "extended" intersection and connecting these two points, or as otherwise may be approved by the Planning Commission.

DIVISION 17.34 LANDSCAPING.

Section:

17.34.010 Intent
17.34.020 Landscape plans
17.34.030 Decision
17.34.040 Requirements
17.34.050 Completion
17.34.060 Maintenance

17.34.010 Intent.

The regulations in this division are intended to maintain and enhance the city's residential character, preserve the architectural heritage, protect the city's natural beauty and visual character, improve property values, and prevent blighted areas.

17.34.020 Landscape plans.

A. When required.

1. An applicant must include landscape plans in an application for a conditional use permit, design review permit, or variance for a new residence or other building.

2. The Planning Director, Planning Commission or City Council may request that an applicant prepare landscape plans with an application for a building permit, conditional use permit, design review permit, wireless communications facility, or variance for improvements which substantially disturb the site.

B. Application fee. The fee for approval of a landscape plan is included in the fee for the accompanying application as provided in section 17.60.040.

C. Contents. Plans must clearly set forth the areas and types of existing and proposed landscaping, and their relation to the structure(s) requiring the approval or permit. Landscaping must conform to Piedmont Design Standards and Guidelines as well as any state regulations, including the California Water Efficient Landscape Ordinance (23 Cal. Code of Regulations Division 2, Chapter 2.7).
(Ord. 769 N.S., 10/2023)

17.34.030 Decision.

The decision-making body for the accompanying application will take action on the landscape plan, at the same time and in the same manner as that required for the underlying application. That body may modify the design and attach conditions as appropriate to assure compliance with this division. The conditions may include installation of an irrigation system.

The applicant may appeal a decision on the landscape plan under division 17.78, Appeals.

17.34.040 Requirements.
The minimum dimensions and areas for landscaping are set forth in the regulations for each zoning district.

A residential property owner must landscape all required street setback areas, except for areas paved for ingress and egress. This requirement does not apply to a mixed use or multifamily development (Ord. 788 N.S., 02/2026)

17.34.050 Completion.
The applicant must complete the landscaping to the satisfaction of the Planning Director and/or Chief Building Official. The city may require a cash deposit or letter of credit to assure completion. If required, the city will release the financial security in increments proportionate to the progress of landscape completion. The city may withhold final approval of a project until landscaping is completed.

17.34.060 Maintenance.
All landscaped areas required here or as a condition of approval must be planted with living materials, and if mulch is used it must be made from organic material. The landscaped area must be maintained in a healthy and attractive state, with irrigation, weeding, and replacement as needed. The decision-maker may, as a condition of approval of any landscaping, require execution of a contract for the maintenance of the landscaping.

DIVISION 17.36 SIGNS.

Sections:

17.36.010 Applicability; Definition
17.36.020 Purpose
17.36.030 Public property
17.36.040 Private property
17.36.050 Substitution of message
17.36.060 Nonconforming signs
17.36.070 Enforcement

17.36.010 Applicability; Definitions

A. Applicability. This division applies to any sign located on real property and visible to the public. This division does not apply to:

1. a sign held or otherwise mounted on a person;
2. a sign posted on the interior of a building or structure (except windows visible to the public);
3. a sign posted on property owned by the Piedmont Unified School District; or
4. any sign mandated, regulated, or expressly permitted by law including the City Code, permits issued by other public agencies, the California Building Code, and the California Manual on Uniform Traffic Control Devices.

No variance is authorized under this division.

B. Definitions. In this division:

Commercial message means a message by a speaker likely to be engaged in commerce targeting an audience of actual or potential customers where the content of the message is commercial in character.

Commercial sign means any sign containing a commercial message.

Construction sign means any sign displayed at a site under construction and providing information on contractors or professionals working on the project along with contact information for the contractors or professionals.

Director of Public Works means the Director or his or her designee.

Nit means a measurement of brightness of light.

Noncommercial message means any message except for a commercial message.

Noncommercial sign means a sign including but not limited to a campaign sign, student graduation announcement, baby announcement, or non-profit group affiliation sign, that does not contain a commercial message.

Nonresidential parcel means all parcels except for residential parcels.

Residential parcel means a parcel of real property containing a single-family residence, accessory structure or associated use, or a multi-family residential project.

Sign means one or more visual figures, including but not limited to words, letters and numbers, other writings, designs, pictures and illustrations, or any combination of those, which are erected, placed on, fixed to, painted or represented on or above a building or structure, window, sidewalk, street or other way, on the ground or any part of a building or structure, or in any other manner so as to be visible to the public. Sign includes, but is not limited to, a banner, handbill, pennant, insignia, bulletin board, ground sign, billboard, poster, mural, electronic advertising and information device, illuminated sign, and marquee.

Temporary freestanding sign means any sign constructed of cloth, canvas, light fabric, cardboard, wallboard, wood or other light materials, with or without frames, supported by one or more upright poles or rock, block, A-frame, or masonry base in or upon the ground and not attached to a building.

17.36.020 Purpose.

The purposes and intent of this division is to:

A. Regulate signs located on all real property in the City over which the City has zoning and land use regulatory power.

B. Maintain and enhance the City's appearance by regulating the design, character, location, number, type, quality of materials, size, illumination, and maintenance of signs.

C. Serve the City's interests in maintaining and enhancing its visual appeal for residents, tourists, and other visitors by preventing the degradation of visual quality which can result from excessive and poorly designed, located, or maintained signage.

D. Generally limit commercial signs to on-site locations in order to protect the aesthetic environment from the visual clutter associated with the unrestricted proliferation of signs, while providing channels of communication to the public.

E. Limit the size and number of signs to levels that reasonably allow for the identification of a residential, public, or commercial location and the nature of any such commercial business.

F. Encourage signs that are appropriate for the property on which they are located and consistent with the permitted uses of that property.

G. Minimize the possible adverse effects of signs on nearby public and private property, including sidewalks, streets, roads, and highways.

H. Protect the investments in property and lifestyle quality made by persons who choose to live, work, or do business in the City.

I. Protect and improve pedestrian and vehicular traffic safety by balancing the need for signs that facilitate the safe and smooth flow of traffic (e.g., directional signs and on-site signs) without an excess of signage which may distract drivers or overload their capacity to quickly receive information.

J. Reduce hazardous situations, confusion and visual clutter caused by the proliferation, placement, illumination, animation and excessive height, area, and bulk of signs which compete for the attention of pedestrian and vehicular traffic.

K. Regulate signs in a manner so as to not physically interfere with or obstruct the vision of pedestrian or vehicular traffic.

L. Avoid unnecessary and time-consuming approval requirements for certain minor or temporary signs that do not require review for compliance with the City's building and electrical codes, while limiting the size and number of such signs so as to minimize visual clutter.

M. Respect and protect the right of free speech by sign display, while reasonably regulating the structural, locational, and other noncommunicative aspects of signs, generally for the public health, safety, welfare and specifically to serve the public interests in community aesthetics and traffic and pedestrian safety.

N. Enable the fair, consistent, and efficient enforcement of the sign regulations of the City.

O. Regulate signs in a constitutional manner, which is content neutral as to Noncommercial signs and viewpoint neutral as to Commercial signs. All administrative interpretations and discretion are to be exercised in light of this policy and consistent with the purposes and intent stated in this section.

P. Recognize that properties owned by the Piedmont Unified School District serve many functions, including as places of learning, athletic venues, and community centers, and reserve for the Piedmont Unified School District the discretion to regulate the posting of signs on its properties in a manner that balances the need to maintain safe and aesthetically attractive facilities with the need to create environments that promote learning and foster civic engagement.

17.36.030 Public Property.

A. Prohibition. Except as permitted under section (B) below, no person may display a sign on public property or within the public right-of-way, including, but not limited to, a street, sidewalk, flight of stairs, pathway, lane, roof, or alley. No person may paint, mark, or write on, or post or otherwise affix a sign to or on a street lamp post, hydrant, tree, shrub, tree stake, or guardrail, public utility structure or poll, wire system, street sign, traffic sign, traffic signal, wall, fence, or other structure located on public property or within the public right-of-way.

B. Exceptions.

1. Signs Posted by the City. The signs posted by the City of Piedmont are not subject to any permit requirements or design standards.

2. Sidewalks. A temporary freestanding sign no larger than four square feet on a side (excluding the frame) may be placed on a City sidewalk or curbside planting strip on Saturdays and Sundays between 12 p.m. and 5 p.m., as long as the sign does not impede pedestrian or vehicular traffic or otherwise constitute a safety hazard.

3. Piedmont Park, 801 Magnolia Avenue City Building, and Veterans' Memorial Building. A group or individual hosting a permitted event in Piedmont Park, at the City-owned property at 801 Magnolia Avenue, or at the Veterans' Memorial Building may place up to two temporary freestanding signs no larger than four square feet on a side (excluding the frame) in Piedmont Park, on the grounds of 801 Magnolia Avenue, on the grounds of the Veterans' Memorial Building, or on the curbside strips adjacent to these properties as long as the sign does not impede pedestrian or vehicular traffic or otherwise constitute a safety hazard. The signs may be displayed during the permitted event and for a period not to exceed 2 hours before the start of the permitted event and 2 hours after the conclusion of the permitted event.

4. Other public property. The Director of Public Works or the Director's designee may display or cause the display of one or more signs in the following locations:

a. Across Magnolia Avenue at the intersection of Highland Avenue and Magnolia Avenue.

b. On the fence enclosing the Piedmont Corporation Yard.

c. On backstops or fences within or surrounding Coaches Field, Beach Playfield, Hampton Field, Corey Reich Tennis Center, the City pool, and other City-owned recreation facilities.

d. On bridge railings near Piedmont Community Hall.

5. Signs relating to City-supported events displayed in the public right-of-way. Each year, the City Council may consider and approve a list of City-supported events for signage display within the public right-of-way, subject to standards developed by the Director of Public Work or the Director's designee to ensure safety of all users along the path of travel within the public right-of-way.

6. It is the City's intent that the locations listed in subsections 4 and 5 constitute non-public forums to promote City-supported community events benefiting the community and to provide the community with information, including noncommercial matters of general community interest. The Director of Public Works shall develop sign standards, including those for location and dimension. Signs placed in the locations specified in subsections 4 and 5 must be removed within 10 days following the conclusion of an event.

17.36.040 Private property.

A. Generally

1. Consent required. The consent of the property owner or the person in control of the property is required before placing any sign on private property.

2. Noncommercial signs. This division shall not prohibit owners or occupants of private property to post noncommercial signs on their property. Noncommercial signs placed on residential parcels shall comply with subsection B below. Noncommercial signs placed on nonresidential parcels shall comply with subsection C below. A noncommercial sign related to an event and posted on private property shall be removed no later than ten days after the event is completed. A noncommercial sign not related to an event and posted on private property shall be removed no later than six months from the day the sign was first posted.

3. Real estate signs. This division shall not limit the right of property owners or their agents to place real estate signs on their property pursuant to Civil Code § 713.

4. Construction signs. Construction signs with a maximum total size not exceeding 8 square feet each, are exempt from the regulations of this division. No freestanding construction sign shall exceed five feet in height. One construction sign is allowed per contractor or design professional for construction performed with a building permit. Construction signs shall not be erected until a building permit has been issued and shall be removed immediately following approval of a building permit final inspection or the expiration of a building permit, whichever comes first.

5. Prohibited signs. Unless otherwise exempt, the following signs and locations of signs are prohibited:

i. A sign with lighting, colors, design or text that could be confused with a public traffic directional sign or traffic control device.
ii. A roof sign, including a roof-mounted sign.
iii. Balloon or similar inflated sign.
iv. Commercial signs that are animated and/or moving or include an audio component, including mechanically or human powered or held signs within the public right-of-way or on private property, given that the movement associated with such signs is particularly distracting to motorists and thus, poses traffic safety hazards.
v. Ground signs tethered to the ground and taller than 15 feet.

B. Residential parcels. No person may display a sign on a residential parcel (including contiguous property held by the same owner), unless the sign conforms to the following requirements:

1. Temporary freestanding noncommercial signs.

Number	Maximum of 5
Size	Maximum of 4 square feet per sign
Height	Maximum (including frame) is 4 feet
Location	Street yard of a residential parcel, but not in the public right of way
Lighting	No illumination

2. Noncommercial window signs.

Number	Maximum of 2
Size	Maximum of 4 square feet per sign
Location	Street yard-facing windows

3. Noncommercial entryway signs.

Number	Maximum of 2
Size	Maximum of 1 square foot per sign
Location	Attached to the front door, front gate to the parcel, front porch, or entryway to the residence
Lighting	No illumination

4. Multifamily developments. Notwithstanding subsections (1) and (2) above, the resident(s) of each unit of a multifamily development may display two noncommercial signs, not to exceed a total of four square feet in area per sign, in the windows of that unit. If the unit in a multifamily development includes a patio, deck, balcony, or other outdoor space in the exclusive possession of the resident(s) of that unit, the resident(s) may display up to two temporary freestanding noncommercial signs that satisfy the size, height, and lighting requirements of subsection (B)(1) of this section in that outdoor space. If the unit in a multifamily development includes a front gate to the unit, front porch, or entryway to the unit that is in the exclusive possession of the resident(s) of that unit, the resident(s) may display up to two noncommercial signs that satisfy the requirements of subsection (B)(3) of this section.

C. Private, Nonresidential Parcels. No person may display a sign on a nonresidential parcel, unless the sign conforms to the following requirements:

1. Signs Permitted as a Matter of Right.

a. Temporary freestanding signs. One temporary freestanding sign is permitted for each private nonresidential parcel that has frontage within forty feet of the curb line of a publicly-maintained street. The sign may be placed on private property, or within the first eighteen inches of any public property that is directly in front of the individual private nonresidential parcel. The sign may not exceed four square feet per side (excluding frame). A minimum passageway width of forty-eight inches must be maintained along the sidewalk in front of such sidewalk display sign. No temporary freestanding sign may be illuminated or placed outside a business during non-business hours.

b. Window signs. For each window on all private nonresidential parcels, signs may cover a maximum of 25 percent of the total window area within a single window frame.

2. Design review.

a. General. Each sign other than a sign permitted as a matter of right requires a design review permit by the Planning Commission.

b. Application; Planning Commission review; Standards for approval. An applicant shall submit an application for sign design review permit and the Planning Commission shall hold a hearing on the application in accordance with the application, notice and hearing requirements and procedures set forth in section 17.66.050. The decision of the Planning Commission may be appealed to the City Council in accordance with the appeal procedures of division 17.78. The hearing body will not approve the design of signage on a private nonresidential parcel unless the sign conforms to the purpose of this division, as stated in section 17.36.020, and meets the following standards:

i. Approval of the sign design review permit will not result in more than one wall-mounted sign per applicant for each building façade;

ii. Each sign shall be simple in design. Graphic depictions related to the nonresidential use are appropriate;

iii. Each sign shall be compatible in design, color and scale to the front of the building, adjoining structures and general surroundings;

iv. The sign shall be oriented toward the pedestrian and vehicular traffic;

v. The sign shall be constructed of sturdy materials;

vi. If illuminated, the sign shall be illuminated internally at the lowest level with adequate identification and readability. Digital signs shall not exceed a surface brightness of 5,000 nits when measured from the sign face at its maximum brightness during daylight hours and 100 nits from sunset to sunrise. Signs shall not have exposed fluorescent tubes or incandescent bulbs; and

vii. The design of the sign is consistent with the City's General Plan and Piedmont Design Standards and Guidelines.

D. Mixed use developments. No person may display a sign on a mixed use development parcel, unless the sign conforms to the following requirements:

1. A sign displayed by owners and occupants of nonresidential portions of a mixed use development must comply with section 17.36.040(C).

2. Signs displayed by owners and occupants of residential portions of a mixed use development must comply with section 17.36.040(B).

17.36.050 Substitution of message

A noncommercial message of any type may be substituted for all or part of the commercial or noncommercial message on any approved sign allowed under this division. No special or additional approval from the City is required to substitute a noncommercial message for any other message on an allowable sign provided the sign design is already approved or exempt from the approval requirements of this division and no design, structural, or electrical changes are being made.

17.36.060 Nonconforming signs

A permanently-located sign lawfully existing prior to the readoption of this code is permitted without conforming to this division, except that if the sign is altered, relocated, partially demolished, or reconstructed, this division applies. Normal repairs and maintenance which do not change the location or appearance of the sign are permitted without requiring conformity.

17.36.070 Enforcement

A. Illegal sign. An illegal sign is a sign in violation of this division and constitutes a public nuisance. An illegal sign includes, but not limited to:

1. A sign erected or displayed without a sign permit, unless the sign is exempt under the provisions of this division;
2. A sign prohibited under or violates the provisions of this division; or
3. A sign which is a danger to the public or which is unsafe.

B. Summary abatement. Upon the determination of the Director of Public Works that a sign placed on public property or within the right-of-way is unsafe or in violation of this division, the City may immediately remove and store the illegal sign without prior notice. The City shall immediately provide written notice of the removal to the owner and/or person responsible for placing the sign on public property or within the right-of-way, if known to the City. If the sign remains unclaimed for a period of fifteen days after removal, it will be deemed unclaimed personal property and may be disposed of by the City in accordance with applicable law. In the case of an unsafe or illegal sign removed by the City, the costs of such removal and storage will be borne by the owner and/or person responsible for placing the sign on public property or within the right-of-way, and may be collected by the City in the same manner as it collects any other debt or obligation. No sign that has been removed and stored by the City may be released until the costs of removal and storage have been paid. The determination by the Director of Public Works made under this subsection (B) and the costs of removal and storage of the sign may be appealed in accordance with Section 17.78 of the City code.

C. Abatement of illegal signs on private property. Illegal signs on private property are considered a nuisance and shall be abated under the provisions of Piedmont City Code Chapter 6. (Ord. 779 N.S., 05/2025)

DIVISION 17.38 ACCESSORY DWELLING UNITS

Sections

17.38.010 Purpose and intent
17.38.020 Definitions
17.38.030 Legal accessory dwelling units; Non-conforming accessory dwelling units; Requirements for rented accessory dwelling units
17.38.040 Permit requirement
17.38.050 Permit application and review procedures
17.38.060 Zoning regulations; Accessory dwelling unit development standards; Junior accessory; dwelling unit development standards; Projects subject to state mandated approval
17.38.070 Accessory dwelling unit size exception
17.38.075 Pre-approved Plans Incentive
17.38.080 Unpermitted accessory and junior accessory dwelling unit
17.38.090 Removal of Owner Occupancy Restrictions
17.38.100 Separate conveyance
17.38.110 Appeals

17.38.010 Purpose and intent.

The State Legislature has declared that accessory dwelling units are a valuable form of housing in California. Accessory dwelling units provide housing for family members, students, the elderly, in-home health care providers, the disabled, and others, at below market prices, and within existing neighborhoods. Homeowners who create accessory dwelling units benefit from added income, and an increased sense of security. (Gov't. Code § 65852.150.)

The city has a long history of various types of accessory dwelling units. By enacting this division 17.38, the City Council intends to:

A. Establish the requirements for accessory dwelling units and junior accessory dwelling units in the city, consistent with California Government Code section 65852.2 and 65852.22;

B. Encourage the use of existing accessory dwelling units and the construction of new accessory dwelling units, consistent with this Division;

C. Help achieve the goals and policies of the General Plan Housing Element by encouraging a mix of housing types affordable to all economic segments of the community; and

D. Clarify the requirements for the various kinds of accessory dwelling units in the city. (Ord. 768 N.S., 01/2023)

17.38.020 Definitions.

In this division 17.38, the following definitions apply, in addition to the definitions set forth in division 17.90:

Accessory dwelling unit means an attached or a detached residential dwelling unit that provides complete independent living facilities for one or more persons and is located on a lot with a proposed or existing primary residence. It shall include permanent provisions for living, sleeping, eating, cooking, and sanitation on the same parcel as the single-family or multi-family dwelling is or will be situated. An accessory dwelling unit may also include (1) an efficiency unit, as defined in Health and Safety Code section 17958.1 and (2) a manufactured home as defined in Health and Safety Code section 18007. (Formerly called second dwelling unit. See section 17.38.030 for types of accessory dwelling units and permits.)
(Ord. 769 N.S., 10/2023)

Affordable housing definitions:

Affordable Rent Level means that the accessory dwelling unit household's monthly cost of rent, plus the cost of electricity, gas, water and sewer service, and garbage collection ("utilities") is 30% or less than the upper limit of the annual gross household income, divided by 12, for a specified income category and household size as last published by the California Department of Housing and Community Development (HCD). The City shall determine maximum affordable rent levels for rent-restricted accessory dwelling units following the annual publication of the State Income Limits by HCD. In determining rent levels, the household size for rent-restricted accessory dwelling units shall be: studio, 1 person; one-bedroom, 2 persons; two-bedroom, 3 persons; and, three-bedroom, 4 persons. The cost of utilities for the accessory dwelling unit shall be included in the affordable rent level. For rent-restricted accessory dwelling units where utilities are separately metered and billed, and where the accessory dwelling unit household is responsible for the costs of that household's use of utilities, the maximum rent shall be set at 90% of the affordable rent level. (California Health and Safety Code section 50053)

Affordable unit means a dwelling unit for sale or rent that meets the California State Department of Housing and Community Development standards of income eligibility and affordable rent levels for Alameda County. (Health and Safety Code sections 50052.5(h) and 50053.)

Gross Household Income means the total monies earned or received by all occupants of an accessory dwelling unit age 18 and over, including: wages and all types of compensation, before any payroll deductions; spousal and child support; social security, retirement, disability, insurance, and other types of periodic payments; unemployment compensation and other payments in-lieu of earnings; welfare and other public assistance; interest, dividends and other payments generated from any real or personal property; net business income; and, any other type of payment determined to qualify as income by the U.S. Department of Housing and Urban Development (HUD) and as published in HUD's Housing Choice Voucher Program Guidebook. The annual gross household income is calculated by multiplying the monthly amounts earned or received at the time of certification by 12 and adjusting for anticipated payments and changes in amounts over the next 12 months.

Household means those persons who collectively occupy a housing unit. A household shall include any child or dependent, as defined Internal Revenue Code section 152, who is under the age of 18 or who is under the age of 24 and is a full-time student.

Household Size means the number of persons in a household.

Household, Extremely Low Income means a household with an annual gross household income of 30% or less than the Alameda County median annual gross household income for that household size as last published by HCD. (Health and Safety Code section 50079.5.)

Household, Low Income means a household with an annual gross household income between 50% and 80% of the Alameda County median annual gross household income for that household size as last published by HCD. (Health and Safety Code section 50079.5.)

Household, Moderate Income means a household with an annual gross household income between 80% and 120% of the Alameda County median annual gross household income for that household size as last published by HCD. (Health and Safety Code section 50093)

Household, Very Low Income means a household with an annual gross household income between 30% and 50% of the Alameda County median annual gross household income for that household size as last published by HCD. (Health and Safety Code section 50079.5.)

Junior accessory dwelling unit means a unit that is no more than 500 square feet in size and contained within a single-family residence, with a separate entrance. A junior accessory dwelling unit may include separate sanitation facilities, or may share sanitation facilities with the existing structure, but shall include an efficiency kitchen that provides for a cooking facility with appliances and a food preparation counter and storage cabinets that are of reasonable size in relation to the size of the junior accessory dwelling unit.

Primary unit means a principal, permitted single-family or multi-family dwelling. (Ord. 768 N.S., 01/2023; Ord. 769 N.S., 10/2023)

17.38.030 Legal accessory dwelling units; Non-conforming accessory dwelling units; Requirements for rented accessory dwelling units.

A. Legal accessory dwelling units.

The following are kinds of legal accessory dwelling units and permits. Each may be used and rented (subject to the business tax for rental property):

1. Accessory dwelling unit permit. An accessory dwelling unit or junior accessory dwelling unit permitted under an accessory dwelling unit permit is a legally existing accessory dwelling unit. (This includes an accessory dwelling unit approved subject to a variance and an accessory dwelling unit approved subject to exceptions and rent-restrictions, both under section 17.38.070.) If the unit is rent-restricted, then a tenant must be qualified by income level under the permit conditions of approval and the terms of the recorded declaration.

2. Second unit permit. A second unit permit issued before December 31, 2016 is a legal accessory dwelling unit.

3. Conditional use permit second unit. Between January 19, 1994 and July 1, 2003, second units were approved by conditional use permit. A second unit permitted under a conditional use permit during that period of time is a legal accessory dwelling unit.

4. Exempt accessory dwelling unit. If an accessory dwelling unit was established before 1930, and the City has confirmed the exempt status in writing, the accessory dwelling unit is a legally existing accessory dwelling unit.

5. Temporary use permit second unit. A temporary use permit second unit approved by the City between May 6, 1987 and July 1, 2003, under former Chapter 17D, is a legal accessory dwelling unit (and the temporary nature now recognized as permanent).

Any accessory dwelling unit or junior accessory dwelling unit that is not established pursuant to one of the above categories shall not be a legal accessory dwelling unit, except as may be specifically permitted under Government Code section 65852.23.

B. Non-conforming accessory dwelling units. A legal, non-conforming unit may not be modified or expanded except in compliance with division 17.50, Nonconforming buildings and uses.

C. Requirements for legal accessory dwelling units that are rented. If an accessory dwelling unit is rented to a tenant, these additional requirements apply:

1. Business tax. An accessory dwelling unit that is rented is subject to an annual business tax for rental property, under City Code chapter 10.

2. Rent restrictions. An accessory dwelling unit that has rent restrictions under the conditions of approval and recorded declaration(s) must be rented in accordance with those limitations. (See section 17.38.070.) (Ord. 768 N.S., 01/2023)

17.38.040 Permit requirement.

A. Accessory dwelling unit permit. An accessory dwelling unit permit is required for construction of an accessory dwelling unit or junior accessory dwelling unit or the modification of exterior features, size, or height of an existing accessory dwelling unit or junior accessory dwelling unit.

B. Building permit. A building permit shall be required for construction or modification of an accessory dwelling unit or junior accessory dwelling unit as set forth in the California Residential Code and other building standards adopted by the City. (Ord. 768 N.S., 01/2023)

17.38.050 Permit application and review procedures.

A. Application.

1. Application. An owner may apply for an accessory dwelling unit permit (or other city approval) by submitting a complete application to the Director on a form provided by the city.

2. Application fee. The owner shall pay an application fee in the amount established by City Council resolution.

B. Ministerial review. The Director shall review each application ministerially to determine if the development standards in section 17.38.060 are met, and shall within 60 days of a completed application approve or deny the application, except if the application to create an accessory dwelling unit or a junior accessory dwelling unit is submitted with an application to create a new single-family or multi-family dwelling on the lot, the Director shall delay acting on the permit application for the accessory dwelling unit or the junior accessory dwelling unit until permits for the new single-family or multi-family dwelling are approved. The Director will review the application without notice or public hearing. As part of a denial decision, the Director shall return in writing a full set of comments to the applicant with a list of items that are defective or deficient and a description of how the application can be remedied by the applicant, as specified in Government Code Section 66317(b), or any successor statute thereto. The time period for review may be tolled at the request of the applicant.

C. Decision and conditions. The Director shall render a decision in writing and shall state the reasons for approval or denial. The decision of the Director shall be final unless an appeal is filed in accordance with section 17.38.110. (Ord. 789 N.S., 03/2026)

17.38.060 Zoning regulations; Accessory dwelling unit development standards; Junior accessory dwelling unit development standards; Projects subject to state mandated approval.

A. Zoning regulations. A proposed accessory dwelling unit must comply with the zoning regulations for the district in which it is located, subject to the requirements or exclusions in this section. (See divisions 17.20 through 17.28.)

B. Accessory dwelling unit development standards. An accessory dwelling unit shall comply with all of the following development standards, except the Director may grant an exception to the unit maximum size restriction under section 17.38.070.

1. Size. An attached accessory dwelling unit may not exceed 50% of the existing living area up to a maximum of 850 square feet, or 1,000 square feet if the accessory dwelling unit will include more than one bedroom, except where a restriction to 50% of existing living area would result in a maximum size of less than 800 square feet, an attached accessory dwelling unit of no more than 800 square feet shall be permitted, subject to the zoning regulations and development standards in this section. A detached accessory dwelling unit may not exceed 850 square feet, or 1,000 square feet if the accessory dwelling unit will include more than one bedroom. The minimum floor area for an accessory dwelling unit shall be 150 square feet. The total floor area for a detached accessory dwelling unit shall not exceed 1,200 square feet.

2. Access. The accessory dwelling unit must have independent, exterior access.

3. Subdivision. No subdivision of land is authorized that would result in an accessory dwelling unit being located on a separate parcel, unless each parcel meets all of the zoning requirements for the zoning district in which it is located.

4. Building Height. A detached accessory dwelling unit shall not exceed a building height of 18 feet. An additional height of two feet for a detached accessory dwelling unit shall be allowed to accommodate a roof pitch that is aligned with the roof pitch of the primary dwelling unit. An attached accessory dwelling unit shall not exceed a building height of 25 feet or the height limitations for a primary dwelling unit of the underlying zoning district, whichever is lower.

5. Design Criteria. The design of the structure(s) housing the proposed accessory dwelling unit must meet applicable objective design criteria in the Piedmont Objective Design Standards and any additional design standards applicable to accessory dwelling units approved by the City Council

6. Limitations on city's approval. Under Government Code section 66314, or any successor statute, the following limitations apply to any city approval:

    a. Parking. When a garage, carport, uncovered parking space or covered parking structure is demolished in conjunction with the construction of an accessory dwelling unit or converted to an accessory dwelling unit, the City shall not require the replacement of off-street parking spaces.

    b. Side and Rear Setbacks. No setback is required to construct an accessory dwelling unit within an existing structure that is converted to an accessory dwelling unit or a new structure constructed in the same location and the same dimension as an existing structure. If an accessory dwelling unit is not converted from an existing structure, the minimum setback is four feet from the side and rear lot line.

    c. Street Yard Setback. Accessory dwelling units of 800 square feet or less can be constructed in the street yard setback in compliance with all other standards in this section, including height limits. Accessory dwelling units of more than 800 square feet can be constructed in the street yard setback only if it is determined by the Director that there is no alternative configuration on the property that would allow for the construction of the accessory dwelling unit outside the four feet side and rear setbacks in compliance with all other standards in this section, including height.

    d. Fire sprinklers. Accessory dwelling units shall not be required to have fire sprinklers if they are not required for the primary residence. The construction of an accessory dwelling unit shall not trigger a requirement for fire sprinklers to be installed in any other existing dwelling. Fire sprinklers shall be considered “required for the primary dwelling unit” in any of the following circumstances:

        i. When fire sprinklers are currently installed in the primary dwelling unit; or

ii. When fire sprinklers will be installed in a new primary dwelling unit constructed concurrently with an accessory dwelling unit.

e. Passageway. No passageway will be required.

f. Minimum lot area or lot size. Notwithstanding anything in divisions 17.20 through 17.28, no minimum lot area or lot size shall be imposed with respect to the approval of permits for an accessory dwelling unit.

g. Floor Area Ratio, Lot Coverage, and Landscaping.

i. Lot coverage. An accessory dwelling unit eight hundred (800) square feet in floor area or less, shall have no maximum lot coverage. Maximum lot coverage for an accessory dwelling unit greater than eight hundred (800) square feet in floor area shall be that of the underlying zoning district.

ii. Landscaping. An accessory dwelling unit eight hundred (800) square feet in floor area or less, shall have no minimum landscape area. Minimum landscape area for an accessory dwelling unit greater than eight hundred (800) square feet in floor area shall be that of the underlying zoning district.

iii. Floor Area Ratio. An accessory dwelling unit eight hundred (800) square feet in floor area or less, shall have no maximum floor area ratio requirement. Maximum floor area ratio for an accessory dwelling unit greater than eight hundred (800) square feet in floor area shall be that of the underlying zoning district.

iv. Certificate of Occupancy. The building official shall not issue a certificate of occupancy for an accessory dwelling unit before issuance of a certificate of occupancy for the primary dwelling or multi-family dwelling, unless the accessory dwelling unit is eligible pursuant to a proclamation of a state of emergency as specified in Government Code Section 66328(b), or any successor statute thereto.

v. Utility Connections. For an accessory dwelling unit described in section 17.38.060.D.1, the accessory dwelling unit shall not be required to install a new or separate utility connection directly between the accessory dwelling unit and the utility, and the accessory dwelling unit shall not be subject to a related connection fee or capacity charge, unless the accessory dwelling unit is constructed concurrently with a new single-family dwelling.

7. An ADU or JADU shall not be permitted on a lot created pursuant to Government Code Sections 65852.28 and 66499.41, as they may be amended from time to time. (Ord. 788 N.S., 2/2026)

C. Junior accessory dwelling unit development standards.

1. General provisions. The following provisions shall apply to junior accessory dwelling units:

    a. A junior accessory dwelling shall not be constructed unless a single-family dwelling unit exists on a site and such single-family dwelling unit has been constructed lawfully, or the junior accessory dwelling unit is proposed as part of the construction of the single-family dwelling unit. A junior accessory dwelling unit shall be a permitted use in any lot zoned to allow a single-family residential use.

    b. No lot shall contain more than one (1) junior accessory dwelling unit.

    c. A junior accessory dwelling unit shall be constructed within the existing space of the proposed or existing single-family dwelling, however, an expansion of not more than one hundred fifty (150) square feet beyond the same physical dimensions of the existing space of a single-family dwelling shall be permitted for purposes of accommodating ingress and egress. For purposes of this provision, enclosed uses within the residence, such as attached garages, are considered a part of the proposed or existing single-family residence.

    d. A junior accessory dwelling unit shall not be sold or otherwise conveyed separate from the single-family dwelling unit.

    e. A junior accessory dwelling unit shall have an exterior point of access directly into the junior accessory dwelling unit that is separate and independent from the single-family dwelling unit.

    f. A building permit shall be required to construct a junior accessory dwelling unit or to establish a junior accessory dwelling unit within the existing space of a single-family dwelling. Occupancy of a junior accessory dwelling unit shall be prohibited until the junior accessory dwelling unit receives a successful final inspection pursuant to a valid building permit and receives a certificate of occupancy issued on or after the date of the successful final inspection.

    g. A junior accessory dwelling unit that shares a bathroom with the existing or proposed single-family dwelling unit shall provide an interior entry to the existing or proposed single-family dwelling unit’s “main living area”.

2. Development standards. The following provisions shall apply to junior accessory dwelling units:

    a. A junior accessory dwelling unit shall not be considered a separate or a new dwelling unit for purposes of applying building or fire codes. Installation of fire sprinklers in a junior accessory dwelling unit of any type shall be required only if they are required for the primary dwelling unit. Fire sprinklers shall be considered "required for the primary dwelling unit” under the circumstances as specified in section 17.38.060.B.6.d.

b. The minimum floor area for a junior accessory dwelling unit shall be 150 square feet.

c. The maximum floor area for a junior accessory dwelling unit shall not exceed five-hundred square feet. If the sanitation facility is shared with the remainder of the single-family dwelling, it shall not be included in the square footage calculation for the junior accessory dwelling unit.

d. Setbacks for a junior accessory dwelling unit constructed with a new single-family dwelling shall be that of the underlying zoning district. No setback shall be required for a junior accessory dwelling unit contained within the existing space of a single-family dwelling or accessory structure. However, as permitted in this section, an expansion to an accessory structure of up to one hundred fifty (150) square feet to accommodate ingress and egress may be constructed only if the following setbacks are maintained:

   i. a street yard setback accordance with the applicable zoning district.
   ii. a minimum side yard setback of four feet.
   iii. a minimum rear yard setback of four feet.

e. No parking shall be required for a junior accessory dwelling unit.

f. No lot coverage or landscaping requirement shall apply to a junior accessory dwelling unit.

g. No height restriction shall apply to a junior accessory dwelling unit.

h. A junior accessory dwelling unit shall not be required to install a new or separate utility connection directly between the junior accessory dwelling unit and the utility.

i. A junior accessory dwelling unit may be constructed on a site that does not meet the minimum lot or parcel size requirements or minimum dimensional requirements of the underlying zoning district, provided that it is constructed in compliance with all building standards and other standards of this division.

j. An expansion to an accessory structure of up to one hundred fifty (150) square feet to accommodate ingress and egress for a proposed junior accessory dwelling unit must meet applicable design criteria in the Piedmont Objective Design Standards. This 150-square-foot of expansion can include removal of an uncovered parking space.

k. An ADU or JADU shall not be permitted on a lot created pursuant to Government Code Sections 65852.28 and 66499.41, as they may be amended from time to time. (Ord. 788 N.S., 2/2026)

3. Use Restrictions. The following restrictions shall apply to junior accessory dwelling units:

a. The City shall record a deed restriction with the County Recorder Office. The deed restriction shall prohibit the sale or other conveyance of the junior accessory dwelling unit separate from the single-family dwelling; specify that the deed restriction runs with the land and is therefore enforceable against future property owners; and restrict the size and features of the junior accessory dwelling unit in accordance with this section.

b. The site's owner may at any time offer for rent either the single-family dwelling unit or the junior accessory dwelling unit.

c. If a junior accessory dwelling unit has shared sanitation facilities with the existing structure, the site's owner shall not allow occupancy of the junior accessory dwelling unit by a tenant for any reason, with or without payment of rent, unless the site owner maintains occupancy on the site as their primary residence. The owner may reside in either the remaining portion of the structure or the newly created junior accessory dwelling unit pursuant to Government Code Section 66333(g).

d. Owner-occupancy shall not be required if the owner is a government agency, land trust, or housing organization.

e. A junior accessory dwelling unit may be rented but shall not be used for rentals of a term less than thirty (30) consecutive days. (Ord. 789 N.S., 03/2026)

D. Projects subject to state mandated approval. Notwithstanding anything in this code to the contrary, the Director and Building Official shall ministerially approve permits required to create any of the following within a residential or mixed-use zone:

1. One accessory dwelling unit and one junior accessory dwelling unit per lot with a proposed or existing single-family dwelling if all of the following apply:

a. The accessory dwelling unit or junior accessory dwelling unit is within the proposed space of a single-family dwelling or existing space of a single-family dwelling or accessory structure and may include an expansion of not more than 150 square feet beyond the same physical dimensions as the existing accessory structure. An expansion beyond the physical dimensions of the existing accessory structure shall be limited to accommodating ingress and egress.

b. The accessory dwelling unit has exterior access that is separate from the exterior entrance proposed or existing single-family dwelling.

c. The side and rear setbacks are sufficient for fire and safety.

d. The junior accessory dwelling unit complies with the requirements of Government Code Section 65852.22.

The converted or interior accessory dwelling unit and junior accessory dwelling unit in this subsection may be combined with a detached accessory dwelling unit as described in subparagraph 2 below, as specified in Government Code Section 66323(a) or any successor statute thereto.

2. One detached, new construction, accessory dwelling unit that does not exceed four-foot side and rear yard setbacks for a lot with a proposed or existing single-family dwelling, subject to the following requirements:

   a. A total floor area limitation of not more than 800 square feet.

   b. A height limitation of 18 feet, plus for single family residential zoned lots an additional two feet to accommodate a roof pitch that is aligned with the roof pitch of the existing or proposed main house.

   The new construction detached accessory dwelling unit in this subsection may be combined with a junior accessory dwelling unit and a converted or interior accessory dwelling unit as described in subparagraph 1 above, as specified in Government Code Section 66323(a) or any successor statute thereto.

3. Not more than eight (8) detached accessory dwelling units located on a lot that has an existing multi-family dwelling, with the maximum number of allowed accessory dwelling units equal to the number of existing primary multifamily units on the lot, subject to a height limit of 18 feet and four-foot yard setbacks. If the existing multi-family dwelling has a rear or side setback of less than four feet, modification of the existing multifamily dwelling is not required as a condition of constructing the accessory dwelling unit.

4. Conversion of portions of existing multi-family dwelling structures that are not used as livable space, including, but not limited to, storage rooms, boiler rooms, passageways, attics, basements, or garages, into new accessory dwelling units, provided that each unit shall comply with state building standards for dwellings. The number of new accessory dwelling units authorized for conversion under this subsection shall not exceed 25 percent of the existing dwelling units in the multi-family dwelling structure or one new accessory dwelling unit, whichever is greater. (Ord. 768 N.S., 01/2023; Ord. 769 N.S., 10/2023; Ord 782 N.S. 07/2025; Ord. 789 N.S., 03/2026)

17.38.070 Unit size exception.

A. Exception to unit size. The Director shall approve an exception to the maximum unit size set forth in section 17.38.060 B.1 for an accessory dwelling unit upon request of an applicant in accordance with the requirements of this section. If an exception is granted, the accessory dwelling unit shall be subject to all the requirements set forth below.

If the unit includes:	expansion up to 1,000 square feet	expansion to 1,200 square feet

One bedroom or less	Imposition of covenants requiring an affordable rent level to households of low income	Imposition of covenants requiring an affordable rent level to households of very low income
More than one bedroom	N/A	Imposition of covenants requiring an affordable rent level to households of very low income

B. Additional requirements. If an accessory dwelling unit permit with a unit size exception is approved, it is subject to the following additional requirements.

1. Rent restriction.

   a. Declaration of rent restrictions. The accessory dwelling unit permit with a unit size exception shall have a condition describing the type of rent restriction applicable to the property. The rent-restriction shall be recorded in the county recorder's office, as a declaration of rent restrictions (in a form provided by the city), and will remain in effect for ten years. The ten-year period of rent restriction begins either: (a) on the date of recordation or date of final building inspection, whichever is later; or (b) according to the terms of the conditions of approval or a recorded declaration.

   If, after ten years, the termination of the recorded declaration is not automatic (by its terms), the city will record a document terminating the declaration of rent restrictions, upon the written request of the property owner.

   b. Affordable rent certification. An owner who has executed a declaration must submit to the city an accessory dwelling unit affordable rent certification: (i) on an annual basis, by each December 31 and as part of the annual city business license application and renewal; and (ii) upon any change in occupancy of the accessory dwelling unit. The accessory dwelling unit affordable rent certification must be on a form provided by the city and must specify whether or not the accessory dwelling unit is being occupied; the rent charged; the utilities that are included in the cost of rent; the household size of the accessory dwelling unit; the names and ages of the accessory dwelling unit occupants; the gross household income of the accessory dwelling unit household; and other information as determined appropriate by the city. (Ord. 768 N.S., 01/2023)

17.38.075 Pre-approved Plans Incentive.

A. The Director may authorize an applicant's use of floor plans and elevations, owned by the City of Piedmont, and approved by the City Council, Chapter 3.4 of the Piedmont Objective Standards, to obtain Planning Division approval of an Accessory Dwelling Unit Permit if all of the following findings are made:

1. The design unit meets the requirements of section 17.38.060.
2. The roofing material and exterior siding material of the proposed unit are the same as that of the primary residence.

3. The plans are the same as those in Chapter 3.4 of the Piedmont Objective Design Standards with only a 3 percent variation or less in any one dimension.

If the approval is granted, the applicant must agree to the imposition of a rent restrictions on the unit requiring that any rent for the unit be affordable to households of very low income, and the accessory dwelling unit shall be subject to all the requirements set forth below.

B. Additional requirements. If an accessory dwelling unit permit using City-owned plans in Chapter 3.4 of the Piedmont Objective Design Standards is approved, it is subject to the following additional requirements.

1. Rent restriction.

a. Declaration of rent restrictions. The accessory dwelling unit permit constructed using City-owned plans shall be subject to declaration of rent restrictions (in a form provided by the city), which shall be recorded in the county recorder's office, as a declaration of rent restrictions, and will remain in effect for ten years. The ten-year period of rent restriction begins either: (a) on the date of recordation or date of final building inspection, whichever is later; or (b) according to the terms of the recorded declaration.

If, after ten years, the termination of the recorded declaration is not automatic (by its terms), the city will record a document terminating the declaration of rent restrictions, upon the written request of the property owner.

b. Affordable rent certification. An owner who has executed a declaration must submit to the city an accessory dwelling unit affordable rent certification: (i) on an annual basis, by each December 31 and as part of the annual city business license application and renewal; and (ii) upon any change in occupancy of the accessory dwelling unit. The accessory dwelling unit affordable rent certification must be on a form provided by the city and must specify whether or not the accessory dwelling unit is being occupied; the rent charged; the utilities that are included in the cost of rent; the household size of the accessory dwelling unit; the names and ages of the accessory dwelling unit occupants; the gross household income of the accessory dwelling unit household; and other information as determined appropriate by the city. (Ord. 788 N.S., 2/2026)

17.38.080 Unpermitted accessory and junior accessory dwelling unit.

A. An owner may apply for an accessory dwelling unit permit (or other city approval) to legalize and permit an unpermitted accessory dwelling unit or junior accessory dwelling unit that was constructed before January 1, 2020.

B. 1. An application to legalize an unpermitted accessory dwelling unit or junior accessory dwelling unit under section 17.38.080 above shall be approved if the City can make findings that the unpermitted construction complies with the standards specified in Section 17920.3 of the California Health and Safety Code. Compliance with either of the following shall not be required:

a. building standards pursuant to Article 1 (commencing with Section 17960) of Chapter 5 of Part 1.5 of Division 13 of the Health and Safety Code; and
b. division 17.38 of Piedmont City Code regulating accessory dwelling units or junior accessory dwelling units, or California Government Code Section 66333 et seq., as may be amended, applicable.

2. The application shall be denied if the City finds that the accessory dwelling unit or junior accessory dwelling unit is in violation of standards specified in Section 17920.3 of the California Health and Safety Code.

C. This section shall not apply to a building that is deemed substandard pursuant to Section 17920.3 of the California Health and Safety Code.

D. A homeowner applying for an accessory dwelling unit permit under section 17.38.080.A above, shall not be required to pay impact fees or connection or capacity charges except when utility infrastructure is required to comply with Section 17920.3 of the California Health and Safety Code and when the fee is authorized by Government Code Section 66324(e).

E. Upon receiving an application pursuant to section 17.38.080.A, an inspector from the City shall inspect the unit for compliance with health and safety standards and provide recommendations to comply with health and safety standards necessary to obtain a permit. If the inspector finds noncompliance with health and safety standards, the City shall not penalize an applicant for having the unpermitted accessory dwelling unit or junior accessory dwelling unit, shall provide in writing how the building can be bought into compliance, and shall approve necessary permits to correct noncompliance with health and safety standards.
(Ord. 777 N.S., 01/2025)

17.38.090 Removal of Owner Occupancy Restrictions.

A. The Director shall be authorized to remove any previously imposed owner-occupancy requirements imposed via deed restriction on any accessory dwelling unit previously permitted, by recording any appropriate documents rescinding the restriction, if the following criteria are met:

i. the applicant shall provide a copy of the original recorded deed restriction.
ii. the applicant agrees to an imposition of covenants either on the accessory dwelling unit or on the primary dwelling unit requiring an affordable rent level to households of very low-income for a period of 15 years, which shall be recorded in the county recorder's office, as a declaration of rent restrictions (in a form provided by the city), and will remain in effect for fifteen years. The fifteen-year period of rent restriction shall begin on the date set forth in the recorded declaration.

If, after fifteen years, the termination of the recorded declaration is not automatic (by its terms), the city will record a document terminating the declaration of rent restrictions, upon the written request of the property owner.

B. A property owner that receives removal of owner occupancy restrictions shall comply with certification requirements related to affordable rent set forth in section 17.38.070 B.1.b.

This section does not apply to owner-occupancy deed restrictions imposed on Junior Accessory Dwelling Units. (Ord. 768 N.S., 01/2023)

17.38.100 Separate Conveyance.

The City shall allow an accessory dwelling unit to be sold or conveyed separately from the primary residence to a qualified buyer if all of the criteria listed under Government Code Section 65852.26 are met. (Ord. 747 N.S., 02/2020; Ord. 768 N.S., 01/2023)

17.38.110 Appeals.

The Applicant may only appeal a determination that: (1) an application of an accessory dwelling unit or junior accessory dwelling unit is incomplete, or (2) an application of an accessory dwelling unit or junior accessory dwelling unit is denied.

A. Submission: The appeal shall be submitted in writing to the Director within 5 calendar days of the decision, stating the grounds for appeal. The request must be timely filed with the City Clerk, and accompanied by the appeal fee, which fee shall be established by Resolution of the City Council.

B. Hearing Body: The appeal will be heard by the Planning Commission, and review shall be conducted in accordance with Section 17.78.040. The decision of the Planning Commission is final and not subject to further appeals.

C. Timing: A final written decision on the appeal shall be issued within 60 days of the City's receipt of the written appeal request and payment of the appeal fee. (Ord. 789 N.S., 03/2026)

DIVISION 17.40 RESIDENTIAL RENTALS

Sections

17.40.010 Purpose and intent
17.40.020 Rented room
17.40.030 Short-term rental
17.40.040 Business license tax
17.40.050 Enforcement

17.40.010 Purpose and intent.

A. Purpose. The purpose of this division is to establish regulations governing the rental of residential property within the city.

B. Intent. By enacting this division 17.40, the city council intends to:

1. Provide a community benefit by allowing alternative forms of lodging, allowing residents to participate in the sharing economy, and allowing residents an opportunity for additional source of income.

2. Allow the renting of homes, apartments, or rooms for periods of 30 days or more.

3. Allow short term renting of single-family dwelling units and rooms in single-family dwelling units for less than 30 consecutive days, while still preserving the residential character of neighborhoods, and preventing short-term rental activities from becoming a nuisance or a threat to public health, safety or welfare;

4. Establish standards and a permit requirement for short-term rentals; and

5. Prohibit the short-term rental of accessory dwelling units, multi-family dwelling units, and units developed under division 17.54 to preserve them for long-term housing. (Ord. 742 N.S., 05/2018, Ord. 772 N.S., 03/2024)

17.40.020 Rented room.

A. Applicability and Purpose. This section 17.40.020 applies to the rental of a room or rooms in a residential property for a period of 30 consecutive days or longer and its purpose is to facilitate shared housing that aligns with the City's Housing Element program on shared housing, ensuring rented rooms are used as primary residences.

B. Definitions. In this section:

Owner means a property owner of a single-family or multi-family dwelling, as shown in the records of the Alameda County Assessor’s Office

Rented room means a room or any combination of rooms that is/are rented by an owner of a single-family dwelling or multi-family dwelling that meet the requirements of Section 17.40.020.C.2 and 17.40.020.D. (Ord. 774 N.S., 09/2024)

C. General.

1. The owner of a single-family or multi-family dwelling unit in any zoning district is permitted to rent multiple rooms in such dwelling unit, subject to the requirements of this section. With the written consent of the property owner, a tenant has the same right.

2. Each Rented Room must meet the following requirements:
   a. A Rented Room must include at least one bedroom.
   b. The tenant and the Owner, or the subtenant and tenant with Owner's consent, must enter into a form of written rental agreement.
   c. The rental period for a Rental Room is a minimum of 30 consecutive days.
   d. The tenant of the Rented Room must have the common use of the primary kitchen facilities, with no temporary or permanent cooking facilities in the Rented Room.
   e. The tenant of a Rented Room must have access to either a shared or separate bathroom.
   f. The maximum occupancy of any bedroom in a Rented Room is two people.
   g. The Rented must be occupied by the tenant as a primary residence, defined as that place where a person has his or her true, fixed, and permanent home and to which that individual has the intention of returning to, whenever absent.
   h. The Owner is required to get a business license as provided in 17.40.040.

D. Safety. The Owner is responsible for assuring that any Rented Room meets all Building Code requirements. The Owner must either (at the Owner's discretion):

1. Request that the City inspect the property to assure that the primary residence and the Rented Room meet Building Codes, consist of legally existing rooms eligible for use as a bedroom and habitable spaces. The Owner shall pay an inspection fee in the amount established by City Council resolution; or

2. Submit to the City a signed declaration in a form prepared by the city to warrant and represent that the Rented Room meets all Building Code requirements and consist of legally existing rooms eligible for use as a bedroom and habitable spaces. The declaration shall be kept in the property file at the City. (Ord. 774 N.S., 09/2024)

17.40.030 Short-term rental.

A. Applicability. This section 17.40.030 applies to short term rentals of less than 30 consecutive days. The short-term rental must be located in a single-family dwelling unit that is the primary residence of the property owner or long-term tenant. It may not be located in an accessory dwelling unit (permitted or unintended), a multi-family dwelling unit, or a dwelling unit created under division 17.54. The short-term rental may be hosted or non-hosted. (Ord. 772 N.S., 03/2024)

B. Definitions. In this section:

Advertising platform means any online site that provides a means for the host to advertise or otherwise offer for rent a short-term rental.

Host or *hosted* means the primary occupant of the dwelling is present during the short-term rental. *Non-hosted* means the primary occupant is not present during the short-term rental.

Operate means the operation of a short-term rental, and includes the acts of establishing, maintaining, or listing for rent a short-term rental with an advertising platform.

Primary Occupant means an occupant who is either the owner of the dwelling or a long-term tenant in the dwelling with a month-to-month lease or lease of a longer duration.

Short-term rental means the use of a dwelling unit, or portion of it, for a rental of less than 30 consecutive days.

Unintended accessory dwelling unit means a living space which meets the definition of an accessory dwelling unit, but which is not approved for habitation as an independent dwelling unit under the provisions of division 17.38. An unintended accessory dwelling unit may include a guest cottage, pool house, or rent-free unit for an au pair, domestic employee or family member.

C. Short-Term Rental Permit; Permit Issuance. No person may operate a short-term rental without first obtaining a short-term rental permit. A short-term rental permit may be approved by the Director, provided that the Director determines the applicant has met the following requirements:

1. Application. The applicant must complete an application on a form provided by the city, accompanied by a fee established by city council resolution.

2. Property owner consent. If the applicant is a tenant, he or she must demonstrate written approval of the property owner to allow short-term rentals.

3. Insurance. The applicant must provide evidence of, and maintain, general liability insurance of at least $1,000,000 during the term of the short-term rental permit that covers the applicant's short-term rental operations.

4. Contact information. The applicant must provide current contact information to the city, and information regarding the advertising platform(s) to be used.

5. Safety. The dwelling or rooms serving as a short-term rental must have a smoke detector, carbon monoxide detector, fire extinguisher, and adequate egress, all as determined by the chief building official. The applicant must either (at the applicant's discretion):

a. Request that the city inspect the property to assure that the primary residence and the rented rooms meet building codes, consist of legally existing rooms eligible for use as a bedroom and habitable spaces. The property owner shall pay a nominal inspection fee in the amount established by city council resolution; or

b. Submit to the city a signed safety declaration in a form prepared by the Director, to be kept in the property file at the city.

D. Appeals. Any interested party may appeal any decision by the Director to approve or deny a short-term rental permit pursuant to division 17.78 of the Piedmont City Code. No permit shall be deemed issued or effective until the appeal period set forth in division 17.78 has expired.

E. Permit Term and Renewal. A short-term rental permit is valid until December 31 of the year it is issued, unless suspended or revoked. The permittee may renew the permit annually, by submitting a renewal application and fee before the expiration of the permit.

F. Operating standards. A short-term rental is allowed only if it conforms to these standards:

1. Permit. The short-term rental is operated under a short-term rental permit issued by the city in accordance with Section 17.40.030.

2. 2-night minimum. The short-term rental must be rented for a minimum of two consecutive nights.

3. 60 days maximum. The short-term rental may not be rented more than 60 days in a calendar year.

4. No Events. The short-term rental may be used for dwelling, sleeping or lodging purposes, but may not be rented for any other commercial purpose, including temporary events or gatherings.

5. Guest Safety. The short-term rental permittee must provide the following materials electronically to any guests before arrival and make available printed materials on-site for the guest with the following information:

a. A diagram of exits, fire extinguisher locations, and fire and police contact numbers;

b. The short-term rental permittee's contact information;

c. The city's noise regulations (sections 12.8 – 12.12);

d. The city's smoking ordinance (chapter 12, article II);

e. The city's garbage and recycling guidelines (available on the city's website, or a print copy of the residential services guide: *recycling, organics and garbage*).

6. Current Information. The short-term rental permittee shall, during the term of the permit, promptly inform the Director regarding any changes regarding information provided in the application, including contact information and information regarding advertising platforms used by the permittee to advertise the short-term rental. (Ord. 742 N.S., 05/2018; Ord. 747 N.S., 02/2020)

17.40.040 Business license tax.

A person renting a room or multiple rooms or operating a short-term rental is considered to have rental property and must pay an annual business license tax under City Code chapter 10. (Ord. 742 N.S., 05/2018)

17.40.050 Enforcement.

The city may enforce this division by any means permitted by law, including but not limited to those set forth in chapter 1 (General Provisions), article 2 (Code Enforcement) of this code, or under division 17.80, Enforcement. The city council may establish fines by resolution. (Ord. 742 N.S., 05/2018)

DIVISION 17.42 ADDITIONAL BEDROOMS IN EXISTING DWELLING UNITS

Sections

17.42.010 Purpose and intent
17.42.020 Permit requirement
17.42.030 Permit application and review procedures
17.42.040 Standards

17.42.010 Purpose and intent.

The State Legislature has declared that local jurisdictions cannot adopt or enforce an ordinance requiring a public hearing as a condition of reconfiguring existing space to increase the bedroom count within an existing dwelling unit. (Gov't. Code § 65850.02.)

The regulations in this division are intended to establish a ministerial process with no public hearings for projects proposing additional bedrooms as provided in Government Code 65850.02. (Ord. 768 N.S. 01/2023)

17.42.020 Permit requirement.

A. Additional bedroom permit. Construction of not more than two additional bedrooms within an existing dwelling unit shall be permitted upon issuance of an additional bedroom permit by the Director, as provided in this Division.

B. Building permit. A building permit shall also be required for modifications of a dwelling unit as set forth in the California Residential Code and other building standards adopted by the City. (Ord. 768 N.S. 01/2023)

17.42.030 Permit application and review procedures.

A. Application.

1. Application. An owner may apply for permits to construct additional bedrooms in an existing dwelling unit by submitting a complete application to the Director on a form provided by the city.

2. Application fee. The owner shall pay an application fee in the amount established by City Council resolution.

B. Ministerial review. The Director shall review each application ministerially to determine if the development standards in section 17.42.040 are met. The Director will review the application without notice or public hearing.

C. Decision and conditions. The Director shall render a decision in writing and shall state the reasons for approval or denial. The decision of the Director shall be final. (Ord. 768 N.S. 01/2023)

17.42.040 Standards.
The Director may not approve an application for additional bedroom permit unless the project conforms to all of the following standards:

A. The application proposes no more than two additional bedrooms within an existing dwelling unit. Area within an existing dwelling unit shall not include garages, carports, porches, decks, or crawl spaces.

B. The additional bedrooms shall be created solely within existing space of the dwelling unit and no additional expansions of existing space are proposed to be added to the building (e.g., attic dormers and other structural protrusions).

C. The project meets the requirements of division 17.30 Parking of this Code.

D. Exterior design modifications (e.g., window and door changes) necessary to meet the health and safety requirements of Chapter 8 Building, Construction & Fire Prevention of this Code conform to the standards of the City of Piedmont Design Standards and Guidelines. (Ord. 768 N.S. 01/2023; Ord. 769 N.S., 10/2023)

DIVISION 17.44 HOME OCCUPATION

Sections

17.44.010 Definitions
17.44.020 Home occupation permit required
17.44.030 Restrictions

17.44.010 Definitions.

In this division:

Cottage food operation has the meaning set forth in Health and Safety Code section 113758.

Home occupation means an occupation conducted at a residence. It does not include a residential rental under division 17.40.

17.44.020 Home occupation permit required.

A. Purpose; Presumption. The following regulations apply to home occupations. Restrictions upon home occupations are an accommodation between the values fostered by the preservation of neighborhoods for residential living, and the liberty to conduct private, nonintrusive economic activity in one's home.

The existence of any of the following create a presumption that there is a home occupation for which a permit is required:

1. Services conducted for pay on the premises;

2. The maintenance on the premises of an inventory of materials used as commercial products or in producing a commercial product;

3. The regular advertising of the residential address; or

4. A residential address is designated as the business location on the business license application (see chapter 10); or

B. Application and fee. A resident wishing to conduct a home occupation must submit an application to the City Clerk on the form provided, together with the non-refundable fee established by City Council resolution. The applicant must also submit a rendering of the house floor plan showing which room will be used for the home occupation. (The drawing must be accurate in its representation, but need not be an architectural rendering.)

C. Notice. The applicant must notify adjacent residents of the intent to obtain a home occupation permit and conduct a business, in a form prescribed by the City Clerk. The notification will include the applicant's name, the address, and description of the business. If the adjacent residents acknowledge receiving this information and sign the form, the notification is complete. If any adjacent resident does not sign the notification form, the city will mail notice to

that resident and advise the resident of the 15-day period during which comments may be directed to the City Clerk.

D. Review and decision. After the notification period under subsection C, the City Clerk will review the application and any comments received, and determine whether the home occupation permit should be granted. The decision will be based on whether the application complies, and is likely to continue complying, with the restrictions under section 17.44.030 below. The city will notify the applicant in writing of the decision. The decision of the City Clerk may be appealed to the City Council by filing an appeal form with the City Administrator within 10 days of the decision.

E. Validity. Once approved, a home occupation permit is valid as long as there is no change in the location or nature of the business, and it is not revoked for violation of a condition of approval or requirement of this under division 17.80, Enforcement.

F. Business license tax. Each person operating an approved home occupation must also have a current city business license. (See City Code chapter 10.) The failure to maintain a business license for six months or more is grounds for revocation of the home occupation permit.

17.44.030 Restrictions.

A home occupation must comply with these restrictions.

1. No employee. Other than residents (or persons who are primarily employed on the premises such as a housekeeper), no other employee may be involved in the home occupation. However, a cottage food operations business may employ not more than one part-time or full-time non-household member as an employee.

2. No traffic. The occupational use may not generate pedestrian or vehicular traffic or parking beyond that normal to the neighborhood. No business invitee is permitted to visit the premises, except that a cottage food operation may engage in direct sales.

3. No merchandise. The occupation may not involve the delivery or storage of resale merchandise on the premises.

4. No outdoor storage. There may not be any outdoor storage of materials or supplies in connection with the home occupation.

5. No sign; no other indication. There may not be any sign on the premises used in connection with the home occupation. The home occupation must be conducted so that there is no external indication of a non-residential use, either by use of color, materials or construction, lighting, signs, sounds or noises, vibrations, or any other indicator.

6. One room only. No more than one room in the residence or any structure on the premises may be used in connection with the home occupation (except for telephone or computer uses). A garage may not be used for the home occupation. A cottage food operation is

restricted to the registered or permitted area of the home provided for by Alameda County Environmental Health.

7. No advertising using address. There may be no advertising, notices, publications or other written or oral means used to connect the occupation with the premises, and in particular there may be no use of the address in any way connected with the occupation. This restriction does not prohibit: (a) the use of business cards, stationery or invoices with the address of the premises; or (b) the normal advertising or the posting of signs related to the rental or sale of the property, as otherwise permitted by this code.

8. Prohibited occupations. The following occupations or businesses are not permitted, including the use of the telephone number of the premises for business purposes: automobile mechanic or garage; retail general merchandise; sale or storage of scrap metals, salvaged materials, or garbage (other than garbage normally associated with a residence); sale, production or marketing of pornographic publications, films, or products; massage business; manufacture of products requiring heavy machinery.

9. Compliance with terms of home occupation permit. The permit holder must comply with the terms of the permit, may not change or increase the use beyond what was stated in the permit application, and may not operate the business in a way that adversely affects the residential character of the neighborhood.

10. Cottage food operations (CFO) must meet the following additional requirements:

a. A CFO is restricted to the primary kitchen of the premises as defined in section 17.90.010. (See *Kitchen, primary*.)
b. A CFO must comply with the restrictions on gross annual sales as set forth in Health & Safety Code section 113758.
c. A CFO must obtain and maintain a registration and/or operating permit from Alameda County Environmental Health. A copy of the registration/permit must be furnished to the City Clerk within 15 days of issuance.
d. Cottage food operations may not conduct sales in an attached garage, detached accessory structure or outside of the dwelling.
e. If direct sales are proposed at the site of the cottage food operation, no third party or customer is permitted to dine at the cottage food operation.

DIVISION 17.46 WIRELESS COMMUNICATION FACILITIES

Sections:

17.46.010 Purpose
17.46.020 Definitions
17.46.030 Applicability; Exemptions
17.46.040 Location; City site agreement
17.46.050 Permit; Application.
17.46.060 Independent Technical Review
17.46.070 Standards
17.46.080 Review Body; Findings
17.46.090 Batch Processing
17.46.100 Appeals

17.46.010 Purpose.

The purpose of this division is to provide a comprehensive set of standards for the development and installation of wireless communication facilities. The regulations are designed to facilitate the appropriate deployment of wireless networks and improvements to existing wireless network infrastructure to provide coverage and capacity throughout the City. These standards create a clear set of design requirements and application processes that allow wireless carriers to deploy their networks effectively, while not detracting from the aesthetics of the streetscapes, buildings, light standards, utility poles, and structures inside and outside of the public right-of-way in the City of Piedmont. These requirements aim to protect public health, safety, and community welfare while balancing the benefits of robust wireless services with the community's architectural character, aesthetics, and landscaping of the City. The purpose of these standards is not to regulate what technologies are being deployed, but to regulate the manner in which wireless equipment is deployed to ensure that such are not detrimental or injurious to the public health, safety, and general welfare; and that the aesthetic appearance shown in approved plans is continuously preserved. This division applies to applications for approval of the installation of new or modified wireless communication facilities, including applications previously received by the city but not yet approved, disapproved or conditionally approved by a final city decision.

17.46.020 Definitions.

In this division:

Antenna means an apparatus designed for the purpose of emitting radiofrequency (RF) signal, to be operated or operating from a fixed location pursuant to Federal Communications Commission (FCC) authorization, for the provision of personal wireless service and any commingled public information services. For purposes of this definition, the term antenna does not include an unintentional radiator, mobile station, or device authorized under part 15 of title 47 of the Code of Federal Regulations.

Base station means an authorized wireless communications facility that connects wireless equipment and a communications network. The term does not encompass a tower as defined in this subpart or any equipment associated with a tower.

Batch processing means a type of permit submittal that consists of: (1) two or more WCF permit applications for "substantially similar WCF project sites," (2) the applications are submitted at the same time; and (3) by the same applicant.

Collocation means multiple telecommunications service providers using the same structure, including new and existing infrastructure. A new or replacement utility pole, streetlight, or tower is not a collocation and shall be reviewed as a new facility.

Concealment means a wireless facility that is covered, blended, disguised, camouflaged, or integrated to make a wireless facility look like something other than a wireless facility (as defined by FCC Declaratory Ruling FCC-CIRC2006-003). Concealment includes incorporating *stealth* design (see definition below).

Camouflage means designed to mask or blend with the surrounding environment in such a manner to render it generally unrecognizable as a wireless facility to the casual observer. By way of example, a wireless communication facility may be camouflaged in a faux tree, faux bush, flagpole, or designed in a manner to be compatible with the appurtenant architecture, building, or natural surroundings.

DAS means distributed antenna system. DAS is a series of antennas that are usually lower power that have a connected fiber network to provide coverage to a specific location.

6409(a) Eligible Facilities Request refers to section 6409(a) of the Middle Class Tax Relief and Job Creation Act of 2012 (Spectrum Act). Congress provided that state and local government review may not deny, and shall approve, *Eligible Facilities Requests* to modify existing wireless towers or base stations that do not substantially change the physical dimensions of the structure, defeat the concealment element, nor violate certain conditions associated with the siting approval.

Equipment cabinet means a cabinet or structure used to house equipment associated with a wireless communication facility.

FCC means Federal Communications Commission.

FCC Shot Clock or *shot clock* means the FCC's presumptively reasonable time frame, accounting for any tolling or voluntary extension, or unusual circumstances justifying additional time, within which the City generally must act on a duly filed request for authorization in connection with a personal wireless service facility, as such time frame is defined by the FCC and as may be amended or superseded. For batched applications, the longest shot clock applicable to any small wireless facility in the batch shall be applicable to the entire batch (e.g., in a batch with four collocations and one new/replacement pole, the FCC Shot Clock would be 90 days for the entire batch even though the collocation applications would be 60 days if submitted on an individual basis)

GO95 is CPUC General Order 95 which outlines rules for overhead electric line construction.

Macrocell Site means any WCF that is not a small wireless facility or Eligible Facilities Request.

Monopole means a single free-standing pole, post, or similar structure, used to support equipment associated with a wireless communication facility.

Public right-of-way means a public highway, street, alley, sidewalk, or parkway that is subject to Public Utilities Code section 7901.

Related equipment means equipment ancillary to the transmission and reception of voice and data via radio frequencies. *Related equipment* may include, but is not limited to, cable, conduit and connectors.

Service provider means an authorized provider of wireless communication services, including a neutral host carrier.

Shroud is a physical barrier that encloses and conceals a WCF located atop a pole or on a structure or line. Examples include a radome.

Small Cell Facility has the same meaning as a small wireless facility, as set forth in 47 C.F.R. 1.6002(*l*).

Stealth Design means using concealment so that a wireless communications facility is designed to look like something other than a wireless tower or base station. Stealth design includes, but is not limited to:

a. Integrating a WCF within the architecture of an existing structure outside the public right-of-way;

b. Using a new structure built to conceal the WCF in its entirety, such as a stealth water tower or clock tower outside of the public right-of-way.

c. Using a new architectural feature added to an existing structure outside of the public right-of-way to conceal the WCF; such as a faux vent, faux chimney, or faux penthouse.

d. Using an architectural feature added to an existing or proposed structure in the public right-of-way to conceal the WCF in its entirety such as a protrusion on a streetlight or utility pole, new streetlight that integrates wireless equipment in its entirety, a new bus stop shelter, a faux trash can enclosure adjacent to an existing or proposed structure, or traffic signage added to a streetlight to cover and conceal WCF equipment.

Substantial change means it meets the requirements in the eligible facilities checklist, outlined in section 8.03.03 of the Piedmont Design Standards and Guidelines titled 6409 (a) Eligible Facilities Request Checklist

Toll, tolled, or tolling is defined as days that are not included in the calculation of the deadline for action by a jurisdiction due to incomplete application materials or voluntary agreement between the wireless service provider and the jurisdiction.

Tower means a structure built for the sole or primary purpose of supporting Federal Communications Commission-licensed or authorized antennas and their associated facilities, including structures that are constructed for wireless communications services including, but not limited to, private, broadcast, and public safety services, as well as unlicensed wireless services and fixed wireless services such as microwave backhaul, and the associated site improvements.

Sidewalk vault is a base station for equipment in an underground facility located in a cabinet beneath the sidewalk.

Wireless communications facility (WCF) means any facility constructed, installed, or operated for wireless service. *Wireless communications facility* includes, but is not limited to, antennas or other types of equipment for the transmission or receipt of such signals, telecommunications towers or similar structures supporting such equipment, related accessory equipment, equipment buildings, parking areas, and other accessory development. "Wireless communications facility" does not mean any of the following:

a. A facility that qualifies as an amateur station as defined by the FCC, 47 C.F.R. Part 97, of the Commission's Rules, or its successor regulation.

b. An antenna facility that is subject to the FCC Over-The-Air-Receiving Devices rule, 47 C.F.R. Section 1.4000, or any successor regulation, including, but not limited to, direct-to-home satellite dishes that are less than one meter in diameter, TV antennas used to receive television broadcast signals and wireless cable antennas.

c. Portable radios and devices including, but not limited to, hand-held, vehicular, or other portable receivers, transmitters or transceivers, cellular phones, CB radios, emergency services radio, and other similar portable devices as determined by the city manager.

d. Telecommunications facilities owned and operated by any government agency.

e. Telecommunications facilities owned and operated by any emergency medical care provider.

f. Mobile services providing public information coverage of news events of a temporary nature.

g. Any wireless communications facilities exempted from the Piedmont City Code by federal law or state law.

17.46.030 Applicability; Exemptions.

A. Applicability. This division 17.46 applies to all wireless communication facilities, except those exempted in subsection B below (though other permit requirements may apply).

B. Exemptions. The following facilities are exempt from this division:

1. Wireless communication facility for which a federal or state statute or regulation exempts the facility from the imposition of the permit requirements of this division but only to the extent of such exemption.

2. Satellite dish antenna, less than one meter in diameter for receiving radio or television stations by the property owners, occupants or guests.

3. City-owned or operated communication facilities.

4. Communication equipment located completely inside a structure, not visible from the outside, whose purpose is solely to provide wireless communications within the same structure, including Wi-Fi hotspots and access points, with no alteration to the exterior of the structure.

17.46.040 Location; City site agreement.

A. Priority for location.

1. Preference for Zone B, Zone D, and public right of way sites. In order of preference, wireless communication facilities should be located (i) on publicly-owned property outside of the public right of way in Zone B, (ii) property in Zone D, or (iii) public rights-of-way.

2. Alternative locations. Any location for a wireless site outside of Zone B not on publicly-owned property, or not with a public right of way will be considered according to the following priority:

a. The applicant must first attempt to locate a site in Zone D, the commercial zone, that is not used for residential purposes.

b. If it is infeasible to locate in Zone D, the applicant must attempt to locate at a non-residential property in Zone A, C or E.

3. General. In all cases, the preference, in order, is to locate on or in an existing structure which the wireless communication facility can be concealed; or to collocate on an existing wireless communication facility with a stealth design; or to locate on a new structure that can be incorporated in a stealth manner compatible with the surrounding area.

4. Prohibition. Wireless communication facilities are prohibited on properties that contain a residential use, regardless of zone.

B. City site agreement.

1. Consideration by staff. If the applicant wishes to locate on city-owned property or facilities, the applicant must discuss its desired location(s) with staff (Public Works Director and Planning & Building Director, as appropriate) before the submittal of an

application. If the location appears to be generally feasible, city staff will negotiate the principal terms for a proposed site agreement with the applicant, spelling out in detail the specific facilities to be located on city property or facilities, the term of the agreement, the compensation to be provided the city, and other terms.

2. Consideration by City Council. When the principal terms for a proposed agreement have been prepared and approved by city staff, staff will schedule the matter for hearing before the City Council. The City Council will consider the proposed agreement as part of an ordinance, required by City Charter Section 2.11(6). The City Council may defer its final decision regarding the agreement until after the wireless communication facility permit is approved.

3. Limited nature of consent. The city's consent as property owner to process a wireless communication facility permit is not be deemed city consent to lease or license the property.

C. No wireless communication facilities on residential property. Wireless communication facilities shall not be installed on property which is used for residential purposes, irrespective of the zoning district in which such residential property is located.

17.46.050 Permit; Application.

A. Permit. A wireless communication facility permit is specifically for wireless communication facilities and is required for each facility. If the wireless communication facility permit is approved, the owner or operator must also obtain a building permit before beginning construction.

B. Application.

1. All applications. An application for a wireless communication facility permit must include:

a. a complete application to the City with all relevant fields completed and all required documents attached;

b. evidence of a significant gap in coverage or capacity or introduction of new services or other service capability improvements, which the application seeks to address if the applicant's facility will be located on a less preferred structure or in a less preferred zone; and

c. applicable fees and/or deposits, including a deposit for independent technical review under section 17.46.060 below.

d. all applicable documents outlined in the submittal checklist in section 8.03.04 of the Piedmont Design Guidelines titled Submittal Checklist.

2. Application for location on city property. An applicant for a wireless communication facility proposed to be located on city property or in a public right-of-

way must submit a Letter of Authorization signed by the City of Piedmont City Council and all documents listed in Chapter 8 of the Piedmont Design Guidelines. (Ord. 788 N.S., 02/2026)

17.46.060 Independent Technical Review.

The Director is authorized in his or her discretion to retain an independent technical consultant to review materials submitted by the applicant and to provide an analysis of issues including but not limited to: whether the wireless communication facility meets the applicable radio frequency emission regulations; whether a significant gap in coverage or capacity exists and whether the proposed facilities are the least intrusive means of doing so; whether there are alternative sites and the feasibility of those sites; whether there are ways to mitigate aesthetic impacts; and any other specific technical issues designated by the Director. The applicant must pay the consultant's costs, and must increase the deposit to cover the anticipated amount as the Director may deem necessary from time-to-time.

17.46.070 Standards.

A. Development Standards. The following development standards apply.

1. Collocation. New wireless communication facilities must be collocated with existing facilities and with other planned new facilities whenever feasible. A new wireless tower must be designed and constructed to accommodate future collocation(s) unless the city determines that collocation would be infeasible because of physical or design issues specific to the site.

2. Height limits. Wireless Facilities must follow height limits of the zoning district they are proposed to be installed in, height limits of the City of Piedmont Public Works Standard Details, height limits set by the FCC, and/or height limits outlined in GO95 regulations. Ground mounted wireless communication equipment, base station, antenna, pole, or tower must be the minimum functional height, unless as required by federal or state law. Roof mounted equipment and antennas must be located to minimize visibility.

3. Visual impact. Wireless communication facilities must be designed to minimize visual impacts. Facilities must be concealed or camouflaged to the greatest extent practicable in accordance with this Division, as determined by the Planning & Building Director. The facilities must have a non-reflective finish and be painted or otherwise treated to minimize visibility and the obstruction of views.

The facilities may not bear signs, other than certification, warning, emergency contacts, or other signage required by law or expressly required by the city.

4. Public health, peace and safety. A wireless communication facility may not adversely affect the public health, peace and safety.

5. Public right-of-way. A wireless communication facility located in the public right-of-way may not cause: (i) physical or visual obstruction, or safety hazard, to pedestrians, cyclists, or motorists; or (ii) inconvenience to the public's use of the right-of-

way. Equipment, walls, and landscaping located above grade must comply with the City of Piedmont Public Works Department Standard Details and not interfere with the public's use of the right-of-way.

6. Compliance with laws. Each wireless communication facility must comply with federal and state statutes governing local agencies' land use authority regarding the siting of wireless communication facilities, including without limitation 47 USC sections 253, 332(c)(7), 47 USC section 1455 (also known as section 6409 of the 2012 Middle Class Tax Relief and Jobs Act), California Government Code sections 50030, 65850.6 and 65964, and California Public Utilities Code sections 7901 and 7901.1. Each reference to a federal and state statutes is to the statute as it may be as amended from time-to-time and to the extent the statute remains in effect.

B. Operation and Maintenance Standards

1. Contact and site information. The owner or operator of a wireless communication facility must submit basic contact and site information to the city, and notify the city within 30 days of any changes to this information, including the transfer of ownership. The contact and site information must include: (i) the name, address, email address, telephone number, and legal status of the owner of the facility, including official identification number and FCC certification, and, if different from the owner, the identity and legal status of the person or entity responsible for operating and maintaining the facility; and (ii) the name, address, email address, and telephone number of a local contact person for emergencies.

2. Signage. The owner and/or operator must post an identification sign at each facility, including owner/operator emergency telephone numbers. The design, materials, colors, and location of the identification signs shall be subject to review and approval by the Director. If at any time a new owner or operator provider takes over operation of an existing personal wireless service facility, the new personal wireless service provider shall notify the Director of the change in operation within 30 days and the required and approved signs shall be updated within 30 days to reflect the name and phone number of the new wireless service provider. The colors, materials and design of the updated signs shall match those of the required and approved signs. No sign shall be greater than two square feet in size.

3. FCC compliance. Each wireless communication facility must comply with FCC regulations, and avoid interfering with any city communication facilities, operations, utilities, equipment, or public safety communications. If the facility negatively impacts city facilities or equipment, the operator must comply with all FCC regulations and orders to resolve the interference. At the city's discretion, and at the operator's expense, the city may retain an outside technical consultant to evaluate and verify compliance with FCC regulations and to determine the cause of interference for an existing facility.

4. Facility maintenance. Each wireless communication facility must be maintained in good repair, free from trash, debris, litter, graffiti, and other forms of vandalism. The

operator must repair any damage as soon as reasonably possible, but no later than 90 days from the time of notification.

Landscaping elements at a wireless communication facility site must be maintained in good condition, and in compliance with the approved landscape plan. The owner or operator is responsible for replacing any damaged, dead, or decayed landscape materials and making necessary irrigation and equipment repairs as soon as reasonably possible.

5. Noise. A wireless communication facility must be operated to minimize noise that is audible as provided in Chapter 8 of the City Code

6. Removal. All wireless communication facility equipment must be removed within 30 days of the discontinuation of the use, and the site restored to its original, preconstruction condition. In addition, the service provider must provide the city with a notice of intent to vacate a site a minimum of 30 days before the vacation. For a wireless communication facility to be located on public property, this removal requirement will be included within the lease. For a facility to be located on private property, the property owner is encouraged to also include this in the lease, because the property owner will otherwise be responsible for removal.

C. C. Term of permit. A wireless communication facility permit is valid for an initial period of ten years as specified in the Piedmont Design Guidelines unless: (i) a longer period is required by state or federal law; or (ii) a shorter time is required as a condition of approval for particular circumstances set forth in the decision, particularly with respect to public safety or substantial land use reasons under California Government Code section 65964(b). The Director may administratively extend a permit upon verification of continued compliance with this division 17.46 and any conditions of approval.(Ord. 788 N.S., 02/2026)

17.46.080 Review Body; Findings.

A. Review Body.

1. Permit and Reviewing Body.

Location	Type of WCF	Design Standards Criteria	Type of Permit Required
	6409 Collocation	Meets the design criteria outlined in Design Guidelines Section 8.02.03	Building Permit Encroachment Permit
	Small Cell or DAS Application	Meets the Design Guidelines Section 8.02.03	Building Permit Encroachment Permit
		Does not meet the Design Guidelines	WCF Planning Permit, Review by Planning Commission

WCF in the Right-of-Way			Building Permit Encroachment Permit
	Collocation (not under 6409) with existing structure		WCF Planning Permit, Review by Director Building Permit Encroachment Permit
WCF On Public or Private Property	New structure		WCF Planning Permit, Review by Planning Commission Building Permit
	Collocation (not under 6409) with existing structure		WCF Planning Permit, Review by Director Building Permit
	6409 Collocation	Meets Design Guidelines in Section 8.02.04	Building Permit

2. Planning Commission. After receiving a completed application, the city staff will schedule a noticed public meeting before the Planning Commission consistent with divisions 17.62 and 17.64. Any application submitted to be reviewed by the Director outlined in section 17.46.080.A may be referred to the Planning Commission unless otherwise stated by federal law.

B. Required findings; Exceptions.

1. Findings. Before approving a wireless communication facility permit as provided in City Code section 17.46.080.A.3 and 17.46.080.A.4, the reviewing body must make the following findings:

a. The applicant has evaluated and met the priority for location standards of section 17.46.040 A above.

b. The proposal satisfies each of the applicable development standards in section 17.46.070 above.

c. The proposed design is consistent with the Piedmont Design Guidelines.

d. The proposed facility has been located and designed for concealment and collocation to the greatest extent reasonably feasible, and the applicant has

submitted a statement of its willingness to allow other wireless service providers to collocate on the proposed facility.

2. Exceptions.

a. General. The decision-making body may grant an exception to any requirement of this division 17.46, including without limitation the priority for location under section 17.46.040 A, if the applicant establishes that strict compliance would violate federal or state law.

b. Modification. The Director may consider and grant, modify and grant or deny a modification to an existing wireless communications facility if the modification meets the requirements of section 6409. In determining whether to approve the requested modification the Director shall approve if the project meets the criteria outlined in section 8.03.03 of the Piedmont Design Guidelines titled 6409 (a) Eligible Facilities Request Checklist.

c. The exemptions listed in the definition of *wireless communication facility* in section 17.46.020.

Any proposed modification that is not a collocation, or for which the wireless communication facility will be fully concealed or camouflaged, or that does not fall within the requirements of section 6409 shall be reviewed and considered under the same provisions and requirements as those required for the original consideration of the permit proposed for modification. (Ord. 788 N.S., 02/2026)

17.46.090 Batch Processing.

In accordance with Assembly Bill 965, an applicant may submit a "batch WCF processing permit" when it receives two or more WCF permit applications for substantially similar WCF project sites, submitted at the same time, and are submitted by the same applicant.

A. Requirements

1. The City will consider applications under Assembly Bill 965 for WCF batch processing as "nearly identical in terms of equipment and general design, but not location" if they meet the following criteria.

   a. Require the same permits;

   b. Are the same kind of facilities (for example, all the applications received are stealth facilities, are on streetlights, are on utility poles, etc.);

   c. Must be on the same type of property (for example, the City will not batch process an application on private property along with an application on public property);

   d. Must be in the same zoning district;

e. The proposed facilities are within 5 feet of each other in height/elevation;

f. The proposed facilities have similar power output and operating frequency for any proposed antenna array;

g. Use of substantially the same equipment in the same configuration on the same support structure type;

h. Have similar accessory equipment which is located in similar locations, whether above ground or below ground;

i. Use the same material for exterior finishes, including color and texture;

j. Do not require illumination of the wireless facilities with the exception of security and maintenance lighting;

k. Only collocation applications can be considered substantially similar to other collocation applications; and

l. No more than 25 sites are included in a batch processing application.

B. Review Body. Applications submitted under a batch processing permit shall be subject to review by the body outlined under section 17.46.080.A.

C. Application Fee. The applicant shall pay an application fee in the amount established by City Council resolution.

D. Application Determination. Each application in a batch must meet all the requirements for a complete application, which includes without limitation the application fee for each site in the batch. If any application in a batch is incomplete, the entire batch shall be deemed incomplete. If an applicant removes more than 50% of the facilities from a batch application, the entire batch application shall be withdrawn. If any application in a batch fails to meet the required findings for approval, the entire batch shall be denied.

17.46.100 Appeals.

An appeal of a wireless communication facility application may be submitted for any application reviewed by the Director or reviewed by the Planning Commission. During an appeal, the burden of proof is on the appellant. The appeal will be submitted to the City Administrator or the City Administrator's designee. The appellant shall pay an appeal fee in the amount established by the City Council resolution. The appeal must be submitted within five days of a decision made by the Director or Planning Commission. Upon receiving the appeal, in not less than 5 business days, the City Clerk shall give written notice to the applicant, the appellant in those cases where the applicant is not the appellant, and other parties involved, of the date and place of hearing of the appeal. In considering the appeal, the City Administrator or designee shall review all documents submitted and findings made by the Director or Planning Commission. The hearing

will not be a de novo hearing. The City Administrator or designee may overrule the action of the decision maker only if one of the following occurs:

a. the findings made by the decision maker as a basis for its action are not supported by the weight of the evidence;

b. there is a significant error in the application of the requirements of this chapter 17 or other requirements of the City Code;

c. there is a significant error in the application of the Piedmont Design Standards and Guidelines; or

d. significant errors in the application, plans, drawings or other materials provided to the decision maker are discovered after the hearing, which were a basis of the decision.

Any appeal shall be conducted so that a timely written decision may be issued in accordance with applicable law.

There is not an appeal process for applications submitted under a ministerial review permit.

(Ord. 778 N.S., 03/2025)

DIVISION 17.48 CANNABIS CULTIVATION AND FACILITIES

Sections

17.48.010 Purpose and intent
17.48.020 Definitions
17.48.030 Prohibitions
17.48.040 Cannabis Cultivation
17.48.050 Cannabis Deliveries
17.48.060 Penalties
17.48.070 Civil Injunction

17.48.010 Purpose and intent.

The purpose and intent of this division is to prohibit any commercial cannabis facility and to regulate cannabis cultivation within the city limits. It is recognized that it is a federal violation under the Controlled Substances Act to possess or distribute cannabis even if for medical purposes. Additionally, there is evidence of an increased incidence of crime-related secondary impacts in locations associated with a cannabis facility, which is contrary to policies that are intended to promote and maintain the public's health, safety, and welfare. (Ord. 743 N.S., 05/2018; Ord. 738 N.S., 12/2017; Ord. 728 N.S., 03/2017)

17.48.020 Definitions.

In this division:

Cannabis or *marijuana* has the meaning set forth in Business and Professions Code section 26001(f) and includes all parts of the plant Cannabis sativa Linnaeus, Cannabis indica, or Cannabis ruderalis, whether growing or not; the seeds thereof; the resin, whether crude or purified, extracted from any part of the plant; and every compound, manufacture, salt, derivative, mixture, or preparation of the plant, its seeds, or resin. *Cannabis* or *marijuana* also means the separated resin, whether crude or purified, obtained from cannabis. *Cannabis* or *marijuana* does not include the mature stalks of the plant, fiber produced from the stalks, oil or cake made from the seeds of the plant, any other compound, manufacture, salt, derivative, mixture, or preparation of the mature stalks (except the resin extracted therefrom), fiber, oil, or cake, or the sterilized seed of the plant which is incapable of germination. *Cannabis* or *marijuana* does not mean “industrial hemp” as defined by Section 11018.5 of the Health and Safety Code.

Commercial cannabis activity has the meaning set forth in Business and Professions Code section 26001(k), and includes the cultivation, possession, manufacture, processing, storing, laboratory testing, labeling, transporting, distribution, or sale of cannabis or a cannabis product.

Commercial cannabis facility means any building, facility, use, establishment, property, or location where any person or entity establishes, commences, engages in, conducts, or carries on, or permits another person or entity to establish, commence, engage in, conduct, or carry on, any commercial cannabis activity that requires a state license or nonprofit license under Business and Professions Code sections 26000 and following, including but not limited to

cannabis cultivation, cannabis distribution, cannabis transportation, cannabis storage, manufacturing of cannabis products, cannabis processing, the sale of any cannabis or cannabis products, and the operation of a cannabis microbusiness.

Cultivation has the meaning set forth in Business and Professions Code section 26001(l) and includes any activity involving the planting, growing, harvesting, drying, curing, grading, or trimming of cannabis.

State Cannabis Laws shall mean and include California Health and Safety Code Sections 11362.1 through 11362.45; California Health and Safety Code Section 11362.5 (Compassionate Use Act of 1996); California Health and Safety Code Sections 11362.7 to 11362.83 (Medical Marijuana Program Act); California Health and Safety Code Sections 26000 through 26211 (Medicinal and Adult-Use Cannabis Regulation and Safety Act ("MAUCRSA")); California Health and Safety Code Sections 26220 through 26231.2; the California Attorney General's Guidelines for the Security and Non-Diversion of Marijuana Grown for Medical Use issued in August, 2008, as such guidelines may be revised from time to time by action of the Attorney General; California Labor Code Section 147.5; California Revenue and Taxation Code Sections 31020 and 34010 through 34021.5; California Fish and Game Code Section 12029; California Water Code Section 13276; all state regulations adopted pursuant to MAUCRSA; and all other applicable laws of the state of California. (Ord. 738 N.S., 12/2017; Ord. 728 N.S., 03/2017)

17.48.030 Prohibitions on commercial cannabis facilities.

Commercial cannabis facilities are prohibited in all zones in the City. No person or entity may establish or operate a commercial cannabis facility within city limits. A property owner may not allow its property to be used by any person or entity as a commercial cannabis facility. (Ord. 738 N.S., 12/2017; Ord. 728 N.S., 03/2017)

17.48.040 Cannabis cultivation.

A. All cannabis cultivation within city limits is prohibited except that a person may cultivate no more than six living cannabis plants inside a private residence, or inside an accessory structure to a private residence located upon the grounds of that private residence. Such cultivation shall only occur inside residences and accessory structures that are fully enclosed and secured against unauthorized entry.

B. If a private residence is not occupied or inhabited by the owner of the private residence, then no persons living in the residence may cultivate cannabis without written consent signed by the owner expressly allowing cannabis cultivation to occur at the private residence.

C. Persons cultivating cannabis under this section shall comply with all applicable Building Code requirements set forth in the Piedmont City Code.

D. There shall be no use of gas products (CO2, butane, propane, natural gas, etc.) on the property for purposes of cannabis cultivation.

E. All private cultivation under this section shall comply with Health and Safety Code section 11362.2(a)(3). (Ord. 738 N.S., 12/2017; Ord. 728 N.S., 03/2017)

17.48.050 Cannabis deliveries.

A. State-licensed commercial cannabis facilities located outside the City may personally deliver cannabis and cannabis products to individuals within the City, provided that such deliveries are in strict compliance with State Cannabis Laws and have complied with Municipal Code Chapter 10 regarding business licenses.

B. Vehicles used in the delivery process must be unmarked without any designation or logo that identifies the vehicle as a cannabis delivery vehicle.

C. Cannabis and cannabis product deliveries within the City may not occur between 9:00 p.m. and 7:00 a.m. (Ord. 738 N.S., 12/2017)

17.48.060 Penalties.

Violation of any provision of this division is subject to penalties as set forth in City Code Chapter 1, Article II. (Ord. 743 N.S., 05/2018; Ord. 738 N.S., 12/2017)

17.48.070 Civil injunction.

Any violation of this division is declared to be a public nuisance per se and contrary to the public interest and, at the discretion of the City, will be subject to a cause of action for injunctive relief. (Ord. 743 N.S., 05/2018; Ord. 738 N.S., 12/2017)

DIVISION 17.50 NONCONFORMING USES AND STRUCTURES

Sections:

17.50.010 Nonconforming use
17.50.020 Nonconforming structure

17.50.010 Nonconforming use.

A. General. Use of a structure or land that was lawfully established and maintained, but which does not conform to current use regulations is nonconforming use. A nonconforming use may continue, except as otherwise provided in this section.

B. Regulations. The following regulations apply to each nonconforming use:

1. There may be no increase or enlargement of the area, space of volume occupied and used.
2. There may be no change in the nature or character of the nonconforming use.
3. If the nonconforming use is replaced by a conforming use, the nonconforming use is automatically terminated.
4. If the nonconforming use discontinues active operation for a continuous period of one year, the nonconforming use terminates and the facilities accommodating or serving the activity must thereafter be used only for uses permitted or conditionally permitted by the zoning district. This provision does not apply to a nonconforming dwelling unit.

17.50.020 Nonconforming structure.

A. General. A structure that was lawfully erected but which does not conform to the currently applicable zoning requirements prescribed in the zone district is a nonconforming structure. It may be used and maintained except as otherwise provided in this section. A nonconforming structure is also subject to the California Building Code adopted by the city under chapter 8.

B. Regulations. The following regulations apply to a nonconforming structure:

1. Maintenance and repair. Routine maintenance and repairs may be performed on a nonconforming structure.

2. No alteration or enlargement. A nonconforming structure may not be altered, partially demolished, or enlarged unless required by law, or unless the alteration or enlargement conforms to the standards of the zoning district. An existing nonconforming structure may be altered or enlarged without variance as long as the alteration or enlargement does not relate to or involve the nonconformity. If an alteration or enlargement does relate to or involve a nonconformity of a non-conforming structure, a variance is required under division 17.70.

In this section, *reconstruction* means rebuilding all or a portion of an improvement in a way that differs from the prior construction, including but not limited to differences in design or

materials or both. *Replacement* means rebuilding all or a portion of an improvement to be exactly the same as what was replaced.

3. Accessory dwelling unit. Regarding a nonconforming accessory dwelling unit, exterior design and material modifications beyond those authorized under division 17.38 are permitted if:

a. such modifications comply with objective standards in the Piedmont Design Standards and Guidelines; and

b. there is no increase in the size or change to the location of the accessory dwelling unit, no increase in structure coverage or decrease in landscape coverage related to the accessory dwelling unit.

4. Destruction; replacement. If a nonconforming primary structure is demolished or destroyed for any reason to the extent of more than 70% of the structure then, and without further action by the City Council, the structure and the land on which the structure was located are subject to the current regulations of the zone in which the structure is located, except as to lot area and lot frontage. In the event of a conflict, the more restrictive regulation will prevail. (Ord. 774 N.S., 09/2024)

This subsection 4 does not apply to:

a. a garage, pool house, exempt accessory dwelling unit under section 17.38.030, or accessory structure, and any of those may be replaced as it was, within two years, without increasing the degree of nonconformity, and without a variance under division 17.70.

b. a deck, balcony, porch, or site feature, and any of those may be replaced as it was, within one year, without increasing the degree of nonconformity, and without a variance under division 17.70.

If a nonconforming primary structure has been demolished or destroyed less than 70%, reconstruction must be completed within two years from the date of issuance of the building permit. If a property owner of a non-conforming structure has received permission to demolish or destroy less than 70% of the structure, but during renovation, more that 70% is destroyed or demolished, the project approval terminates and the property is subject to current zoning regulations as set forth in the paragraph above.

The percentage of physical building destruction or demolition is determined by the Building Official.

If the nonconforming structure is not rebuilt within the time period allowed under this subsection 4, the nonconforming rights terminate. (Ord. 747 N.S., 02/2020; Ord. 768 N.S. 01/2023)

DIVISION 17.52 DENSITY BONUS

Sections:

17.52.010 Purpose and intent
17.52.020 Applicability
17.52.030 Definitions
17.52.040 Compliance with State Density Bonus Law
17.52.050 Application Requirements
17.52.060 Density Bonus Calculation
17.52.070 Application Review Procedure
17.52.080 Affordability Requirements
17.52.090 Appeal Process

17.52.010 Purpose and intent

The purpose and intent of this division is to implement the State Density Bonus Law as required by California Government Code Section 65915(a), and the Housing Element of the Piedmont General Plan, by providing incentives for the production of housing that is affordable to moderate, low or very low-income households, senior housing, or includes childcare facilities in accordance with Sections 65915 *et seq.* of the California Government Code.

17.52.020 Applicability

This division shall apply to any housing development project that is eligible to receive a density bonus pursuant to the State Density Bonus Law.

17.52.030 Definitions

In this division:

Administrative Guidelines means guidelines and procedures promulgated by the Director that may be modified from time to time to effectively implement this ordinance.

Affordable units means the proposed housing units available for rent or sale to households pursuant to State Density Bonus Law, as defined in Government Code section 65915 subdivision (b), as may be amended.

Base units means the total number of units in a housing development, not including units added through a density bonus pursuant to this division.

Concession shall have the same meaning as the term "concession or incentive" pursuant to State Density Bonus Law, as defined in Government Code section 65915 subdivision (k), as may be amended.

Density bonus means a density increase over the otherwise maximum allowable residential density for a housing development as of the date the application is deemed complete, as

prescribed by State Density Bonus Law, or, if elected by the applicant, a lesser percentage of density increase, including, but not limited to, no increase in density.

Housing development shall have the same meaning as the term "housing development" pursuant to State Density Bonus Law, as defined in Government Code section 65915 subdivision (i), as may be amended.

Identifiable and actual cost reduction to provide for affordable housing means a reasonably quantifiable cost reduction that would be achieved for a housing development through a concession.

Maximum allowable residential density means the maximum residential density allowed for a housing development under this division and the land use element of the general plan. For purposes of this definition, residential density shall be calculated based upon the gross acreage of a housing development. If a housing development is proposed to be located on any property without a defined dwelling unit per acre standard, the maximum allowable residential density shall be the base density as established by the applicant pursuant to Section 17.52.050 B.

Reasonable documentation to establish eligibility for a concession means a credible written explanation or other documentation demonstrating to the reasonable satisfaction of the Director or designee that a concession will achieve an identifiable and actual cost reduction to provide for affordable housing.

State Density Bonus Law means California Government Code Section 65915, *et seq*, as the same may be renumbered or amended.

Waiver means a waiver or a reduction as the terms are used in California Government Code Section 65915 and in particular in Section 65915(e) thereof, and means any and all changes to or exemptions from physical lot development standards that are required to avoid precluding the construction of a housing development with density bonus units, as set forth in Section 65915(e), as may be amended. The City may request reasonable documentation from the applicant to support the request.

17.52.040 Compliance with State Density Bonus Law

The City shall comply with all provisions of State Density Bonus Law. The Director shall have the authority to prepare, adopt, and periodically update administrative guidelines consistent with this division and State Density Bonus Law, as mandated by state law without further action of the Planning Commission or City Council, to reflect changes in state law.

17.52.050 Application requirements.

A. An applicant requesting a density bonus pursuant to State Density Bonus Law must submit the following information as part of an application or amended application for a housing development in order for their application to be deemed complete:

1. A project summary table demonstrating the basis under State Density Bonus Law on which the applicant is requesting a density bonus, including the maximum allowable density permitted by the zoning and general plan designations excluding any density bonus; base units; proposed number of affordable units by income level; proposed bonus percentage; total number of dwelling units; residential gross floor area and total gross floor area proposed; density per acre; proposed number of parking spaces; and unit and bedroom counts and unit types for the purpose of calculating parking requirements;
2. A preliminary site plan drawn to scale, showing the number and location of all proposed units;
3. A legal description of the site;
4. A boundary survey;
5. An identification of the maximum density bonus to which the housing development is entitled on the basis requested;
6. An identification of any concession(s) sought and reasonable documentation consisting of a detailed written statement to establish eligibility for the concession(s);
7. An identification of any waiver(s) sought and a detailed written explanation of why the development standard from which any waiver is sought would have the effect of physically precluding the construction of the housing development at the density and with any concession(s) or parking ratio reduction sought;
8. If the housing development is proposed on any property that includes a parcel or parcels with existing dwelling units or dwelling units that have been vacated or demolished in the five-year period preceding the application, an explanation of how the project meets State Density Bonus Law's replacement housing requirements, if applicable, set forth in Government Code section 65915 subdivision (c)(3), as may be amended;
9. If the density bonus is requested for a land donation, the location of the land to be dedicated, proof of site control and reasonable documentation that each of the requirements pursuant to State Density Bonus Law, set forth in Government Code section 65915 subdivision (g), as may be amended, can be met;
10. If the density bonus or concession requested is based all or in part on the inclusion of a child-care facility, a written summary addressing the eligibility requirements pursuant to State Density Bonus Law, as set forth in Government Code section 65915 subdivision (h), as may be amended, have been met; and
11. If the density bonus or concession is based all or in part on the inclusion of affordable units as part of a condominium conversion, written summary addressing the eligibility requirements pursuant to State Density Bonus Law, set forth in Government Code section 65915.5, as may be amended, have been met.

B. Building permit. A building permit shall be required for construction or modification of a residential unit as set forth in the California Residential Code and other building standards adopted by the City.

17.52.060 Density Bonus Calculation

Density Bonuses must be calculated as set forth in State Density Bonus Law, and pursuant to the Administrative Guidelines.

17.52.070 Application Review Procedure

A. A density bonus application must accompany a housing development project application. The Director shall provide the applicant with notice whether the application is complete consistent with Government Code section 65943.

B. The Director shall process the density bonus application concurrently with all other applications required for the housing development. The body considering the housing development project will also be the reviewing body for the density bonus request.

C. At the time the application is deemed complete, the Director shall provide the applicant with a determination regarding the amount of density bonus and the parking ratio for which the housing development is eligible and whether adequate information has been submitted for the Director to make a determination or recommendation, as applicable, regarding any requested concessions and waivers.

D. The application for a density bonus shall be accompanied by an application fee in the amount established by City Council resolution.

E. The Director shall provide the applicant notice of financial assistance that may be available upon determining that the application is complete.

F. If the proposed housing development would be inconsistent with State Density Bonus Law, then the planning director shall provide the applicant notice describing the inconsistency(ies) pursuant to the Housing Accountability Act, Government Code section 65589.5.

G. Project Findings. All requests for density bonuses, concessions, parking ratios, or waivers shall be considered and acted upon by the approval body with authority to approve the housing development within the timelines prescribed by Government Code Sections 65950 et seq. The approval body shall grant the request(s) pursuant to state Density Bonus Law if the following findings are met:

i. The project is a housing development that qualifies for a density bonus and meets all applicable eligibility requirements;

ii. The housing development has provided sufficient affordable units or otherwise meets all eligibility requirements;

iii. If a reduced parking ratio is requested, the housing development meets all eligibility requirements, unless the City makes certain findings pursuant to State Density Bonus Law, as set forth in Government Code section 65915 subdivision (p)(8), as may be amended;

iv. If concessions are requested, the housing development meets all eligibility requirements, unless the City makes certain findings pursuant to State Density Bonus Law, as currently defined in Government Code section 65915 subdivision (d)(1), as may be amended; and

v. If waivers are requested, the development standards requested to be waived would physically preclude construction of the housing development at the density and with any concession(s) or parking ratio reduction sought, unless the City makes certain findings pursuant to State Density Bonus Law, as set forth in Government Code section 65915 subdivision (e)(1), as may be amended.

17.52.080 Affordability Requirements

A. Affordable rental units provided by a housing development to meet State Density Bonus Law requirements shall be subject to an affordable housing agreement recorded against the housing development with a fifty-five (55) year term commencing upon the issuance of certificates of occupancy. The form of the affordable housing agreement shall be approved by the City Attorney.

B. For-sale affordable units provided by a housing development to meet State Density Bonus Law requirements shall be subject to a recorded affordable housing agreement with a minimum 45-year term commencing upon the issuance of certificates of occupancy in a form approved as to form by the City Attorney . The affordable housing agreement shall, at a minimum, require that:

1. Each for-sale affordable unit shall be sold to an income qualified household at an affordable housing cost, as defined in the affordable housing agreement; and
2. Each for-sale affordable unit shall be sold to the initial purchaser subject to a recorded resale restriction agreement approved as to form by the City Attorney, which shall:
   a. Have a forty-five (45) year term or longer if required by another public financing source or law;
   b. Restrict the resale price of the unit to an affordable housing cost, as defined in the resale restriction agreement; and
   c. Require that if the unit is sold to a subsequent purchaser during the term of the agreement, the purchaser shall purchase the unit subject to a resale restriction agreement approved as to form by the town attorney with a new forty-five (45) year term or longer if required by another public financing source or law.

17.52.090 Appeal Process

Any interested parties may appeal any decision to approve or deny a density bonus permit application pursuant to division 17.78 of the Piedmont Municipal Code. No permit shall be deemed issued or effective until the appeal period set forth in division 17.78 has expired. (Ord. 772 N.S., 03/2024)

DIVISION 17.54 URBAN LOT SPLITS AND TWO-UNIT HOUSING DEVELOPMENTS (SB 9)

Sections

17.54.010 Purpose and intent
17.54.020 Permit requirement
17.54.030 Definitions
17.54.040 Permit Application and review procedures
17.54.050 Urban Lot Split Standards
17.54.060 Two-Unit Housing Development Standards
17.54.070 Accessory Dwelling Units
17.54.080 Waivers from Standards
17.54.090 Recording

17.54.010 Purpose and intent

The State Legislature has declared that local jurisdictions must allow for a ministerial review of up to two residential dwelling units on each lot where single-family uses are authorized, and urban lot splits in order to allow for the construction of additional housing units. (Government Code Sections 66411.7 and 65852.21.) Proposed housing developments of up to two dwelling unit and urban lot splits in Zones A and E shall be considered ministerially, without discretionary review or a hearing, if the proposed housing development or urban lot split meets all of the applicable requirements. Urban lot splits and housing developments of up to two dwellings units shall not be allowed in Zones B, C, and D. This division shall adhere to the Government Code sections referenced below, which Government Code provisions may be amended from time to time. This division shall be interpreted in accordance with state law requirements.

17.54.020 Permit requirement

A. SB9 – Urban lot split permit. A permit is required for an urban lot split in Zones A and E in accordance with the provisions of Government Code Section 66411.7.

B. SB9 – Two-unit housing development permit. A permit is required for a housing development of up to two units in Zones A and E in accordance with the provisions of Government Code section 65852.21.

C. An application for a two-unit housing development permit may be submitted in conjunction with an urban lot split permit application.

D. Building permit. A building permit shall be required for construction of any proposed new dwelling units.

17.54.030 Definitions

In this division:

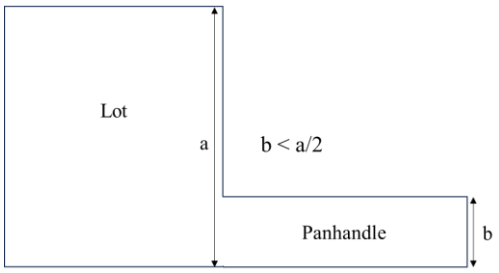
Accessory dwelling unit or "ADU" shall have the same meaning as specified in Section 17.38.020 of the Piedmont City Code.

Existing dwelling unit means a primary dwelling unit or other dwelling unit on a parcel that exists prior to any voluntary demolition or reconstruction or remodel where more than 50 percent of the exterior wall framing has been removed or altered. Any existing dwelling unit where more than 50 percent of the exterior wall framing has been removed is considered a new dwelling for purposes of this division.

Flag lot means a parcel that has less than the minimum required frontage on a public road and has access to the public right-of-way by a narrow strip of land, with the largest portion of the lot being situated behind adjoining lots which front a public right-of-way.

Junior accessory dwelling unit or "*JADU*" shall have the same meaning as specified in Section 17.38.020 of the Piedmont City Code.

Panhandle lot is a lot containing a narrow strip of land that is connected on its shorter side (b) to the larger portion of the lot where the narrow strip does not provide access to the public right-of-way, and the length of the shorter side (b) of the narrow strip of land is less than 50 percent of the parallel width (a) of the larger portion of the lot.



Primary dwelling unit means a single-family residence or a residential unit within a multi-family residential development. A primary unit is distinct from an ADU or a JADU. Examples of primary units include a single-family residence (i.e., one primary unit) and a duplex (i.e., two primary units).

SB 9 dwelling unit or *SB 9 unit* means a dwelling unit that is developed using the provisions in this division and the provisions identified in California Government Code Section 65852.21.

Two-unit housing development means a development containing no more than two primary dwelling units. A two-unit housing development may include two new units or one new unit added to an existing unit.

Unusual shape means (1) a parcel with more than 6 sides; (2) a parcel created by a lot split that necessitates more than three property line segments; (3) a panhandle lot; or (4) a parcel where an interior angle is less than 50 degrees unless the curvature of an existing street or lot line precludes the possibility of a corner that meets the angle requirement.

Urban lot split means the subdivision of a parcel within a residential single-family zone into no more than two parcels pursuant to the authority set forth in Government Code section 66411.7.

17.54.040 Permit application and review procedures

A. Application.

1. Application. An owner is required to submit an application for an urban lot split permit and a two-unit housing development permit. An application for an urban lot split may be submitted concurrently with an application for a two-unit housing development. A complete application will be reviewed for conformance with this division and the applicable standards by the Planning & Building Director.

2. Application fee. The owner shall pay an application fee in the amount established by City Council resolution.

3. Affidavit. Upon the submittal of an urban lot split application, the property owner must sign an affidavit stating that the applicant intends to occupy one of the housing units as their principal residence for a minimum period of three years from the date of the lot split. If there is no residence existing on either lot, the applicant shall sign the affidavit stating that they will intend to live in one of the new units for a minimum of three years.

B. Ministerial Review. The Director shall review each application ministerially to determine if the development standards in section 17.54.050 are met for an urban lot split or the development standards in section 17.54.060 are met for a two-unit housing development. The Director will review the application without notice or public hearing, and shall approve the application of the application meets the applicable requirements of the division and Piedmont Objective Design Standards Chapter 2: One to Four Residential Unit Developments.

C. Subdivision Map Act. An application for an urban lot split permit must adhere to the objective requirements outlined in the Subdivision Map Act (Division 2 (commencing with Section 66410)), except as otherwise expressly provided in this section. A tentative map shall be submitted to the City Engineer for a lot split application.

D. Inconsistencies. If the proposed urban lot split or two-unit housing development is inconsistent with applicable requirements, the planning director shall provide the applicant notice describing the inconsistency(ies) in the same manner prescribed by Government Code section 65589.5(j)(2).

E. Decision and conditions. The Director shall render a decision in writing and shall state the reasons for approval or denial. The decision of the Director shall be final. The City may deny an urban lot split permit or a two-unit housing development permit if the Director makes a written finding, based upon a preponderance of the evidence, that the proposed housing development project would have a specific, adverse impact, as defined and determined in paragraph (2) of subdivision (d) of Section 65589.5, upon public health and safety or the physical environment

and for which there is no feasible method to satisfactorily mitigate or avoid the specific, adverse impact.

17.54.050 Urban Lot Split Standards

The Director may not approve an application for an urban lot split permit unless the project conforms to all of the standards listed below and in Chapter 2 of the Piedmont Objective Design Standards. A waiver may be granted for an exception to the standards as provided in section 17.54.080.

A. Size Requirements

1. The parcel subdivides an existing parcel to create no more than two new parcels of approximately equal lot area provided that one parcel shall not be smaller than 40 percent of the lot area of the original parcel proposed for subdivision.

2. The newly created parcels are no smaller than 1,200 square feet.

B. Location Requirements

1. The parcel is not located in an area identified in subparagraphs (B) to (K) of paragraph (6) of subdivision (a) of Section 65913.4 of the Government Code.

   a. The parcel is not located within a very high fire hazard severity zone, as determined by the Department of Forestry and Fire Protection pursuant to Section 51178, or within a high or very high fire hazard severity zone as indicated on maps adopted by the Department of Forestry and Fire Protection pursuant to Section 4202 of the Public Resources Code. This subparagraph does not apply to sites excluded from the specified hazard zones by a local agency, pursuant to subdivision (b) of Section 51179, or sites that have adopted fire hazard mitigation measures pursuant to existing building standards or state fire mitigation measures applicable to the development.

   b. The parcel is not located on a hazardous waste site, as defined by Government Code Section 65913.4(a)(6)(H).

   c. The parcel is not located within a special flood hazard area subject to inundation by the one percent annual chance flood (one hundred (100)- year flood) as defined by Government Code Section 65913.4(a)(6)(G).

   d. The property is not located within a regulatory floodway, as defined by Government Code Section 65913.4(a)(6)(H).

2. The proposed urban lot split would not require demolition or alteration of the housing types listed in Government Code section 66411.7(a)(3)(D)(i)-(iv) nor the following types of housing:

   a. Housing that is subject to a recorded covenant, ordinance, or law that restricts rents to levels affordable to persons and families of moderate, low, or very low income.

b. Housing that is subject to any form of rent or price control through a public entity's valid exercise of its police power.

c. A parcel or parcels on which an owner of residential real property has exercised the owner's rights under Chapter 12.75 of the California Government Code (commencing with Section 7060) of Division 7 of Title 1 to withdraw accommodations from rent or lease within 15 years before the date that the development proponent submits an application.

d. Housing that has been occupied by a tenant in the last three years.

3. The parcel is not located within a historic district or property included on the State Historic Resources Inventory, as defined in Section 5020.1 of the Public Resources Code, or within a site that is designated or listed as a city or county landmark or historic property or district pursuant to a city or county ordinance.

4. The parcel has not been established through prior exercise of an urban lot split as provided for in this division.

5. Neither the owner of the parcel being subdivided nor any person acting in concert with the owner has previously subdivided an adjacent parcel using an urban lot split as provided for in this division.

C. Lot Configuration

1. Access to Public Right-of-Way. The new parcel shall have vehicular access to the public right-of-way, either through direct lot frontage or an easement through the existing parcel.

2. Existing Dwelling Unit. If an urban lot split is proposed for a property with an existing dwelling unit, the split must result in the existing dwelling unit being completely located on one parcel. There shall be no existing or proposed structure in the setback along the new lot line for the lot on which the existing house remains. The lot on which the existing primary residence remains shall comply with the underlying zoning regulations such that no nonconformity is introduced, and no existing nonconformity is increased by the subdivision.

3. Lot Frontage. The lot shall have a minimum frontage of 60 feet, unless the frontage requirement precludes the development of two lots containing an 800 square foot primary structure. A new lot may be accessed via an easement across a pre-existing lot that contains street frontage.

4. Flag Lots. Flag lots are not permitted under an urban lot split permit. If a new parcel is created without direct access to the public right-of-way, an easement shall be provided through the original lot. The easement shall meet the following requirements:

a. The easement shall have a minimum width of 12 feet.

b. The easement shall provide access for utilities to be connected to the public right-of-way.

5. The side line of all lots shall be at right angles to the street which the lot faces, or approximately radial to the center of the curvature, if the street is curved. Side lines of lots shall be approximately radial to the center of the curvature of a cul-de-sac on which the lot faces.

6. For a newly created lot that is located in both Piedmont and Oakland, the applicant shall obtain all the required permits in both jurisdictions.

7. Lots of an unusual shape, as defined in section 17.54.030, are not permitted.

8. Access to the new lot shall meet the driveway width, slope standards, and other standards for vehicular access outlined in Chapter 2.5 of the Piedmont Objective Design Standards.

D. Utilities

1. The new parcel shall have separate utilities, including but not limited to electric, gas, water, and sewer. The new parcel shall adhere to the standards outlined in the Piedmont Public Works Standards.

2. Utility easements shall be recorded prior to final map recordation. (Ord. 788 N.S., 02/2026)

17.54.060 Two-Unit Housing Development Standards

The Director may not approve an application for a two-unit housing development permit unless the project conforms to all of the standards listed below and Chapter 2 of the Piedmont Objective Design Standards. A waiver may be granted for an exception to the standards as provided in section 17.54.080.

A. Size.

a. The SB 9 unit is no more than 800 square feet in size.

b. For an SB 9 unit that exceeds the 800 square foot size limit, the SB 9 unit shall meet the floor area ratio criteria for the underlying zoning district, unless the development falls under section E below.

B. Height. The maximum height of a new SB 9 unit shall meet the requirements of the underlying zoning district.

C. Setbacks.

a. The side and rear setback is four feet for an SB 9 unit in any zone.

b. The street-side setback, including for corner lots, is 20 feet.

c. For the development of a new SB 9 unit within an existing structure that does not meet the four-foot setback requirement, the new unit is allowed to keep the nonconforming condition so long as the nonconformity is not increased within the setback area. The converted structure must be in the same footprint and dimensions as the existing non-conforming structure.

D. Parking. New SB 9 units are required to have at least one parking space that meets the parking regulations in Section 17.30.040 and Section 17.30.050 of the Piedmont City Code. If the parcel is located within one-half mile walking distance of either a high-quality transit corridor as defined in subdivision (b) of Section 21155 of the Public Resources Code, or a major transit stop as defined in Section 21064.3 of the Public Resources Code, then parking is not required for the new SB 9 unit. Additional parking spaces for a unit can be stacked or tandem.

E. Lot Coverage.

a. When a two-unit housing development is proposed on a new lot created pursuant to the urban lot split provisions specified in this division, the new SB 9 unit(s) shall conform to the structure coverage, landscape coverage, and floor area ratio of the underlying zoning district.

b. When a new SB 9 unit is constructed on a lot with an existing dwelling unit, the floor area ratio may exceed the code required maximums so long as structure and landscape coverage conform to the requirements of the underlying zoning district.

Path of Travel. The path of travel to the new SB 9 unit shall be clearly marked by providing an address marker visible from the street and at the main entry door to the new unit. If needed, path lights shall also be installed. The path of travel shall have a minimum width of 3 feet. (Ord. 788 N.S., 02/2026)

17.54.070 Accessory Dwelling Units

Accessory dwelling units (ADU) and junior accessory dwelling units (JADU) are permitted on a parcel that has undergone an SB9 urban lot split or is a two-unit housing development that conforms with California Government Code Sections 65852.2 (ADUs) and 65852.22 (JADUs). Once a parcel has been divided pursuant to the urban lot split provisions, the maximum number of dwellings on each resulting parcel, inclusive of any ADUs or JADUs, is two. On a parcel with a two-unit housing development, the maximum number of units allowed is four (inclusive of two primary units, an ADU, and a JADU).

17.54.080 Waivers from Standards

A. An applicant may request a waiver from the development standards provided in this division and Chapter 2 of the Piedmont Objective Standards if the following criteria are met:

1. Application. The applicant requests an exception as a part of the application materials.

2. Approval Authority. The exception request shall be submitted to the Director for review. The Director shall determine if the exception meets the standards for approval.

3. Standards for Approval. An exception from a development standard shall be granted if the standard would have the effect of physically precluding: (1) an urban lot split of a vacant parcel where the resulting lot size is 1,200 square feet or more for both parcels; (2) an urban lot split of a parcel with existing development, where the resulting lot size is 1,200 square feet or more for both parcels, and the urban lot split does not increase any nonconformity with

underlying zoning regulations for the parcel with existing development; or (3) the construction of up to two units that are 800 square feet in floor area or less, each.

Waivers from objective zoning standards shall not be granted if the floor area and/or structure coverage of each new housing development would exceed 800 square feet. The city shall determine the extent of relief necessary to allow two 800 square foot units. Waivers from zoning standards for accessory structures, such as decks and garages, shall be only for the minimum size structure required to serve each housing unit according to state law and Chapter 8 Building Code standards. A waiver cannot be approved for an application that proposes new construction within the four-foot side and rear setbacks. (Ord. 788 N.S., 02/2026)

17.54.090 Recording

If a parcel is developed with a housing unit and/or a lot split pursuant to Government Code sections 65852.21 and 66411.7, then the applicant shall record a document indicating the exercise of Government Code sections 65852.21 and/or 66411.7 in a form approved by the city. The document shall be recorded by the applicant prior to final inspection or final map approval. (Ord. 782 N.S., 08/2025)

DIVISION 17.56 EMERGENCY SHELTERS

Sections:

17.56.010 Purpose and intent
17.56.020 Applicability
17.56.030 Emergency Shelter Permit; Application and Issuance
17.56.040 Standards for Emergency Shelters
17.56.050 Appeal Process

17.56.010 Purpose and intent

The purpose and intent of this division is to establish standards for emergency shelters that ensure compatibility of shelter activities with surrounding uses and provide a safe place for individuals and families to obtain temporary shelters, in compliance with state housing law, including Government Code section 65583.

17.56.020 Applicability

This division applies to all emergency shelters established as permitted uses in Zones A and B.

17.56.030 Emergency Shelter Permit; Application and Issuance.

A. An application for an emergency shelter permit shall be filed with the Planning and Building Department on a form approved by the City together with a fee fixed by resolution of the City Council. The Director shall approve an application that meets the objective development standards set forth in section 17.56.040 without discretionary review or a public hearing. In the event of disapproval, the Director shall set forth in writing the standards to which the application did not comply. A decision by the Director shall be made as soon as practicable, and in no event more than 30 days after the application has been deemed complete.

B. Pursuant to section 17.64.020 of the Piedmont City Code, any approval granted pursuant to section 17.56.030 shall expire one year from the approval date unless a building permit has been issued for the project. The Director may also grant an extension pursuant to section 17.64.020.B.

17.56.040 Standards for Emergency Shelters

A. The following standards and regulations apply to emergency shelters.

1. Each operator of an emergency shelter shall have a written management plan that uses best practices to address the housing needs of those using the shelter. The written management plan shall address the standards in this section. The operator shall also establish a liaison to coordinate with City staff, school district officials, local businesses, and residents on issues related to the operation of the facility.
2. Emergency shelters shall provide on-site personnel during hours of operation when individuals who are utilizing the emergency shelter are present. The management plan shall include procedures for screening residents to ensure compatibility with services provided at the facility.
3. The maximum number of beds or persons permitted to be served nightly is 15.
4. No emergency shelter facility shall be located within 300 feet of another emergency shelter, measured from the property line.

5. When abutting a residence, all waiting and intake areas shall be located indoors. A minimum of 100 square feet of waiting area must be provided to ensure that the public sidewalks or private walkways are not used as queuing or waiting areas. The onsite client intake area must be equal to one-quarter of the area provided for client beds. This may be a multi-use area.
6. Any outdoor storage, including, but not limited to, items brought on site by clients for overnight stays, shall be screened from public view by a minimum six-foot-tall decorative wall or fence on a non-street facing yard.
7. Facility improvements shall comply with the development standards specified in sections 17.20.040 and 17.22.040 of the Piedmont City Code, applicable building and safety codes, and State and Federal laws.
8. The facility shall comply with the parking standards outlined in section 17.30.010.B. of the Piedmont City Code.
9. The facility shall include other amenities as may be required by State of California's provisions for emergency shelters.
10. Lighting shall be provided in all exterior areas, including pathways, parking areas, courtyards, rear yard areas, and spaces between structures. Lighting shall be directed in a manner that does not cast light onto neighboring properties.
11. Service providers will ensure that the maximum stay at the facility shall not exceed 120 days in a 365-day period.
12. The facility shall comply with all other laws, rules, and regulations that apply including, but not limited to, building and fire codes. The facility shall be subject to City inspections prior to the commencement of operation. In addition, the City may inspect the facility at any time for compliance with applicable laws and standards.
13. Emergency shelter operator shall obtain a City of Piedmont business license.

17.56.050 Appeal Process

Any interested parties may appeal any decision to approve or deny an emergency shelter permit application pursuant to division 17.78 of the Piedmont City Code. (Ord. 774 N.S., 09/2024)

ARTICLE 4. ADMINISTRATION

Divisions:

17.60 General provisions
17.62 Notice requirements
17.64 Hearings; Review; Term of approval; Conditions
17.66 Design review
17.68 Conditional use permits
17.70 Variances
17.72 Zoning amendments
17.74 Development agreements
17.76 Reasonable accommodation
17.78 Appeals; Calls for review
17.80 Enforcement

DIVISION 17.60 GENERAL PROVISIONS

Sections:

17.60.010 General
17.60.020 Completeness of application
17.60.030 Environmental review
17.60.040 Fees and deposits
17.60.050 City indemnification
17.60.060 Approval authority
17.60.070 Decision; New application
17.60.080 Withdrawal of application

17.60.010 General.

A. General. This article 4, Administration, sets forth the general administrative authority and procedures for decision making under this zoning ordinance. It includes general administrative provisions and notice and hearing requirements; requirements for various discretionary approvals: design review permit, conditional use permit, variance, zoning amendment, development agreement, and reasonable accommodation; and provisions for appeals and enforcement.

B. Applicant. The applicant is the person or entity, or representative, who submits an application under this chapter. An applicant must either be the legal owner or submit the owner's written consent with the application.

17.60.020 Completeness of application.

A. Initial application. Within 30 calendar days after the city has received an application for a development project, the city will determine in writing whether the application is complete, and shall promptly transmit the determination to the applicant. If the application is determined not to be complete, the city's determination will specify those parts of the application which are incomplete, and shall indicate the manner in which they can be made complete, including a list and thorough description of the specific information needed.

If the determination is not made within 30 calendar days, and the application includes a statement that it is an application for a development permit (as that term is used in Government Code sections 65927 and 65943), the application will be deemed complete.

B. Resubmittal. Upon any resubmittal of an application determined not to be complete, a new 30-day period begins for determining whether the application is complete. The city will determine in writing whether the resubmitted materials are complete and will notify the applicant. If the written determination is not made within that 30-day period, the application together with the submitted materials will be deemed complete.

If the city determines, after receiving the resubmitted materials, that the application is still incomplete, the city and the applicant will follow the procedures set forth in Government Code section 65943 (as it may be amended from time to time).

C. Time period extensions. An applicant and the city may mutually agree to extend a time period provided by this subsection.

D. Applications deemed withdrawn. To promote efficient review and timely decisions, an application will automatically be deemed withdrawn when an applicant fails to submit a substantive response within 90 days after the City deems an application incomplete in a written notice to the applicant. The Director may grant a written extension for up to an additional 30 days upon a written request for an extension received before the 90th day. The Director may grant further written extensions only for good cause, based on circumstances outside the applicant's reasonable control.

17.60.030 Environmental review.

Each land use application for a discretionary approval by the city is subject to the requirements of the California Environmental Quality Act (CEQA), and the state CEQA Guidelines.

17.60.040 Fees and deposits.

A. General. Each person submitting an application for a permit, or filing an appeal, under this chapter must pay the required fees and deposits as established by city council resolution. The fee may be either a flat fee or the actual cost incurred by the city in processing an application.

B. Fee calculation. When a flat fee, or sliding scale, is established for a particular type of application, the fee is based on the estimated number of hours of work by city staff at the staff member's hourly rate. If the estimated number of hours is exceeded, the city may charge for

additional hours worked. The hourly cost for city employees is the full, hourly cost of that employee, including overhead.

C. Deposits.

1. Actual cost. If an application does not have an established flat fee, or if an extraordinary cost is involved under subsection D, the fee is based on actual cost. The Director will require that a deposit equal to the estimated cost of processing be submitted concurrently with an application. The actual cost of city staff work is the person's hourly rate, including overhead. For a consultant or contractor, the actual cost is the billed amount plus 10% for the city's administrative cost.

2. Refund; Increase in deposit. If the actual cost is less than the deposit, or if the applicant withdraws an application under section 17.60.080, the city will refund the unused balance to the applicant within 15 working days after final action on the application, or after the withdrawal.

If it appears that the actual cost will be greater than the deposit, the Director may require an additional deposit, and may direct the city staff to cease work on the application until the city has received the additional deposit. The city may not issue a permit based on the application until the balance is paid.

D. Extraordinary costs. Extraordinary costs incurred by the city in processing an application include the cost of consultants and experts determined by city staff, the Planning Commission or the City Council to be necessary for a full and adequate hearing. The applicant is responsible for these costs, which will be included in a deposit amount under subsection C.

E. Reduction for affordable dwelling units. A multi-family residential project that incorporates affordable units is eligible for a 20% reduction in the application fees.

17.60.050 City indemnification.

Each applicant shall defend (with counsel acceptable to the city), indemnify and hold harmless the city (including its agents, officers, and employees) from any claim, action, or proceeding to challenge an approval of the Planning Commission, City Council, or any officer or department concerning a permit granted under this chapter 17.

17.60.060 Approval authority.

A. Planning Director; City Clerk. The Planning Director has the primary authority to approve: some design review permit (including signs), some wireless communication facilities permits, and accessory dwelling unit permits. Except for accessory dwelling unit permits, the Planning Director may, in the director's discretion, refer any of these applications directly to the Planning Commission.

The City Clerk has the primary authority to approve home occupation permits.

B. Public Works Director. The Public Works Director has the primary authority to approve: encroachments permits, and sign permits on public property.

C. Planning Commission. The Planning Commission has the primary authority to approve applications for variances, some design review permits, conditional use permits, some wireless communication facilities permits, and to make recommendations to the City Council regarding zoning amendments, some subdivisions, and development agreements. The Planning Commission also hears appeals from decisions of the Planning Director, and matters referred from the Planning Director. Combined applications involving multiple permits or approvals will be heard together.

D. City Council. The City Council has the authority to approve development agreements, zoning ordinance amendments, some subdivisions, and to hear appeals from the Planning Commission. Combined applications involving multiple permits or approvals will be heard together.

All actions taken under this section 17.60.020, except for subsection D (City Council), are subject to division 17.78, Appeals and Calls for Review. (Ord. 747 N.S., 02/2020)

17.60.070 Decision; New application.

A. Decision. When considering an application, the hearing body may approve, approve with conditions, or deny the application. The decision is based on the regulations in effect at the time when the application is deemed complete pursuant to Government Code section 65943, or for housing development projects at the time a preliminary application is submitted pursuant to the requirements of Government Code section 65941.1, provided that a submittal of a full application follows within 180 days. . The hearing body will inform the applicant of its reasons, and state the basis for findings, if findings are required. The decision is final and takes effect at the end of the appeal period, or, if appealed, after the appeal has been decided. (See division 17.78, Appeals; Calls for review.) If no appeal is filed, any required time period is measured from the date of the original decision.

B. New application. If the hearing body denies an application, it is presumed to be without prejudice, meaning the applicant may re-submit a modified application at any time. However, the hearing body may deny an application with prejudice, meaning that the applicant may not resubmit a new application for substantially the same project for one year.

17.60.080 Withdrawal of application.

An applicant may withdraw an application at any time during the review process before the final decision, by filling out the request for withdrawal form. Upon withdrawal, the applicant may request a partial refund of fees, in proportion to the staff time and costs already expended, in the Director's discretion.

DIVISION 17.62 NOTICE REQUIREMENTS

Sections:

17.62.010 General.
17.62.020 Contents of notice.
17.62.030 Summary of notice requirements.

17.62.010 General.

Whenever a public hearing is required, notice of the public hearing will be given in accordance with this section. Unless stated otherwise, notice will be given at least 14 calendar days before the hearing.

In addition to the notices sent to the applicant and other property owners under section 17.62.030 C, notice shall also be mailed or delivered to any person who has filed a written request for notice with the City Clerk. The city may charge a fee that is reasonably related to the cost of providing this service. Requests for notice must be renewed annually.

The failure of any person or entity to receive notice does not constitute grounds for any court to invalidate the actions of the city for which the notice was given. (Gov't. Code §65093.)

A public hearing conducted under this part may be continued from time to time to a specific date and time, without additional notice.

For combined applications with multiple permits, the greater notice requirement applies to the entire packet of applications.

In addition to the notice requirements set forth here, the Planning Director may give notice of a hearing in any other manner the director deems necessary or desirable.

17.62.020 Contents of notice.

When a notice of a public hearing is required, the notice shall include the following information:

1. A general description (in text or by diagram) of the location of the property that is the subject of the hearing;
2. A general explanation of the matter to be considered;
3. The date, time and place of the public hearing;
4. The identity of the hearing body;
5. A reference to application materials on file for detailed information;
6. A statement that any interested person may appear and be heard; and
7. Other information which is required by statute or specific provisions of this chapter or which the Planning Director deems necessary or desirable.

17.62.030 Summary of notice requirements.

A. General. Notice of a public hearing will be given for a particular matter in accordance with the schedule set forth at subsection E below.

Published notice means that the notice will be published at least once in a newspaper of general circulation, at least 14 calendar days before the hearing.

Notice regarding landscape plans will be given as part of the related application.

B. Notice by applicant.

1. Before Planning Commission. The applicant for a design review permit or a variance, to be considered by the Planning Commission, must notify the adjacent property owners of the proposed project at least 30 calendar days before the date of the initial hearing. The notice must be in writing, describe the project in specific detail, and give the date of the hearing on the application. The applicant must submit to the Planning Director at least 30 calendar days before the hearing an affidavit of service by mail or personal delivery and a copy of the written notice.

2. Expedited design review by Director. The applicant for an expedited design review permit under section 17.66.040.B.3 may be required to notify adjacent neighbors as specified in the Design Standards and Guidelines or the application instructions.

C. Method of city notice.

1. Publication or posting/mailing. The city will give notice either by (i) publication in a newspaper of general circulation circulated in the city; or (ii) posting on the official city hall bulletin board and mailing a copy to each property owner of record shown on the latest equalized assessment rolls according to the schedule in subsection E. In addition to these requirements, the city may post notification at the project site.

2. Publication required. If the number of owners to whom notice would be sent under subsection B.1 is greater than 1,000, the city will give notice by placing a display advertisement of at least one-eighth page in a newspaper having general circulation within the city. (Ord. 774 N.S., 09/2024)

3. Property reclassification. If a property reclassification from one zoning district to another has been proposed by a person other than the property owner, including the city, the city will mail notice of all hearings to the property owner.

D. Compliance with public notice requirements. Compliance with public notice requirements prescribed by this chapter are deemed sufficient notice to allow the city to proceed with a public hearing and take action on an application, regardless of actual receipt of mailed, posted or delivered notice. (Gov't. Code §65093.)

E.
Schedule of notice requirements. Notice of an application will be given under this chapter as set forth in the following schedule:

		Notice by City at least 14 days before the hearing, measured from the project boundary. [2]				
	Notice by applicant 30 days before hearing[1]	**to adjacent property owners**	**to property owners within 100 feet**	**to property owners within 200 feet**	**to property owners within 300 feet**	**to property owners within 500 feet**
Design review permit	Variable depending on application. See division 17.66.					
Ministerial design review	No public notice. See division 17.67.					
Variance Single (other than for height or floor area ratio)	X		X			
More than one, or for height or floor area ratio	X			X		
Signs	X[4]		X			
Landscape plan	X[4]		X[4]			
Lot line adjustment Between two lots More than two lots			X		X	
Wireless communication facility permit	X[4]		X			
Accessory Dwelling Unit Permit	No notice for an ADU permit application is permitted. See division 17.38.					
Negative declaration or Environmental Impact Report required	X[4]				X	
Tract map or parcel map	X				X	
Conditional use permit, or modification						X
Reasonable accommodation[3]			X			
Zoning Regulation Amendment	Publish notice in newspaper of general circulation within the City.[5]					
Zoning Map Amendment	Publish notice in newspaper of general circulation within the City.[5]					
Other applications		X				
Appeal, Call for Review	Subject to Section 17.78.030.A.					
	Notice by City at least 20 days before the hearing. [2]					
Zoning Regulation Amendment affecting the permitted use of real property	Publish notice in newspaper of general circulation within the City.[5]					
Zoning Map Amendment affecting the permitted use of real property	Publish notice in newspaper of general circulation within the City.[5]					

[1] See section 17.62.030B.
[2] See section 17.62.030C.
[3] Subject to section 17.76.040.
[4] For an application considered by Planning Commission

[5] Subject to section 17.62.030, subsections A and C.

(Ord. 743 N.S., 05/2018; Ord. 747 N.S., 02/2020; Ord. 769 N.S., 10/2023; Ord. 789 N.S., 02/2026)

DIVISION 17.64 HEARINGS; TERM OF APPROVAL; CONDITIONS

Sections:

17.64.010 Hearings
17.64.020 Term of approval
17.64.030 Conditions of approval

17.64.010 Hearings.

A. Planning Commission. If an application will be considered by the Planning Commission, city staff will schedule the matter at the next meeting that has an open agenda, once the application is complete, and at least 14 days later to allow time for noticing.

B. City Council. If this chapter requires a City Council hearing, the hearing will be scheduled for the next available regular City Council meeting unless the hearing is for an appeal, in which case the hearing will be scheduled at least 45 calendar days after the filing of an appeal.

C. Continued hearing. When necessary for proper evaluation of an application, the Planning Commission or City Council may continue a hearing to a later meeting date.

D. Voting. A City Council or Planning Commission decision must be made by a majority of the body. (See City Charter Section 2.07C and City Code Section 25.14.) (Ord. 743 N.S., 05/2018)

17.64.020 Term of approval.

A. General. An approved conditional use permit, design review permit, accessory dwelling unit permit, SB 9 ministerial housing development, or variance lapses one year after its date of final approval, or at an alternative time specified as a condition of approval, unless one of the following has occurred:

1. A building permit has been issued, substantial money expended, and construction diligently pursued; or

2. A final inspection has been issued; or

3. The conditional use is established in reliance on the approval.

An applicant is not allowed to proceed with construction if the approval has expired.

B. Administrative extension. Except for permits where an extended alternative term of approval was provided through a condition of approval as provided in 17.64.020.A, the Director will grant one six-month extension for any permit or variance approval by the Planning Commission, City Council, or staff, upon written application by the property owner on a form provided by the Director, along with submission of the extension fee, prior to expiration of the original approval. The extension fee is the amount established by City Council resolution. (Ord. 774, 09/2024)

C. Re-application. An application for re-approval of an expired, previous approval is subject to all the requirements of this code in effect on the date of the final decision on the re-application. (Ord. 743 N.S., 05/2018; Ord. 769 N.S., 10/2023)

17.64.030 Conditions of approval.

A. General. In its review of an application, the reviewing body may impose reasonable conditions necessary to:

1. Achieve the general purposes of this chapter or the specific purposes of the zoning district in which the site is located, or to make it consistent with the general plan and Piedmont Design Standards and Guidelines;

2. Protect the public health, safety, and general welfare; or

3. Ensure operation and maintenance of the use in a manner compatible with existing and potential uses on adjoining properties or in the surrounding area.

B. Guarantee. The Director, Planning Commission, or City Council may impose a condition of approval requiring a guarantee that specified conditions of approval will be met. The guarantee may be in the form of a bond, cash deposit, letter of credit or other guarantee. The city may also require that the applicant agree in writing to the city's right to complete or repair incomplete or incorrect work on the applicant's property, to recover the costs incurred from the applicant, and if unpaid, to impose a lien against the property for the costs. The costs may include staff time, contractor and consultant services, and legal services. If the conditions are not met, the City may use the guarantee to meet the conditions. The guarantee will be released upon a showing that all the specified conditions of approval have been met.

DIVISION 17.66 DESIGN REVIEW PERMIT

Sections:

17.66.010 Intent
17.66.020 Implementation
17.66.030 Permit required; Exceptions
17.66.040 Approval authority
17.66.050 Procedures: Application; Notice and hearing; Decision; Effective date; Appeal
17.66.060 Standards

17.66.010 Intent.

Design review is intended to: promote orderly, attractive, safe and harmonious development; uphold the aesthetic values of the community; and ensure excellence of architectural design; all as set forth in the Piedmont Design Standards and Guidelines. (Ord. 769 N.S., 10/2023)

17.66.020 Implementation.

A. Piedmont Design Standards and Guidelines. The City Council has adopted the Piedmont Design Standards and Guidelines that are available online and at city hall. The Standards and Guidelines are the criteria for the applicant and hearing body in determining whether a specific project conforms to section 17.66.060, Standards.

B. Director. The Director will prepare:

1. the permit application forms; and

2. public lists for guidance to applicants on which applications are subject to each type of design review.

(Ord. 769 N.S., 10/2023)

17.66.030 Permit required; Exceptions.

A. Permit required. A design review permit is required for any of the following, unless an exception applies under subsection B.

1. improvement requiring a variance or building permit;

2. fence, wall, retaining wall, or trash enclosure as provided in division 17.32.

No improvement subject to design review under this division may be constructed, repaired or maintained except in accordance with a design review permit. The term *improvement* in this division means (1) the construction, alteration and repair of a building, structure, or facility permanently affixed to real property, or (2) a site feature.

The city will not issue a building permit under chapter 8 until the applicant has obtained the required design review permit. The city will not allow demolition unless the applicant has

approval of plans for a replacement structure or other site improvements under this chapter 17, and has obtained a building permit under chapter 8.

B. Exceptions. No design review permit is required for a small improvement or for an interior improvement not requiring a variance. The Director determines what is a *small improvement*, and will maintain a list, available to the public. (See section 17.66.020 B.)

17.66.040 Approval authority.

A. Planning Commission.

1. Applicability. The Planning Commission has the responsibility to review a design review permit if the project is:

a. part of an application for a variance or conditional use permit;

b. is valued at $125,000 or more (adjusted for inflation[1]);

c. a site feature greater than 7 feet high and located in a side or rear yard setback, or a site feature of any height located within a 20-foot street setback;

d. a retaining wall greater than 30 inches in height located within a street yard setback or a fence of any height located within a street yard setback; or

e. referred to the Planning Commission by the Director.

However, if any component of a project application requires final approval by the City Council, including a City project, the Planning Commission makes a recommendation and the Council is the final decision-making body. The Planning Commission shall not review any development application that is eligible for ministerial review under State law unless the applicant voluntarily requests discretionary review (See division 17.67).

2. Notice. If a project is subject to Planning Commission approval, the city will give notice:

a. in the same manner required for the underlying application of which design review is a part; or

b. to property owners within 100 feet of the property for a stand-alone design review permit application, including those for nonresidential signs under section 17.36.040.C.2 and landscape plans under section 17.34.020.A.2, except that design review permit applications for a new house shall require notice to property owners within 300 feet of the property. (See division 17.62. In some cases, the applicant provides the notice to other property owners.)

[1] The amount of $125,000 is automatically adjusted for inflation annually on July 1 of each year beginning in 2018 based upon the California Construction Cost Index published by the California Department of General Services from data produced by the Engineering News Record.

3. Standards. In reviewing an application for a design review permit, the Planning Commission will apply the standards set forth in section 17.66.060, Standards.

B. Director.

1. Applicability. The Director has the authority to approve a design review permit application if the project is not covered by the Planning Commission applicability threshold under subsection A.1 above. The Director may refer an application to the Planning Commission.

2. Notice. The city will give notice of a design review permit application to the adjacent property owners if the proposal represents a significant change. The Director determines what is a significant change. (See section 17.66.020 B.)

3. Expedited review. An application for a minor modification is entitled to expedited review. The Director determines what is a minor modification, and will maintain a list, available to the public. (See section 17.66.020 B.)

4. Ministerial design review permit application. Application for a ministerial design review permit, as provided in division 17.67, shall be reviewed and approved by the Director.

5. Standards. In reviewing an application for a design review permit, the Director will apply the standards set forth in section 17.66.060, Standards.

6. Changes.

a. Conditions of approval. Only the approving hearing body may approve a change to a condition of approval, unless the condition provides otherwise.

b. Plans. A change in the plans will be reviewed by the approving hearing body, except that the Director may approve a change to plans approved by the Planning Commission or City Council if the change does not meet the threshold applicability provisions for review by the Planning Commission (see section 17.66.040 A 1), or is a minor modification. (See section 17.66.020 B.)

(Ord. 769 N.S., 10/2023)

17.66.050 Procedures: Application; Notice and hearing; Decision; Effective date; Appeal.

A. Application. An applicant for a design review permit must submit a complete application, accompanied by plans and materials in the form approved by the Director, and the application fee. The Director may waive submission of items deemed unnecessary to determine compliance with this chapter. An application is considered complete if it is in accordance with section 17.60.020.

B. Notice and hearing. The hearing body will hold a hearing on the application, unless the application qualifies for expedited review under section 17.66.040B.3, or no neighbor requests a

hearing under section 17.66.040 B.2. Notice requirements are set forth in sections 17.66.040 A.2 and B.2, and in division 17.62.

C. Decision. The hearing body will approve, conditionally approve, or deny the application. The Director will notify the applicant of the decision in writing.

D. Effective date. A decision under this division takes effect at the end of the time allowed for an appeal, which is 10 calendar days after the date of the decision. If the decision is appealed, the decision is not final until the appeal process has been exhausted. (See division 17.78.)

E. Appeal. A decision of the Director may be appealed to the Planning Commission, and a decision of the Planning Commission may be appealed to the City Council, all in accordance with the appeal procedures of division 17.78.

17.66.060 Standards.
The hearing body may not approve a design review permit unless the design of the project conforms to all of the following standards:

A. The proposed design is consistent with the City's General Plan and Piedmont Design Standards and Guidelines.

B. The design has little or no effect on neighboring properties' existing views, privacy, and access to direct and indirect light.

C. The proposed design does not adversely affect pedestrian or vehicular safety.
(Ord. 769 N.S., 10/2023)

DIVISION 17.67 MINISTERIAL DESIGN REVIEW PERMIT

Sections:

17.67.010 Intent
17.67.020 Implementation
17.67.030 Permit required
17.67.040 Approval authority
17.67.050 Procedure: Application; Notice; Decision; Decision of Director is final
17.67.060 Standards; Findings

17.67.010 Intent.

It is the intent of the City in establishing this ordinance to support equitable distribution of affordable housing units across the City; promote and enhance community design and neighborhoods; remove barriers to development and access to housing through clear and objective standards; and facilitate the development of new multifamily housing units.

17.67.020 Implementation.

A. Piedmont Objective Design Standards. The City Council has adopted the Piedmont Objective Design Standards that are available online and at City Hall. The Piedmont Objective Design Standards are for the review of projects that meet the requirements for ministerial review. The Piedmont Objective Design Standards are one of the criteria for the applicant and Director in determining whether a specific project conforms to section 17.67.060 Standards; Findings. (Ord. 788 N.S., 02/2026)

B. Director. The Director will prepare:

1. The permit application forms; and
2. Information to provide technical assistance to residents and applicants.

C. Voluntary discretionary review. Any applicant eligible for ministerial design review pursuant to section 17.67.030, may submit in writing to the Director a voluntary request to have the design review permit application considered according to the provisions of division 17.66 to receive discretionary design review for the applicant's development proposal.

17.67.030 Permit required.

A. Permit required. A ministerial design review permit is required for any development which meets the eligibility criteria for ministerial review under State law, subject to review under Chapter 17 division 17.38, (2) Two-unit housing developments and/or urban lot splits, which are subject to review under Chapter 17 division 17.54, and (3) other ministerial projects including certain multifamily and mixed-use developments as required by law; (Ord. 788 N.S., 02/2026)

B. The building official will not issue a building permit under chapter 8 of the City of Piedmont City Code until the applicant has obtained the required ministerial design review permit. The city will not allow demolition pursuant to division 17.67 unless the applicant has

approval of plans for a replacement structure pursuant to this chapter 17 and has obtained a building permit under chapter 8.

17.67.040 Approval authority.

A. Director.

1. Applicability. The Director has the authority to review and approve a ministerial design review permit application submitted pursuant to section 17.67.030, and any application to amend a previously approved ministerial design review permit, pursuant to State law.

2. Notice. No notice shall be provided for ministerial design review applications submitted pursuant to section 17.67.030.

3. Standards and Findings. In reviewing an application for a ministerial design review permit, the Director shall apply the standards set forth in section 17.67.060, Standards; Findings.

17.67.050 Procedures: Application; Notice and hearing; Decision; Effective date; Appeal.

A. Application. An applicant for a ministerial design review permit must submit a complete application, accompanied by plans and materials in the form approved by the Director, and the application fee, which fee shall be established by resolution. The Director may waive in writing submission of items deemed unnecessary to determine compliance with this chapter. An application is considered complete in accordance with section 17.60.020.

B. Notice and hearing. The Director shall review the ministerial design review permit application without notice or public hearing, unless otherwise required by State law.

C. Decision. The Director shall notify the applicant of the decision in writing.

D. Director's decision is final. Permits approved by the Director for ministerial design review permit applications are final.

17.67.060 Standards; Findings.

The Director may not approve a permit application as provided under section 17.67.030.A unless the Director first finds that the design of the project conforms to all of the following standards:

A. The proposed development meets the criteria for ministerial approval under State law.

B. The proposed development meets applicable design standards as provided in the Piedmont Objective Design Standards, as they may be amended from time to time by the City Council.

C. The proposed development complies with zoning ordinance regulations for the zone in which the project site is located. (Ord. 788 N.S., 02/2026)

DIVISION 17.68 CONDITIONAL USE PERMIT

Sections:

17.68.010 General: Intent; Applicability.
17.68.020 Application.
17.68.030 Decision Making body
17.68.040 Findings for Conditional Use Permit
17.68.050 Review
17.68.060 Modification
17.68.070 Permit to run with land

17.68.010 General: Intent; Applicability.

A. General; Intent. No person shall begin a conditional use without first obtaining a conditional use permit. The purpose of conditional use permits is to provide a process for reviewing land uses which may be compatible with the zoning district, but whose effect on the site and surroundings cannot be determined before being proposed for a specific location. The Planning Commission may approve a conditional use permit, upon making findings of approval and imposing any necessary conditions of approval.

B. Applicability. A conditional use permit is required for a use listed as a conditional use in any zone, or a change in an existing conditional use, unless the new proposed use is permitted by right or is a minor modification under 17.68.060.

C. Wireless communication facilities permit. A wireless communication facility is a conditional use in all zones if not otherwise permitted by and approved under division 17.46.

17.68.020 Application.

The applicant must submit an application for a conditional use permit, or a minor modification to a conditional use permit on a form provided by the Director. The application shall be accompanied by plans as set forth in the required materials for the applicable permit application, and the application fee. Where necessary, the Director or hearing body may waive a requirement or require additional information.

17.68.030 Decision Making body.

A. Conditional Use Permit. The Planning Commission will hold a hearing on a conditional use a application and make a final decision. The decision of the Planning Commission may be appealed to the City Council subject to Division 17.78.

B. Minor modification. The Director will make a determination on a minor modification. The decision of the Director can be appealed to the Planning Commission subject to 17.78.

17.68.040 Findings for Conditional Use Permit.

A. The Planning Commission may approve a conditional use permit for residential use requiring a conditional use permit (e.g. large family day care home, residential group home, residential component of mixed-use development) only after making the following findings:

1. The proposed use is consistent with the general plan and any applicable specific plan, and the use conforms to the zoning code. Ordinance No. 783 N.S. Page 8

2. The proposed use will not cause an increase in peak hour traffic exceeding 50 trips as determined by a traffic study.

3. The proposed use will not generate a parking demand greater than the number of on-site spaces provided in accordance with the city parking standards.

4. The proposed use will not produce mechanically-generated noise levels that exceed 50 dBA measured at the nearest residential property line.

B. The Planning Commission may approve a conditional use permit for a commercial or commercial component of mixed-use development only after making the following findings:

1. Necessity, Desirability, Compatibility. That the size, intensity and location of the proposed use will provide a development that is necessary or desirable for, and compatible with, the general neighborhood; and

2. Adverse Impacts. That such use as proposed will not be detrimental to the public health, safety, or general welfare, or physically injurious to property, improvements or potential development in the vicinity, with respect to aspects including but not limited to the following:

a) The accessibility and traffic patterns for persons and vehicles, the type and volume of such traffic, and the adequacy of proposed off-street parking and loading;
b) The safeguards afforded to prevent noxious or offensive emissions such as noise, glare, dust and odor;
c) Treatment given, as appropriate, to such aspects as landscaping, screening, open spaces, parking and loading areas, service areas, trash and recycling management, lighting and signs; and

3. Consistency with Zoning Ordinance, General Plan and Specific Plan. That such use or feature as proposed will comply with the applicable provisions of this chapter and will be consistent with the policies and standards of the General Plan and any applicable specific plan.

17.68.050 Review.

A. Review. Each conditional use permit is subject to review two years after the permit is approved, or a longer period if provided in the approved permit, and each five years after that, or longer as determined by the Planning Commission. The Director will initiate the review and provide a report to the Planning Commission. If the Director or Planning Commission

determines that there may be grounds for revocation of the permit, the Director will schedule the matter for a revocation hearing under section 17.80.050.

B. Applicability to prior conditional use permits. If a use permit issued before December 2013 has a condition with an automatic review or termination date, that condition is superseded by this section.

17.68.060 Modification.

A. Application. A person may apply for a minor modification to a conditional use permit if the modification meets any of the following criteria:

1. The cumulative physical expansion of any structure or space approved in the original Conditional Use Permit by no more than 10 percent.
2. Relocation of a use within the same property or structure.
3. A maximum 25% increase or decrease in the number of employees or hours of operation.

B. Minor Modification Findings: The Director may approve a minor modification to a conditional use permit only after making the following findings:

1. The modification qualifies as a minor modification described in 17.68.060.A.
2. The modification does not have any new significant impact and is Categorically Exempt from the California Environmental Quality Act,
3. The modification is consistent and in substantial conformance with the conditions of approval of the existing conditional use permit.

C. Other Modifications. An applicant wishing to make modifications to an existing conditional use permit that does not meet the criteria in section 17.68.060.A, shall submit an application for an amendment to their existing conditional use permit. Consideration of this application requires the same procedures and findings as for the original use permit.

D. It is not the intent of this Section that a series of minor modifications be used to circumvent the need for a new Conditional Use Permit.

17.68.070 Permit to run with land.

A conditional use permit granted pursuant to the provisions of this division shall run with the land and shall continue to be valid upon a change of ownership of the business or property which is the subject of the conditional use permit. (Ord. 783 N.S., 10/2025)

SECTION 17.70 VARIANCE

Sections:

17.70.010 General; Exceptions.
17.70.020 Application
17.70.030 Hearing body
17.70.040 Findings

17.70.010 General; Exceptions.

A. General. The city may approve a variance from the provisions of this chapter, except for those features set forth in subsection B, which do not require a variance.

B. Exceptions.

1. These features do not require a variance: fence, retaining wall, or site feature.

2. A variance is not required to replace a nonconforming:

a. garage, pool house, exempt accessory dwelling unit, or accessory structure, which is destroyed, and any of those may be replaced as it was, within two years, without increasing the degree of nonconformity, and without a variance under this division; (See section 17.50.020 B.4.)

b. deck, balcony, porch, or site feature, which is destroyed, and any of those may be replaced as it was, within one year, without increasing the degree of nonconformity, and without a variance under this division. (See section 17.50.020 B.4.)

3. If a proposed improvement of an existing structure is subject only to a design review permit except that a feature of the improvement requires a variance, the city may approve it without the need for a variance if: (1) the extent of the nonconformity is unchanged or reduced; and (2) the proposal meets the design review permit requirements of section 17.66.050, Standards. (See section 17.66.020 F.)

4. A variance shall not be required to construct an accessory dwelling unit meeting the standards of division 17.38. (Ord. 747 N.S., 02/2020; Ord. 768 N.S. 01/2023)

17.70.020 Application.

The applicant must submit a written application for a variance on a form provided by the Director. The application shall be accompanied by: plans as set forth in the required materials for a variance; a statement of the reasons for and evidence in support of the request; and the application fee. Where necessary, the Director or hearing body may waive a requirement or require additional information, including a survey.

17.70.030 Hearing body.

The Planning Commission will hold a hearing and decide on a variance request.

However, when another related application is normally decided by the City Council, the City Council will also be the decision-making body on the variance, and the Planning Commission will make a recommendation to the City Council. For example, this applies to an application for a subdivision (under chapter 19). (Ord. 783 N.S., 10/2025)

17.70.040 Findings.

A. Findings. The hearing body may approve a variance only if it makes the following findings:

1. The property and existing improvements present unusual physical circumstances of the property (including but not limited to size, shape, topography, location and surroundings), so that strictly applying the terms of this chapter would keep the property from being used in the same manner as other conforming properties in the zone;

2. The project is compatible with the immediately surrounding neighborhood and the public welfare; and

3. Accomplishing the improvement without a variance would cause unreasonable hardship in planning, design, or construction. In this subsection 3, *unreasonable hardship* refers to the unusual physical characteristics of the property and existing improvements, and not to conditions personal to the applicant. (See also Reasonable accommodation, at division 17.76.)

B. No variance for use. The city may not grant a variance authorizing a use or activity not otherwise permitted.

DIVISION 17.72 ZONING AMENDMENT

Sections:

17.72.010 General
17.72.020 Initiating a zoning amendment
17.72.030 Application
17.72.040 Report; Notice and public hearing; Planning Commission recommendation.
17.72.050 City Council action

17.72.010 General.

The zoning designations may be changed by amending the zoning map, and the zoning regulations may be changed by amending this chapter.

17.72.020 Initiating an amendment.

A. Zoning map. An amendment to the zoning map may be initiated by motion of the City Council or Planning Commission, or by request of all owners of property for which the change is sought.

B. Zoning regulations. An amendment to the zoning regulations may be initiated by motion of the City Council or the Planning Commission, or by request of a resident, property owner or business owner in the city.

C. City Charter. A proposed amendment to the zoning map or zoning classifications is subject to City Charter section 9.02. (See section 17.02.010C.)

17.72.030 Application.

An individual applicant may submit a zoning amendment application on the form provided by the city, together with the application fee.

17.72.040 Report; Notice and public hearing; Planning Commission recommendation.

A. Report. The Director will set a date, time and place for a public hearing and prepare a report to the Planning Commission on the proposed zoning map or zoning regulation amendment.

B. Notice and public hearing. Notice of the public hearing on the proposed amendment will be given in accord with division 17.62.

C. Planning Commission recommendation. Following the public hearing, the Planning Commission must make findings as to whether the proposed zoning regulation or zoning map amendment is consistent with the general plan, the purposes of this chapter 17, and the limitations on residential reclassification prescribed in City Charter section 9.02, and shall recommend approval, conditional approval, or denial of the proposal. A Planning Commission recommendation of denial of an application for a zoning map or zoning regulation amendment submitted by individual request terminates the proceedings, unless appealed.

17.72.050 City council action.

A. Notice and hearing. The Planning Director will set a public hearing before the City Council within 60 calendar days after the date of the Planning Commission recommendation. The city will provide notice of the hearing as set forth in division 17.64, Hearings. At the public hearing, the City Council will hear evidence for and against the proposed amendment. The City Council may continue the public hearing to a definite date and time without additional notice.

B. City Council decision. After the public hearing, the City Council may approve, modify, or reject the Planning Commission recommendation. Before adopting an ordinance, the Council must make findings that the proposed regulation or map amendment is consistent with the policies of the general plan, the purposes of this chapter 17, and the limitations on residential reclassification prescribed in City Charter section 9.02.

DIVISION 17.74 DEVELOPMENT AGREEMENTS

Sections:

17.74.010 Purpose; Scope
17.74.020 Application
17.74.030 Contents of development agreement
17.74.040 Initial review
17.74.050 Consideration and decision
17.74.060 Amendment; Cancellation
17.74.070 Annual review
17.74.080 Effect of development agreement

17.74.010 Purpose; Scope.

The purpose of this division is to implement the development agreement provisions of the state planning and zoning law. All development agreements shall be processed in accordance with this division.

A development agreement provides assurance to a developer that he or she may proceed with a project in accordance with existing policies, rules and regulations and subject to certain conditions of approval. The assurance strengthens the public planning process, encourages private participation in comprehensive planning, and reduce economic costs of development. Also, by requiring some public benefit, this process assures some additional benefit to the public in exchange for the vested rights granted under a development agreement. (Gov't. Code §§65864-65869.5)

17.74.020 Application.

A. Filing by owner. An application for a development agreement may only be filed by a person having a legal or equitable interest in real property.

B. Form of application. An application for a development agreement must be on a form approved by the Director.

C. Application fees. The applicant shall pay fees for the filing and processing of an application as established by resolution of the City Council.

17.74.030 Contents of development agreement.

A. Required provisions. A development agreement must include the following:

1. The duration of the agreement;
2. The permitted uses of the property;
3. The density or intensity of the use;
4. The maximum height and size of the proposed buildings;
5. Provisions for the dedication of land for public purposes;
6. The public benefit offered by the applicant as consideration for entering into the agreement;
7. The provisions set forth in 17.74.080B.

B. Optional provisions. A development agreement may include the following:
1. Conditions, terms, restrictions, and requirements for subsequent discretionary actions; however, these conditions, terms, restrictions and requirements may not prevent development of the land for the uses and to the density or intensity of development set forth in the agreement;
2. Provisions providing that construction will begin within a specified time and that the project or any phase be completed with a specified time;
3. Terms and conditions relating to applicant financing of necessary public facilities and subsequent reimbursement over time;
4. Provisions requiring compliance with specific plans previously approved under a design review permit. (See division 17.66.)

C. Provisions not allowed. A development agreement may not include:
1. Requirements for the city to provide public facilities, improvements or services;
2. Requirements for the city to exercise its legislative or quasi-judicial powers in a particular way;
3. Waivers or modifications of any city fees or requirements.

17.74.040 Initial review.

The Director will determine whether the application is complete, and schedule a public hearing before the City Council. At the hearing, the Council will determine whether it wishes to enter into such an agreement and, if so, the general subject areas the staff is authorized to negotiate. The city will give notice of the hearing shall be given as provided in Government Code Sections 65090 and 65091.

17.74.050 Consideration and decision.

A. Negotiations. The Director will direct the negotiations with the developer regarding terms of the development agreement. The Director will determine what environmental review is appropriate under the California Environmental Quality Act (CEQA). Once negotiations are completed, the Director will schedule the proposed development agreement for the required hearings under this section.

B. Planning Commission hearing and recommendation. The Planning Commission will hold a public hearing to consider whether the development agreement should be approved. The city will give notice of the hearing as provided under Government Code sections 65090 and 65091. The Commission may recommend to the City Council approval, approval subject to conditions, or denial of the application.

D. City Council determination. The City Council will hold a public hearing to consider whether the development agreement should be approved. The city will give notice of the hearing as provided under Government Code sections 65090 and 65091. If the City Council approves the development agreement, it must be by City Council resolution, authorizing the City Administrator to sign the development agreement.

E. Findings. The Planning Commission may recommend approval and the City Council may approve the development agreement only after finding that the development is consistent with the general plan, applicable city codes and policies and this chapter.

F. Recordation. Within 10 days after the city enters into a development agreement, the City Clerk will record a copy of the agreement with the county recorder.

17.74.060 Amendment and cancellation.

A development agreement may be amended or cancelled using the same procedure for entering into the agreement, under sections. (Gov't. Code § 65868.)

17.74.070 Annual review.

A. Review. The Planning Commission will hold a public hearing to review each development agreement at least every 12 months from the date it is entered into, and shall forward their report to the City Council. Additionally, the Planning Commission or City Council, or both, may hold public hearings to conduct more frequent reviews of a development agreement. The City Council may impose a reasonable fee to cover the costs of this review.

B. Notice. The Director will give notice of the intention to conduct a review under this section as provided in Government Code Sections 65090 and 65091. In addition, at least 10 days before the hearing, the Director will give notice to all persons having a legal or equitable interest in the real property subject to the agreement. The notice shall include the following:

1. A statement that the applicant, or the successor-in-interest to the agreement, has the burden of demonstrating good faith compliance with the terms of the agreement; and

2. A statement that if, as a result of the review, the Planning Commission or City Council finds on the basis of substantial evidence that the applicant or successor to the agreement has not complied in good faith with the terms and conditions of the agreement, the City may modify or terminate the agreement.

C. Determination. If the Planning Commission finds, on the basis of substantial evidence, that the applicant or successor-in-interest has not complied in good faith with the terms or conditions of the agreement, it may recommend modification or termination to the City Council. Based on substantial evidence that the applicant or successor has not complied in good faith with the terms or conditions of the agreement, the City Council may modify or terminate the agreement. (Gov't. Code §65865.1)

17.74.080 Effect of development agreement.

A. General. The development of the property will be governed by those rules, regulations and official policies in effect at the time of execution of the agreement, regarding permitted uses of the land, density, design, improvement and construction standards and specifications, except as otherwise provided by the development agreement or as provided in subsection B below:

B. Limitations. Notwithstanding the vested rights set forth in subsection A above, the property owner must:

1. Pay the processing and development impact fees in effect at the time those fees are paid;
2. Comply with building code requirements in effect on a city-wide basis at the time of construction;

3. Comply with construction and technical design standards or specifications for public improvements that are applicable city-wide;

4. Comply with changes in city laws, regulations, plans or policies applicable city- wide, the terms of which are found by the City Council, based on substantial evidence, to be necessary to protect members of the public from a condition dangerous to their health or safety;

5. Comply with a change in city law, regulations, plans or policies which is:

   a. specifically mandated by state or federal law, or by any regional governmental agency that has legal authority over the city under state law or a joint powers agreement; or

   b. a result of or in response to state or federal law, or regional agency action, made necessary in order for the city to avoid losing or not receiving substantial funding or other substantial public benefits or facilities that would be available to the city only if it makes such a change; or

   c. specifically mandated by, or necessary for compliance with or implementation of, the terms of a permit, entitlement or other authorization necessary for the development of the property issued or granted to the city, county and/or property owners by any federal, state or regional agency; and

6. Following any subsequent environmental review, comply with required mitigation measures.

C. City's rights. A development agreement does not prevent the city in subsequent actions applicable to the property from:

1. applying new rules, regulations and policies which do not conflict with those set forth in the development agreement; or

2. denying or conditionally approving a subsequent development project application on the basis of such existing or new rules, regulations and policies. (Gov't. Code § 65866.)

DIVISION 17.76 REASONABLE ACCOMMODATION

Sections:

17.76.010 Intent
17.76.020 Requesting reasonable accommodation
17.76.030 Application
17.76.040 Approval authority; Hearing; Decision
17.76.050 Findings; Other requirements
17.76.060 Appeal
17.76.070 Definitions

17.76.010 Intent.

It is the city's policy to provide individuals with disabilities reasonable accommodation in regulations and procedures to ensure equal access to housing, and to facilitate the development of housing. The purpose of this division is to provide a procedure under which a disabled person may request a reasonable accommodation in the application of zoning requirements.

This division is based on requirements of the Federal and State fair housing laws, and implements the Housing Element of the City's General Plan. It is distinct from the requirements for a variance set forth in division 17.70, Variances.

17.76.020 Requesting reasonable accommodation.

A. Request. An individual with a disability may request a reasonable accommodation in the application of the city's land use and zoning regulations. Such a request may include a modification or exception to the requirements for the siting, development and use of housing or housing-related facilities that would eliminate regulatory barriers. A reasonable accommodation cannot waive a requirement for a conditional use permit when otherwise required or result in approval of uses otherwise prohibited by the city's land use and zoning regulations.

B. Availability of information. Information regarding this reasonable accommodation procedure will be available at the public information counters in the department of public works, advising the public of the availability of the procedure for eligible applicants, and be made available on the city's website.

C. Assistance. If an applicant needs assistance in making the request, planning staff will endeavor to provide the assistance necessary to ensure that the process is available to the applicant.

D. Balancing rights and requirements. The city will attempt to balance (1) the privacy rights and reasonable request of an applicant for confidentiality, with (2) the land use requirements for notice and public hearing, factual findings and rights to appeal, the city's requests for information, consideration of an application, preparation of written findings, and maintenance of records for a request for reasonable accommodation.

17.76.030 Application.
The applicant must submit a request for reasonable accommodation on a form provided by the city. The application must include the following information:

1. the basis for the claim that the individual is considered disabled under the fair housing laws: identification and description of the disability which is the basis for the request for accommodation, including current, written medical certification and description of disability and its effects on the person's medical, physical or mental limitations;

2. the rule, policy, practice and/or procedure of the city for which the request for accommodation is being made, including the zoning code regulation from which reasonable accommodation is being requested;

3. the type of accommodation sought;

4. the reason(s) why the accommodation is reasonable and necessary for the needs of the individual(s) with a disability (where appropriate, include a summary of any potential means and alternatives considered in evaluating the need for the accommodation);

5. copies of memoranda, correspondence, pictures, plans or background information reasonably necessary to reach a decision regarding the need for the accommodation; and

6. other supportive information deemed necessary by the city to facilitate proper consideration of the request, consistent with fair housing laws.

The fee for an application for reasonable accommodation shall be established by resolution of the City Council.

17.76.040 Approval authority; Notice; Decision.
A. Approval authority.

1. Director. The Director has the authority to review and decide upon requests for reasonable accommodation, including whether the applicant is an individual with a disability within the meaning of this division 17.76, except as noted in subsection A.2 of this section. If the application involves physical changes to the property subject to Director review under division 17.66, the Director will review and decide the design review permit application. The Director may refer the matter to the Planning Commission.

2. Planning Commission. The Planning Commission will review and decide upon requests for reasonable accommodation (including whether the applicant is an individual with a disability within the meaning of this division), when an application involves a variance or other land use entitlement under this chapter, or when referred by the Director.

B. Notice. No advance notice or public hearing is required for Director's consideration of a reasonable accommodation request. A request for reasonable accommodation subject to review

by the Planning Commission requires advance notice and a public hearing under the requirements of divisions 17.62 and 17.64.

C. Decision. The Director will render a decision or refer the matter to the Planning Commission within 30 days after the application is complete. The reviewing body and will approve, approve with conditions or deny the application, based on the findings set forth in section 17.76.050.

17.76.050 Findings; Other requirements.

A. Findings. The reviewing body will approve the application, with or without conditions, if it makes the following findings:

1. The housing will be used by an individual with a disability;

2. The requested accommodation is necessary to make specific housing available to an individual with a disability;

3. The requested accommodation would not impose an undue financial or administrative burden on the city; and

4. The requested accommodation would not require a fundamental alteration in the nature of a city program or law, including land use and zoning.

B. Other requirements.

1. An approved request for reasonable accommodation is subject to the applicant's compliance with all other applicable zoning regulations.

2. A modification approved under this division is considered a personal accommodation for the individual applicant and does not run with the land.

3. Where appropriate, the reviewing body may condition its approval on any or all of the following:

   a. Inspection of the property periodically, as specified, to verify compliance with this section and any conditions of approval;

   b. Removal of the improvements, where removal would not constitute an unreasonable financial burden, when the need for which the accommodation was granted no longer exists;

   c. Time limits and/or expiration of the approval if the need for which the accommodation was granted no longer exists;

   d. Recordation of a deed restriction requiring removal of the accommodating feature once the need for it no longer exists;

e. Measures to reduce the impact on surrounding uses;

f. Measures in consideration of the physical attributes of the property and structures;

g. Other reasonable accommodations that may provide an equivalent level of benefit and/or that will not result in an encroachment into required setbacks, exceedance of maximum height, lot coverage or floor area ratio requirements specified for the zone district; and

h. Other conditions necessary to protect the public health, safety and welfare.

17.76.060 Appeal.

A decision under this Division may be appealed to the Planning Commission or City Council in accordance with division 17.78, Appeals.

17.76.070 Definitions.

Individual with a disability means a person who has a medical, physical or mental condition that limits a major life activity (as those terms are defined in California Government Code section 12926), anyone who is regarded as having such a condition or anyone who has a record of having such a condition. It includes an authorized representative of a disabled person. The term *individual with a disability* does not include a person who is currently using illegal substances, unless he or she has a separate disability. (42 U.S.C. § 3602(h).)

Reasonable accommodation means providing disabled persons flexibility in the application of land use and zoning regulations and procedures, or even waiving certain requirements, when necessary to eliminate barriers to housing opportunities. It may include such things as yard area modifications for ramps, handrails or other such accessibility improvements; landscape additions, such as widened driveways, parking area or walkways; building additions for accessibility; tree removal; or reduced off-street parking where the disability clearly limits the number of people operating vehicles. *Reasonable accommodation* does not include an accommodation that would (1) impose an undue financial or administrative burden on the city or (2) require a fundamental alteration in the nature of the city's land use and zoning program. (Govt. Code § 12927(c)(1), (l) and § 12955(l); 42 U.S.C. § 3604(f)(3)(B); 28 C.F.R. § 35.150 (a)(3).)

DIVISION 17.78 APPEALS; CALL FOR REVIEW

Sections:

17.78.010 General
17.78.020 Application
17.78.030 Notice; Hearing; Decision; Remand
17.78.040 Standard of review
17.78.050 Call for review

17.78.010 General.

Except for a decision regarding an accessory dwelling unit under division 17.38 or wireless communication facilities under division 17.46, any interested person may appeal a decision of the Director to the Planning Commission, or a decision of the Planning Commission to the City Council, all under the terms of this division 17.78. Appeals of decisions regarding wireless communication facilities are governed under Section 17.46.100, and appeals regarding accessory dwelling units are governed under Section 17.38.110.

The city will not approve a building permit during the appeal period (Ord. 778 N.S., 03/2025; Ord. 789 N.S., 02/2026)

17.78.020 Application.

A person wishing to file an appeal must submit an application, stating the grounds for appeal, within ten calendar days after the date of the decision. The request must be filed with the City Clerk by 5:00 p.m., and must be accompanied by the appeal fee.

17.78.030 Notice; Hearing; Decision; Remand.

A. Notice. The City Clerk will give notice of the appeal date and time to: the appellant; the applicant if not the appellant; those property owners notified in the original application hearing; any person who has submitted a written comment on the application or who commented in person at the hearing; and to any other person requesting notice.

B. Hearing. The appeal body will hear the appeal as soon as is reasonably possible or as set forth in section 17.64.010.B, taking into account the notice requirements. The appeal body may continue the hearing, but not more than once without the consent of the appellant. At the hearing, the appeal body will consider the written and oral evidence presented. (Ord. 774 N.S., 09/2024)

C. Decision. At the conclusion of the hearing, the appeal body will decide the appeal. The standard of review governing the appeal is set forth in section 17.78.040, Standard of review. The appeal body may sustain, modify, add to, or overrule the decision appealed, and make other findings consistent with this chapter, including the right to require or modify the requirements for story poles, surveys, time periods for completion or extension, and any other conditions relating to the project for which approval is sought. The appeal body will report its decision to the appellant, the original applicant, and the decision maker.

D. Remand. Notwithstanding subsection C above, the City Council acting as the appeal body may remand the matter to the Planning Commission for further consideration. The remand will include either specific issues to be considered, or direction that the Planning Commission open the entire application for de novo review. Unless the City Council determines otherwise: (1) the remand hearing before the Planning Commission will be scheduled at a Planning Commission meeting, occurring between 14 and 75 days after the date of remand action, or as may be extended by mutual agreement by the appellant and applicant; and (2) no additional fees will be charged to the applicant or appellant relating to the remand. The decision of the Planning Commission on the remand is final unless appealed under this division 17.78, or the City Council retains appeal jurisdiction over the entire matter at the time of the remand and requests only an advisory opinion on specific issues from the Planning Commission. The burden of proof on remand is on the applicant.

17.78.040 Standard of review.

A. General. An appeal is not a de novo hearing, but instead will be governed by the following principles:

1. Deference. Due deference shall be given to the actions of the Planning Commission and staff in light of the substantial number of planning applications heard by them and the major accumulated group experience that those actions represent. (Ord. 774 N.S., 09/2024)

2. Grounds for overruling decision. The appeal body may overrule the action of the decision maker only if one of the following occurs:

a. the findings made by the decision maker as a basis for its action are not supported by the weight of the evidence;

b. there is a significant error in the application of the requirements of this chapter 17 or other requirements of the City Code;

c. there is a significant error in the application of the Piedmont Design Standards and Guidelines; or

d. significant errors in the application, plans, drawings or other materials provided to the decision maker are discovered after the hearing, which were a basis of the decision.

3. Burden of proof. During an appeal, the burden of proof is on the appellant.

B. Definitions. In this division 17.78, the following definitions apply:

Burden of proof means the obligation to provide evidence or proof significant enough to overcome any other evidence presented.

Significant error means an error that has or potentially will have an important negative impact.

Weight of the evidence means more than 50% of the evidence.
*(*Ord. 769 N.S., 10/2023)

17.78.050 Call for review.

A. Initiating call for review. Except for matters where ministerial review is required under state law or where review at a public hearing would be prohibited under state law, a member of the City Council or Planning Commission, or the City Administrator, may call a matter for review, without an appeal fee. The City Administrator, Planning Commissioner, or Council Member may call the matter for review for the good of the city, without stating specific reasons for the call. The act of calling the matter for review does not, by itself, disqualify the Planning Commissioner or Council Member from participating as part of the decision-making body so long as that Commissioner or Council Member is neutral and unbiased and has not previously announced to any member of the public or city staff a preferred outcome on the matter.

B. Hearing body. If a decision of the Director is called for review, it will be heard by the Planning Commission. If a decision of the Planning Commission is called for review, it will be heard by the City Council.

C. Timing. The person calling for review must file a written request within ten days of the decision. (If the tenth day falls on a weekend or city holiday, the deadline is the close of business on the following business day.)

D. De novo hearing. The hearing will be a de novo hearing. The burden of proof is on the applicant. (Ord. 747 N.S., 02/2020)

DIVISION 17.80 ENFORCEMENT

Sections:

17.80.010 Violations
17.80.020 Permits, licenses, certificates, approvals
17.80.030 Enforcement responsibilities
17.80.040 Informal show cause hearing
17.80.050 Revocation or modification
17.80.060 Notice of violation

17.80.010 Violations.

A. General. Violation of a permit or approval, or of any required condition, constitutes a violation of this chapter. Each day the violation (or a portion of it) continues is a separate offense.

B. Administrative citation. A violation of this chapter may be enforced under chapter 1, article II.

C. Public nuisance. A violation of this chapter is a public nuisance and may be abated under chapter 6, Government Code sections 38773 through 38773.7, or any other remedy available by law. The City Council may provide for the summary abatement of a nuisance at the expense of the persons creating, causing, committing, or maintaining it and by ordinance may make the expense of abatement a lien against the property on which it is maintained and a personal obligation against the property owner.

D. Criminal penalty. A violation of this chapter is a misdemeanor and is punishable by fine or imprisonment or both as provided in Penal Code section 19.

E. Civil penalties. The City Council may enact penalties and abatement procedures for failure to comply with the provisions of this chapter.

17.80.020 Permits, licenses, certificates, and approvals.

A permit, license, certificate, or approval granted in conflict with a provision of this chapter is void.

17.80.030 Enforcement responsibilities.

The Director is responsible for enforcing the terms of discretionary permits and their conditions under this chapter. The chief building official is responsible for enforcing the City Code regarding the erection, construction, reconstruction, moving, conversion, alteration, or addition to a building or structure. All other officers of the city are responsible for enforcing provisions related to their areas of responsibility.

17.80.040 Informal show cause hearing.

If the Director has reason to believe a violation of this chapter exists, the Director may direct the violator or property owner or both to appear before the Director to show cause why the city

should not proceed with enforcement action. Notice of the possible violation and the time and place of the hearing will be mailed to the property owner and any other interested person at least ten calendar days before the hearing. The contents of the notice shall be as set forth in division 17.62.

At the hearing, the Director will consider the testimony of the city staff, the property owner and any other interested person. The Director may make a finding as to whether or not a violation of this chapter exists, and may recommend to the staff and to the property owner one or more courses of action. The Director may, in his or her discretion, refer the matter directly to the Planning Commission for a revocation hearing under section 17.80.050, or a notice of violation hearing under section 17.80.060.

17.80.050 Revocation or modification.

A. General. If the Director or Planning Commission determines there may be grounds for revocation of a conditional use permit, variance, design review permit, wireless communication facilities permit, accessory dwelling unit permit, or other discretionary approval under this chapter, the Director will schedule a revocation hearing before the Planning Commission.

B. Notice and public hearing. The city will give notice in the same manner required for a public hearing to consider approval. The contents of the notice will be as prescribed by Division 17.62.

The hearing body will hear the testimony of city staff, the permittee, and any other interested person. A public hearing may be continued to a specific date and time without additional public notice.

C. Required findings. The hearing body may revoke or modify a permit or approval if it makes one or more of the following findings:

1. The permit or approval was issued on the basis of erroneous or misleading information or representation.

2. The use or the user is in violation of a condition of approval of the permit or approval, including the terms of the use stated in the application, or other law or regulation.

3. The use is so conducted as to be detrimental to the public health, welfare, or safety, or as to be a nuisance.

D. Modification. If the hearing body finds that grounds for revocation exist (under subsection C above), it may, instead of revocation, modify the conditions of approval so as to eliminate the reason for revocation.

E. Decision and notice; Effective date. The hearing body will render a decision and mail notice of the decision to the permittee and to any other person who has filed a written request for notice. A decision to revoke becomes final ten days after the decision, unless appealed.

F. Other remedies. The city's right to revoke a discretionary permit or approval is in addition to any other remedy allowed by law.

17.80.060 Notice of violation.

A. General. If property in the city exists in violation of this title, and the owner fails or refuses to correct the violation, the city may record a notice of violation against the affected property.

B. Procedure; Recording notice. Before recording such a notice, the city will do all of the following:

1. The Director will send written notice to the current owner that a violation exists and request that the owner correct the violation within a specific, reasonable period of time. The Director may, in his or her discretion, send more than one notice and conduct an informal show cause hearing to discuss the violation with the owner. (See section 17.80.040.)

2. If the owner fails or refuses to correct the violation within the time specified, the Director shall mail to the current owner by regular first class and by certified mail a notice of intention to record a notice of violation, describing the real property in detail, naming the owners, describing the violation in detail (including relevant municipal code sections), and stating that an opportunity will be given to the owner to present evidence. The notice shall specify a time, date and place for a Planning Commission hearing at which the owner may present evidence to the Planning Commission why the notice should not be recorded. The hearing shall take place no sooner than 30 calendar days and no later than 60 calendar days from the date of mailing.

3. The Planning Commission will hear the matter on the date scheduled. If, after the owner and the city staff have presented evidence, the Commission determines that there is no violation, the Director will mail a clearance letter to the current owner. If the owner fails to appear, or the Commission determines that there is a violation, the Commission may, by resolution, direct the Director to record the notice of violation with the county recorder. The Commission's decision may be appealed to the City Council under division 17.78.

4. The notice of violation, when recorded, is constructive notice of the violation to all successors in interest in the property, under California Civil Code sections 1213 and 1215.

C. Release. If the owner corrects the violation after the notice has been recorded, and has notified the city in writing and consented to an inspection to confirm the correction, the Director will record a release or cancellation of the notice of violation.

ARTICLE 5. DEFINITIONS; MEASUREMENTS

17.90.010 Definitions
17.90.020 Measurements

17.90.010 Definitions.

In this chapter:

Abutting means next to, or against. It does not include a property across a street.

Accessory use. See *Uses.*

Adjacent means next to, or against. For notification purposes, it includes a property directly across a street.

Affordable housing and related definitions. See section 17.38.020.

Americans with Disabilities Act or *ADA* means the federal act that prohibits discrimination and ensures equal opportunity for persons with disabilities in employment, government services, public accommodations, commercial facilities, and transportation, including amendments made to the Act.

Art and Craft Store means a retail store that sells art, glass, ceramics, paintings, sculpture, or other handcrafted items. This establishment may also feature on-site studio or workshop spaces designed for the creation of items like knitted goods, pottery, and paintings.

Assisted living means housing that provides a combination of traditional housing with personalized supportive services and care.

Bakery means any room, building or place used or operated for making, preparing or baking bread, cakes, pies, pastry, doughnuts, rolls, biscuits, crackers or other edible products of flour or meal to be sold to the public.

Basement means that portion of a building that is partly or completely below grade.

Bedroom includes any room with features generally characteristic of bedrooms, regardless of its designation on a building plan. A bedroom has adequate privacy and meets the minimum size and habitation requirements of the Building Code. It includes and is not limited to a room with: (a) access to a full bathroom on the same floor or within half a floor, if the house has a split level; (b) access to a full bathroom through a common hallway or other common space such as a kitchen, living room and/or dining room. A *bedroom* need not have a closet.

Building means a structure for the support, shelter, or enclosure of persons, animals, or possessions. See also *Structure*.

Nonconforming building means a building or structure which was legally established, but which does not conform to the regulations of the zone in which it is presently located. See division 17.50.

Building Code means the California Building Codes adopted by the city at chapter 5.

Business (license) tax. See chapter 10.

City Code means the Piedmont City Code.

Clothing store means a retail establishment whose principal purpose is to sell ready-made and made-to-order clothing and/or accessories such as bags, headwear, footwear, and jewelry.

Co-housing means rental communities or developments where shared common spaces, such as kitchens, living rooms, and outdoor areas, are managed communally or by the landlord, but each household has a private bedroom or living space. A "*Co-housing unit*" means a unit rented for periods of 30 days or more containing one or more private bedrooms and providing a minimum of one shared living room, kitchen, and bathroom for every five bedrooms or fewer.

Conditional use permit or *use permit*. See division 17.68.

Day means a calendar day, unless stated otherwise. (See also section 17.04.080 regarding extensions of time for holidays and weekends.

Day care facility means an existing or proposed building, equipment and any accessory structures on a site, in which there are programs and personnel licensed by the state for direct child or adult care services including, but not limited to shelter, food, education and play opportunities for a portion of the day.

Daylight plane. See Section 17.90.020, Measurements.

Demolition as used in Chapter 17 means the decimating, razing, ruining, tearing down or wrecking of any structure or building, including any change to a building which removes a dwelling unit. As used herein, the word "demolition" shall include any partial demolition and any interior demolition affecting more than 70 percent of the original structure, including exterior facades, vertical elements (such as interior walls, interior stairs, chimneys) and horizontal elements (such as roof areas, floor plates), as determined by the Building Official.

Density (residential) means the amount of development per acre on a parcel under the applicable zoning, commonly measured as dwelling units per acre (du/ac). Residential density is a computation expressing number of dwelling units per acre.

Director or *Planning Director* means the City Planning Director or his or her designee.

Dwellings:

Accessory dwelling unit. (Formerly *second unit*.) See division 17.38.

Dwelling unit means a room or a suite of connecting rooms, which provides complete, independent living quarters for one or more persons, including permanent facilities for living, sleeping, eating, cooking and sanitation, and which complies with all building code requirements.

Dwelling unit, studio means any dwelling unit wherein one habitable room provides for combines living, sleeping, cooking, dining, and sanitation.

Multi-family dwelling means a residential structure containing more than one dwelling unit and designed to be occupied by more than one family independently of each other.

Primary unit means a principal single-family dwelling.

Rented room. See section 17.40.020.

Single-family dwelling or *single-family residence* means a building or structure, which is designed or used exclusively as a residence, including only one dwelling unit.

Short term rental. See section 17.40.020.

Emergency Shelter means housing with minimal supportive services that is limited to occupancy of up to 180 days by persons who are homeless, victims of domestic violence, individuals and households made temporarily homeless due to natural disasters (e.g., fires, earthquakes, etc.). Emergency shelter shall include other interim interventions, including, but not limited to, a navigation center, bridge housing, and respite or recuperative care.

Employee Housing means housing provided by an employer and maintained in connection with any work or place where is being performed, as more particularly defined in California Health and Safety Code Subdivision 17008, or successor statute, as may be amended from time to time.

Fair Housing Laws means (1) the Federal Fair Housing Act (42 U.S.C. § 3601 and following) and (2) the California Fair Employment and Housing Act (Govt. Code § 12955 and following), including amendments to them.

Family means: (i) two or more persons related by birth, marriage, or adoption, or (ii) an individual or a group of persons living together who constitute a bona fide housekeeping unit in a dwelling unit, not including a fraternity, sorority, club, or other group of persons occupying a hotel, lodging house, or institution of any kind.

Fence. See Measurements.

Floor area. See Measurements.

Floor area of an accessory dwelling unit means the sum of the gross horizontal area of the interior livable space of the building, measured from the interior faces of interior walls or from

the interior line of party walls separating two buildings. Livable space means a space in a dwelling intended for human habitation, including living, sleeping, eating, cooking, or sanitation. Living area means the interior habitable area of a dwelling unit, including basements and attics, but does not include a garage or any accessory structure, as defined in California Government Code section 66313. (Ord. 789 N.S., 02/2026)

Florist Shop means a retail establishment that sells cut flowers and ornamental plants. Florist shops may also offer services such as flower care, arranging, design, merchandising, and delivery.

Footprint means the total land area covered by all accessory and primary structures on a lot, measured from outside the exterior walls and supporting columns or posts, except that the following are not included in determining footprint:

1. The portions of any uncovered and unenclosed decks, porches, landings, or patios, not including railings, which are less than 30 inches above finished grade and which project no more than 36 inches from the footprint;

2. Uncovered and unenclosed stairways, including railings, which are less than six feet above finished grade and which project no more than 36 inches from the footprint;

3. Eave and/or roof overhang that projects up to three feet from the exterior wall surface or supporting column or post;

4. Trellis, awning, electrical meter, solar system equipment, residential battery energy storage system equipment, or similar feature that projects horizontally up to three feet from the exterior wall surface or supporting column or post, so long as construction satisfies Building Code requirements."

Frontage. See Measurements.

Grade. See Measurements.

Ground floor is the floor level in a commercial or mixed-use building nearest the lowest adjacent grade.

Group home means housing shared by unrelated persons with disabilities that provide peer and other support for their resident's disability related needs and in which residents share cooking, dining, and living areas, and may, in some group homes, participate in cooking, housekeeping, and other communal living activities.

Hearing body or *appeal body* means the Planning Director, Planning Commission, or City Council authorized under this chapter to hear a matter.

Home occupation. See division 17.44.

Improvement(s) means any building, structure, landscaping, or other alteration of the natural or existing state of land.

Includes means includes but not limited to.

Independent living means housing that is designed to enable seniors to live an independent lifestyle that includes recreational, educational, and social activities.

Kitchen:

Kitchen, accessory means permanent facilities for the purpose of food storage, preparation and/or cooking, located on a single-family residential property, which are accessory and incidental to a primary kitchen. An accessory kitchen includes, but is not limited to: kitchen facilities or a wet-bar in a pool house, guest cottage, domestic quarters, or recreation room; or a wet-bar or outdoor kitchen.

Kitchen, primary means the main kitchen facilities within a single-family residence or accessory dwelling unit having permanent facilities for the purpose of food storage, preparation and cooking.

Landscape; hardscape; *open space:*

Landscaping means the planting, irrigation, and maintenance of land with living plant and other organic materials.

Hardscape surface means any non-landscaped surface where vegetation would not easily grow. See Measurements at section 17.90.020.

Open space means an expanse of land that is essentially unimproved except for vegetation and walkways.

Living space means space within a dwelling unit or accessory structure used for living, sleeping, eating, cooking, bathing, washing, and sanitation purposes.

Lots; lot lines:

Lot means a parcel of land under one ownership.

Corner lot means a lot located at the intersection of two or more streets and with frontage on at least two of those streets.

Interior lot means a lot not defined as a corner lot or a through lot.

Lot line means one of the boundary lines of a lot.

Rear lot line is the lot line most directly opposite the street lot line.

Side lot line means a lot line that is not defined as a street lot line or rear lot line.

Street lot line means a lot line along a street.

Through lot means a lot where both the street lot line and rear lot line have frontage on a street.

Low Barrier Navigation Centers means a low-barrier, service-enriched shelter focused on moving people into permanent housing that provides temporary living facilities while case managers connect individuals experiencing homelessness to income, public benefits, health services, shelter, and housing, as more particularly defined in California Government Code section 65600, or a successor statute, as may be amended from time to time.

Low-income household means persons and families whose income does not exceed the qualifying limits for lower income families as established and amended from time to time pursuant to California Health and Safety Code Section 50052.5.

Manufactured home means a single-family detached or attached structure that is either wholly or substantially manufactured off-site, to be wholly or partially assembled on site, manufactured under the authority of 42 USC Section 5401, the National Manufactured Home Construction and Safety Standards Act of 1974, and shall include structures known as manufactured homes or mobile homes. It is transportable in one or more sections, is built on a permanent chassis, and is used as a residence, but is not constructed with a permanent hitch or other device allowing transport other than for the purpose of delivery to a permanent site, and does not have wheels or axles attached permanently to its body.

Minor servicing means any premises developed with facilities for the sale of motor vehicle fuels; and which may also provide lubricants, tires, batteries, accessory items, and other customary services for motor vehicles. The servicing of motor vehicles shall be generally limited to lubrication, minor repairs, and washing. Minor servicing shall not include major motor vehicle repair.

Mobile home means a transportable, manufactured home, designed to be used as a year-round residential dwelling unit, connected to required utilities, and built prior to the enactment of the National Manufactured Housing Construction and Safety Standards Act of 1974, which became effective June 15, 1976. A mobile home does not include a recreational vehicle, motor coach, trailer coach or travel trailer.

Multifamily means a building designed or used exclusively as a residence that includes two or more separate dwelling units. This definition includes, but not limited to, duplexes and triplexes, apartments, and townhomes under a common ownership.

Peak staffing means the time at which the maximum number of employees are on site.

Person means an individual natural person, firm, corporation, association, organization, partnership, limited liability company, business trust, corporation or company, or the authorized agent of the person. It includes a governmental entity other than the city.

Public transit stop means a regularly scheduled bus stop, as posted in a transit agency's most current publication of routes and stops, including but not limited to Alameda-Contra Costa Transit District (AC Transit) bus service.

Reasonable accommodation. See division 17.78.

Religious assembly means a facility for religious worship and incidental religious education and social functions, but not including a private school.

Religious institution affiliated housing is as defined in California Government Code section§ 65913.6(a)(5) or a successor statute, as may be amended from time to time.

Religious institution affiliated emergency shelters means emergency shelters, as defined above, that meet the locational requirement for religious institution affiliated housing.

Religious-use parking spaces means parking that are required under the local agency's parking requirements for existing places of worship, or parking spaces that would be required in a proposed development for a new place of worship.

Rented room. See section 17.40.020.

Residence. See *Dwelling*.

Residential care facilities means facilities for residential care for the elderly, adult residential facilities, group homes for children, and small family homes for children. Residential care facilities that provide licensable services provide licenses under State law. Residential care facilities that do not provide licensable services may provide some supportive services for their residents but not services that require licenses under State law.

Restaurant means an establishment that prepares food or sells packaged food for on-site consumption, take-out, or delivery. Service models typically range from self-serve to full-service. This classification includes cafeterias, delicatessens, sandwich shops, pizza parlors, and take-out restaurants that have a storefront restaurant component.

Setback. See Measurements, section 17.90.020.

Short-term rental. See section 17.40.030.

Sign. See section 17.36.010.

Single-room occupancy (SRO) means a type of group residential use where there are at least five single rooms with no more than two occupants in each unit. The single rooms are habitable rooms that may have a bathroom and/or limited cooking facilities, and are intended for combined living and dining purposes.

Street means a public vehicular roadway. It does not include a public alley, or a private roadway. (A list of streets is set forth in the Piedmont Design Guidelines.)

Structure; Site feature:

Accessory structure means a detached structure, the use of which is appropriate, incidental to, and customarily or necessarily related to the zone and to the principal use of the lot or to that of the primary structure.

Deck. See Measurements, section 17.90.020.

Primary structure means the structure on a lot in which the principal use is conducted. It does not include an accessory structure, site feature, underground facility, built feature listed in Building Code section 5.2.2, on-grade improvement, or temporary handicap structure.

Site feature means a subordinate structure that is intended to functionally or decoratively enhance a property and that is primarily used for recreation, decoration or as a utility feature. A list of site features is set forth in the Piedmont Design Guidelines. *Site feature* does not include an accessory structure, primary structure, or built feature listed in Building Code section 5.2.2.

Structure means a built feature that is located or attached to the ground, and that is 12 inches or higher above existing or proposed grade. *Structure* does not include fencing or retaining walls. See also *Building*.

Structural change means a physical change, addition, or reduction in an exterior wall, an interior bearing wall, a floor, or a roof and/or the addition of a new structure.

Supportive housing means housing with no limit on length of stay that is linked to on-site or off-site services, as more particularly defined in Health and Safety Code section 50675.14(b)(2), or successor statute, as may be amended from time to time, respectively.

Transitional housing and transitional housing development means buildings configured as rental housing developments, but operated under program requirements that call for the termination of assistance and recirculation of the assisted unit to another eligible program recipient at some predetermined future point in time, which shall be no less than six months, as more particularly defined in Health and Safety Code section 50675.2(h), or successor statute, as may be amended from time to time, respectively.

Uses.

Use means the purpose for which a parcel or improvement is designed, arranged, or intended.

Accessory use means a use that is appropriate, subordinate, incidental, and customarily or necessarily related to a lawfully existing principal use on the same lot.

Conditional use means a principal use for which a conditional use permit is required. (See division 17.68. See also wireless communication facility permit at division 17.46.)

Mixed use commercial/residential means a development that combines commercial and residential uses and has both (a) ground floor retail, office or service commercial; and (b) a multi-family residential dwelling. See Measurement.

Nonconforming use means a use that was legally established consistent with the zoning in effect at the time of its establishment, but which does not conform to the regulations of the zone in which it is presently located. See division17.50.

Permitted use means a principal use that is allowed as a matter of right in a particular zone.

Principal use means the primary use permitted or conditionally permitted on a lot.

Variance. See division 17.70.

View means an existing significant view involving more than the immediately surrounding properties or a view of sky, including, but not limited to, any of the following: city skyline, historic landmark, bridge, distant cities, geologic feature, significant hillside terrain, wooded canyon or ridge.

Wine shop means a retail establishment that specializes in serving wine and the selling of wine for off-premises consumption.

Wireless communication facility and related definitions. See section 17.46.020.

Yards.

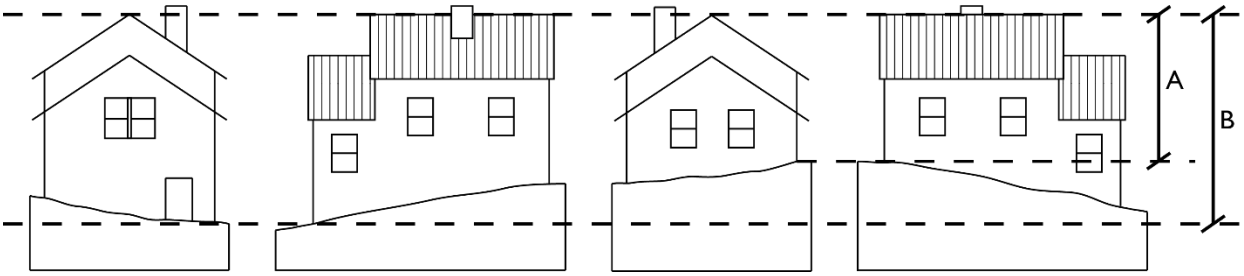
Rear yard means a yard abutting the rear lot line, measured between the rear lot line and the nearest point of the primary structure.

Side yard means a yard measured between the side lot line and the nearest point of the primary structure.

Street yard means a yard facing a street, measured between the street lot line and the nearest point of the primary structure. (Ord. 742 N.S., 05/2018, Ord. 747 N.S., 02/2020, Ord. 782 N.S., 08/2025)

17.90.020 Measurements

Building height is measured from the average level of the highest and lowest point of that portion of the ground covered by the footprint of the building to the highest point of the roof ridge, penthouse, mechanical equipment, or parapet wall. *Building height* is not measured to the highest point of a chimney or communications antenna.

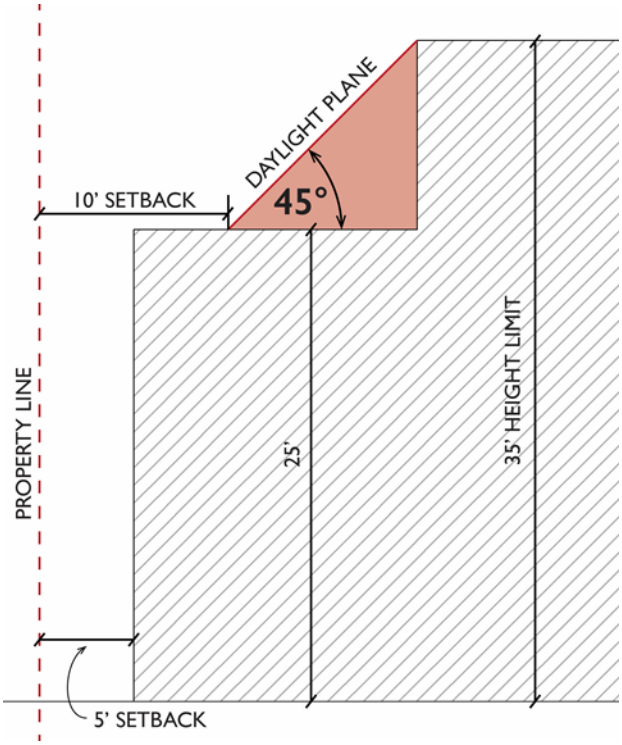


(A + B)/2 = Building height

Building height of an accessory dwelling unit is measured from the average level of the highest and lowest point of that portion of the ground covered by the footprint of the *accessory dwelling unit* to the highest point of the roof ridge, mechanical equipment, or parapet wall. *Building height of an accessory dwelling unit* is not measured to the highest point of a chimney or communications antenna.

Coverage means the percentage of the lot area that is covered. *Coverage* may refer either to (1) all structures and site features including their vertical projections to the ground except eaves, sills, cornices, awnings that project three feet or less from the wall surface, (2) hardscape surfaces, or (3) to both, as may be specified in the context. (See Design Guidelines.)

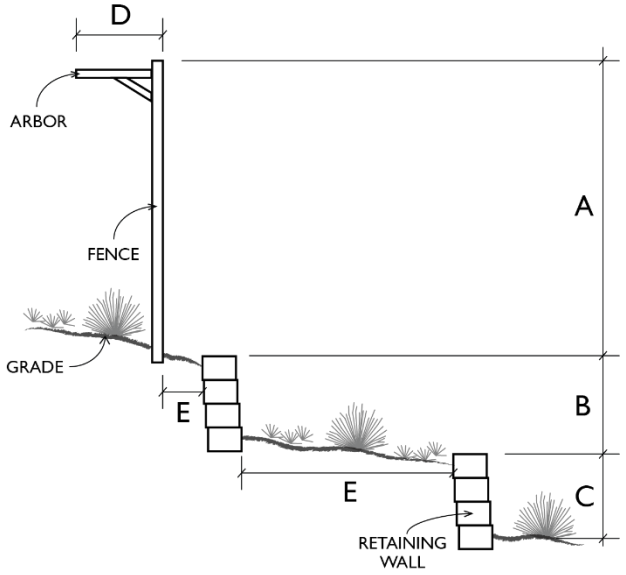
Daylight plane means a height limitation that when combined with the maximum height limit, defines the maximum building envelope. A new structure or addition must fall within this envelope. The daylight plane is measured inward toward the center of the property at an angle of 45 degrees from a point defined by its height above grade and distance from the abutting lot line.



Deck means an expanse of wood or other material where any part of the horizontal surface is greater than 12 inches above the ground directly below the point of measurement.

Dwelling units per acre (du/ac) means how many individual dwellings can be located on any one lot. For example, a single-family residence on a 1-acre lot would have a density of 1 du/ac. Likewise, if a 50-unit apartment building is on a 0.5-acre lot, the density would be 100 du/ac. The physical size of the lot determines how many dwellings can fit on a site; a 0.5-acre lot with a density maximum of 20 du/acre would only be permitted for up to 10 dwelling units. Du/ac does not dictate unit size or unit type.

Fence means a vertical barrier that is attached to the ground or atop a retaining wall. Fencing may include a railing, free-standing wall, or a decorative element such as lattice, trellis, and covered gate, or any combination of these features. Neither the trellis or any part of the fence may be wider than 24 inches in the smallest plan dimension. A *fence* may be free-standing or self-supporting.



If measurement "E" is less than 24 inches, the fence and retaining walls are measured together (e.g., A+B=Height).

If measurement "E" is greater than 24 inches, the fence and retaining walls are measured independently.
(e.g., measurement C would be independent of A+B)

If measurement "D" is ≤ 24" the improvement is considered a fence.

If measurement "D" is > 24" the improvement is considered a site feature.

The measurement and terracing of fences and retaining walls. See section 17.30.010.

Floor area of a building means the sum of the gross horizontal area of the floors of the building, measured from the exterior faces of exterior walls or from the center line of party walls separating two buildings, and includes, but is not limited to:

1. living space on all levels, including within a basement or attic;
2. elevator shafts and stairwells at each floor;
3. bay window or window seat that projects beyond the exterior wall in which a person can reasonably stand or sit, even if the window or seat does not have a minimum ceiling height of seven feet, six inches;
4. seventy square feet or more of contiguous non-habitable attic area that has permanent access, a minimum ceiling height of five feet, and an average ceiling height of at least seven feet six inches. *Permanent access* includes built-in stairs (even if they do not meet all of the building code requirements), but does not include built-in or pull-down ladders;

5. seventy square feet or more of contiguous non-habitable basement area that has a minimum ceiling height of seven feet and at least 42 inches of the basement level, measured from the basement ceiling, is above grade at the exterior wall;
6. enclosed porch or lanai, heated or not;
7. high-volume space that exceeds an average height of 15 feet, measured from finished floor to the outer roof, is counted as two stories; and
8. area within a building used for commercial purposes.

Unless listed above, living space not considered habitable under the Building Code because of window size, ventilation, access, ceiling height, heating, or electrical service (e.g. unconditioned storage area) is not counted in the floor area, but if the space is actually used for living, sleeping, eating, bathing, washing, or cooking, the space will be included, subject to the interpretation of the Director. Mechanical rooms containing gas-burning furnaces or gas-burning hot water heaters are not considered a living space. (Ord. 774 N.S., 09/2024)

Floor height is measured from the floor level of a story to the floor level of the story directly above or roof surface directly above. See also *Story*.

Footprint means the total land area covered by all accessory and primary structures on a lot, measured from outside the exterior walls and supporting columns or posts, except that the following are not included in determining footprint:

1. The portions of any uncovered and unenclosed decks, porches, landings, or patios, not including railings, which are less than 30 inches above finished grade and which project no more than 36 inches from the footprint;
2. Uncovered and unenclosed stairways, including railings, which are less than six feet above finished grade and which project no more than 36 inches from the footprint;
3. Eave and/or roof overhang that projects up to three feet from the exterior wall surface or supporting column or post;
4. Trellis, awning, electrical meter, solar system equipment, residential battery energy storage system equipment, or similar feature that projects horizontally up to three feet from the exterior wall surface or supporting column or post, so long as construction satisfies Building Code requirements.

Frontage means the length of a lot line of a lot contiguous with a portion of a public or private street, whether or not the entrance to any structure on that lot faces the street. Frontage may occur along a front, side, or rear lot line.

Grade.

Average grade means the average level of land on the surface defined as the shortest distance between finished grade at the highest and lowest sides of a structure.

Existing grade means the level of the ground or pavement as it exists before it is disturbed in preparation for a project.

Hardscape includes: a structure; paving material (concrete, asphalt, brick, stone, gravel, wood, stepping stone or other similar walkway); swimming pool; or patio, deck, balcony, or terrace. *Hardscape* does not include building eaves or landscaping. Nor does it include retaining walls, fences, furniture, statuary, or other individual built features used in conjunction with landscaping which individually do not cover more than ten square feet and cumulatively do not cover more than 100 square feet.

Net lot area means the area of a lot, excluding publicly dedicated land and private streets that meet local standards, and other public use areas.

Setback means the required distance that a building, structure or other designated item must be located from a lot line. Setbacks are measured from the lot line to the footprint of the structure or building.

Story means a portion of a building included between the upper surface of a floor and the upper surface of the floor or roof above. See also *Floor height*. (Ord. 743 N.S., 05/2018, Ord. 768 N.S. 01/2023; Ord. 769 N.S., 10/2023, Ord. 772 N.S. 03/2024)

Rev. 2026-04-20 (Ordinance 791 N.S., 04/2026)